



INTERNAL DISPLACEMENT

Global Overview of Trends and Developments in 2006



**NORWEGIAN
REFUGEE COUNCIL**

iDMC internal
displacement
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centre

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Global Overview of Trends and Developments in 2006

April 2007

Dinka woman temporarily accommodated in an old school-house as she makes her return journey to her homeland, Bor, after the end of the decade-long conflict in southern Sudan.
(Photo: Sven Torfinn, Panos)



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The Internal Displacement Monitoring Centre

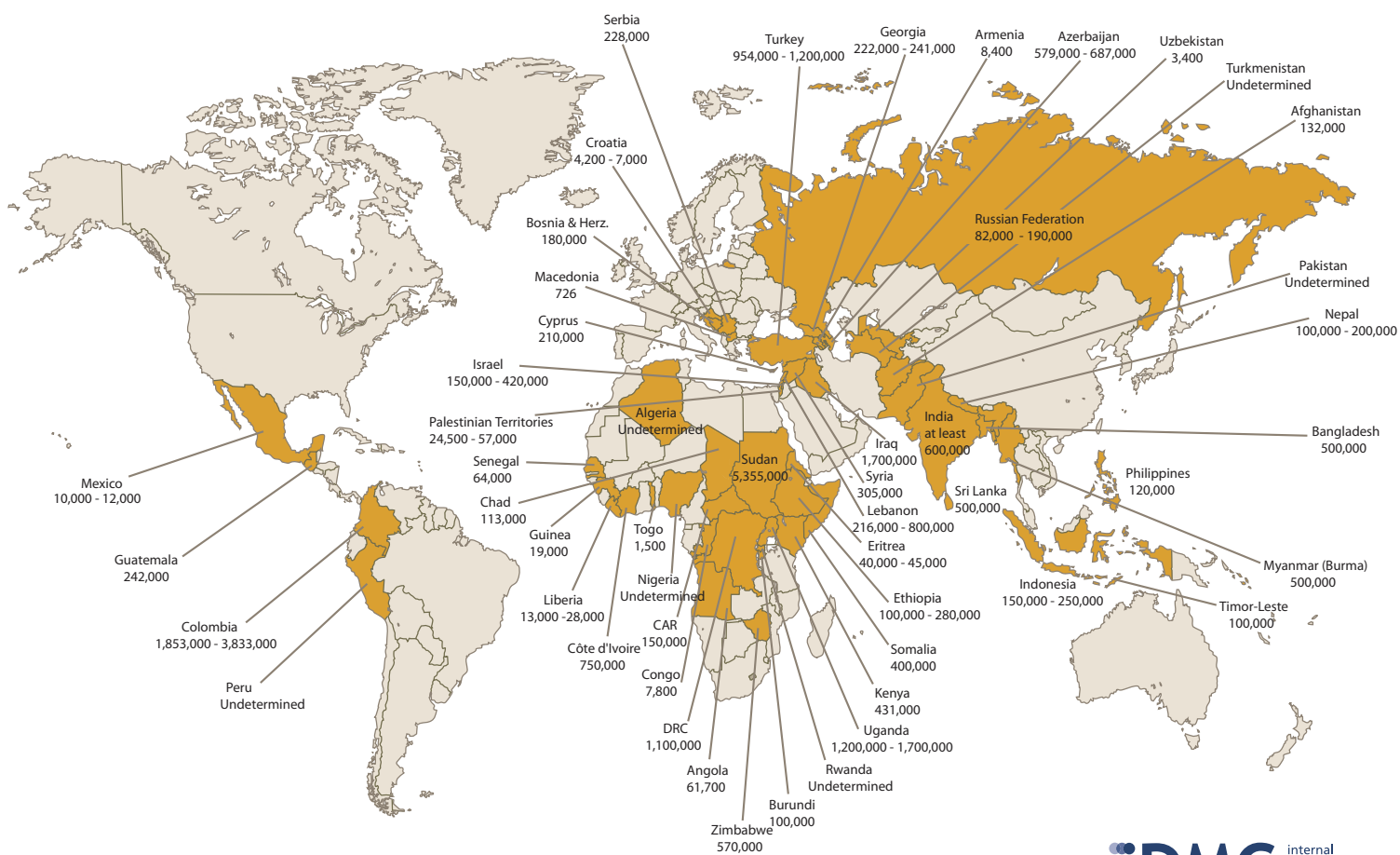
The Internal Displacement Monitoring Centre, established by the Norwegian Refugee Council, monitors conflict-induced internal displacement worldwide at the request of the United Nations.

The Geneva-based Centre runs an online database providing comprehensive and regularly updated information and analysis on internal displacement in some 50 countries.

This report is based on information included in the online IDP database. For more details on the displacement situations in specific countries, or references to sources used in the report, please visit the database at:

www.internal-displacement.org

Internally Displaced People Worldwide 2006



IDMC internal displacement monitoring centre

The map shows the most recent available estimates for each country affected by conflict-induced internal displacement. The figures come from a variety of sources. In several cases, estimates have not been updated recently, or do not cover all parts of a country or certain groups of IDPs. See the table in the Annex for a full annotated list of IDP estimates by country, including sources and dates.

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1

Facts and Figures at a Glance (2006)

Total conflict-related IDP population:	24.5 million (as of December 2006)
Number of countries affected:	At least 52
Most affected continent:	Africa (11.8 million IDPs in 21 countries)
Countries with highest number of IDPs:	Sudan (5 million), Colombia (3.8 million), Iraq (1.7 million), Uganda (1.7 million), DRC (1.1 million)
Number of countries with conflicts generating displacement:	23
Countries with most new displacement:	Lebanon, DRC, Iraq, Sudan, Israel
Countries with most returns:	Sudan, Lebanon, DRC, Uganda, Israel
Countries with worst displacement situations (in alphabetical order):	Burma (Myanmar), Central African Republic, Chad, Colombia, Côte d'Ivoire, DRC, Iraq, Somalia, Sri Lanka, Sudan, Uganda
Estimated number of IDPs exposed to serious threats to their physical safety:	15.6 million
Countries with governments or occupation forces directly or indirectly involved in deliberately displacing people:	Burma (Myanmar), CAR, Chad, Colombia, Côte d'Ivoire, DRC, Iraq, Lebanon, Kenya, Pakistan, Palestinian Territories, Philippines, Senegal, Sri Lanka, Sudan (Darfur), Uganda (Karamoja), Zimbabwe
Estimated number of IDPs without any significant humanitarian assistance from their governments:	5 million in at least 11 countries
Estimated number of IDPs faced with governments indifferent or hostile to their protection needs:	6 million in at least 13 countries
Proportion of women and children among IDPs:	70-80%

2 Foreword

The Internal Displacement Monitoring Centre (IDMC) of the Norwegian Refugee Council is pleased to present its yearly Global Overview on trends and developments with regard to conflict-induced internal displacement.

The Global Overview provides an analysis of the worldwide internal displacement crisis, reflecting developments in 2006. It is a unique report in that it is the only comprehensive and regularly published account of the global internal displacement situation. In addition to an analysis of developments at the global level, the report also provides overviews of regional and thematic trends.

By publishing this report, the IDMC hopes to raise awareness of the still often-overlooked plight of some 25 million people internally displaced by conflict and persecution and to draw attention to existing gaps in response at both the national and international level.

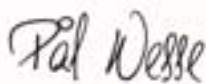
National governments have the primary responsibility to prevent forced displacement and to ensure that the displaced are provided with full access to their rights. Yet, as this report shows, the very governments responsible for protecting their citizens from displacement and other violations of their human rights often fail to ensure their protection and are themselves involved in forcibly uprooting civilians. This year's Global Overview therefore has a particular focus on the role of national

authorities, highlighting situations where progress was made in addressing internal displacement as well as those where significant gaps remain.

The year 2006 saw a sharp increase in the number of people newly uprooted by conflict, with the Middle East particularly hard hit by new internal displacement. As the global internal displacement crisis worsened considerably, the international community continued its efforts to set up a functioning system capable of responding to the needs of internally displaced persons in a timely, predictable and comprehensive manner when national governments are not able or willing to do so. Although progress was made during the year to establish an improved response mechanism – the so-called cluster approach – in a few of the worst humanitarian emergencies, implementation of the new approach remains a challenge.

An improved humanitarian response is necessary to save lives and assist those suffering the effects of conflict. But ultimately, only political solutions to the underlying causes of the conflicts causing displacement will ease the global IDP crisis and reduce the number of people uprooted within their own countries.

It is our hope that this report will contribute to a better understanding of the causes and effects of internal displacement and thus help advance solutions leading to the sustainable return or resettlement and reintegration of internally displaced populations worldwide.



Paul Nesse
Resident Representative, Geneva



Jens-Hagen Eschenbächer
Acting Head of IDMC



Congolese IDPs fleeing violence in Katanga Province. (Photo: J. Hesemann, UNHCR)

The Global Internal Displacement Crisis: Trends and Developments

Who is an internally displaced person?

Internally displaced people – or IDPs – have been forced to flee their homes because their lives were in danger, but unlike refugees they have not crossed an international border. Many IDPs remain exposed to violence, hunger and disease during their displacement and are subject to a multitude of human rights violations. Although IDPs outnumber refugees by nearly 2 to 1, their plight receives far less international attention.

While refugees are entitled to seek international protection under the 1951 Refugee Convention and its 1967 Protocol, the international community is not under the same legal obligation to protect internally displaced people. National governments have the primary responsibility for the security and well-being of all displaced people on their territory, but often they are unable or unwilling to live up to this obligation as defined by the Guiding Principles on Internal Displacement, the set of relevant international standards. In the absence of a single agency mandated to help IDPs, the international community has been trying to work out arrangements aimed at ensuring a collaborative, inter-agency response to the needs of the displaced.

IDPs who have been uprooted by conflicts and human rights violations are the focus of this report, but there are also millions of people who have been internally displaced by natural disasters. Many more have been evicted from their homes in relation to development projects.

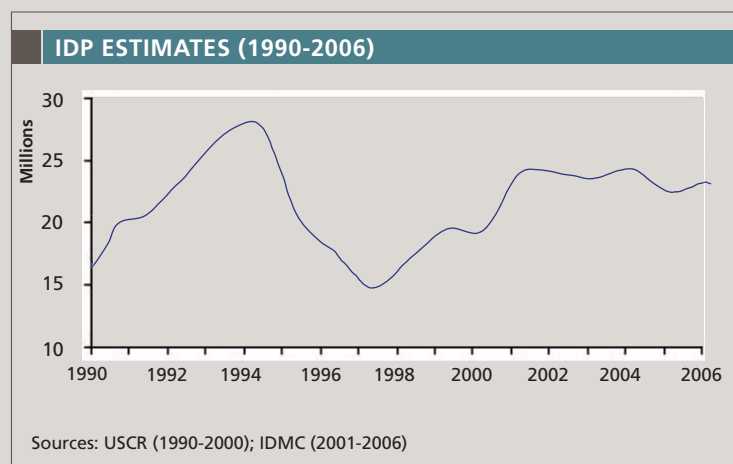
The year 2006 was marked by a steep increase in the number of people newly displaced within their countries by armed conflict and human rights violations, reflecting an escalation of conflict during the year, in particular in the Middle East and Asia. More than 4 million people were forced to flee their homes during the year, more than twice as many as in 2005¹. Hundreds of thousands of them were able to return before year's end – mainly Lebanese and Israelis displaced by the conflict between Israel and Hizbollah in summer 2006. In many other countries, including in Sudan, Colombia and Iraq, those newly displaced in 2006 joined the ranks of millions of other uprooted people who have not been able to return for years or even decades. Altogether, 23 countries were affected by new internal displacement in 2006; the total number of countries with internally displaced populations remained at 52 (not counting a number of situations where displacement is likely to have taken place, but no IDP-specific information was available).

A number of ongoing return movements continued in several countries during the year, sometimes in parallel with new displacements. In total, some 3.6 million internally displaced people, or IDPs, were able to go back to their homes in 2006, even if conditions in areas of origin often were not conducive to the lasting reintegration of returnees. In addition to the large-scale returns in Lebanon and Israel, the most significant return movements were recorded in southern Sudan, the Democratic Republic of Congo (DRC), and eastern Uganda. Provided that ongoing peace processes continue, more large-scale returns are expected for 2007 in southern Sudan, northern Uganda, the DRC and Nepal.

The global number of IDPs increased moderately to an estimated 24.5 million at year's end (from 23.7 million in 2005)². The increase is mainly due to the fact that more people were newly displaced in 2006 than were able to return during the year. For some IDP situations, new data became available, causing changes in country figures without this necessarily being linked to actual changes in the size of the displaced population. Many millions more are displaced by natural disasters, environmental change and development projects. This report, however, only covers internal displacement



Boy in Weyale school for IDPs uprooted as a result of instability caused by rebel attacks on the civilian population in northern Uganda. (Photo: Liba Taylor, Panos)



caused by conflict or situations of generalised violence, the focus of the IDMC's global IDP database.

Since 2001, the global number of IDPs has remained almost unchanged, hovering around the 25 million mark³. Thus neither the increased international attention to the plight of IDPs, nor state pledges to protect civilians from arbitrary displacement and other human rights violations (see below), has resulted in a tangible reduction of the global IDP population. Even more troubling, the findings of this report suggest that the number of IDPs exposed to violence went up during 2006.

This chapter presents the findings of the IDMC's yearly global analysis of information included in its IDP database and attempts to identify major global trends with regard to the worldwide internal displacement crisis. A special focus is placed on the role of national governments in responding to IDP situations in their countries.

Massive new displacement

The Middle East was the region most affected by new displacement in 2006. The conflict between Israel and Hizbollah in July-August 2006 alone caused the – mostly short-term – internal displacement of nearly 1 million people in Lebanon and more than 300,000 in Israel. The dramatic escalation of sectarian violence

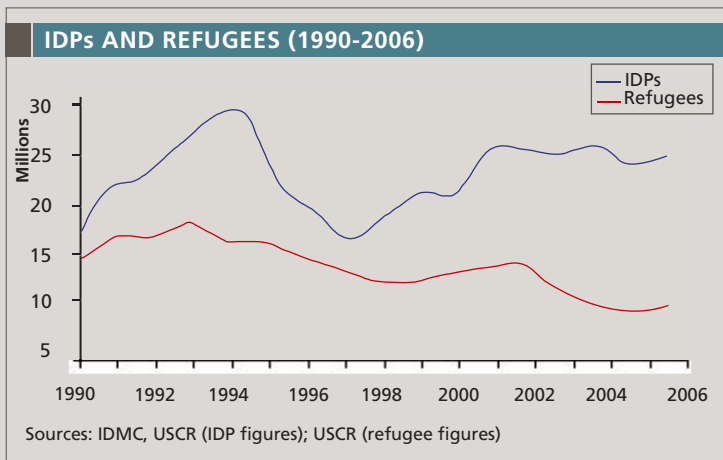
in Iraq following the attack on the Al-Askari shrine in Samarra in February 2006, in addition to ongoing military operations, uprooted some 500,000 people within the country, with many others seeking refuge across Iraq's borders. With an estimated total of 1.7 million IDPs, the number of displaced people in Iraq was only surpassed by the size of IDP populations in Colombia and Sudan. (See Middle East chapter.)

In Africa, most new displacements were reported from the DRC (500,000) and Sudan (450,000), although significant return movements took place in both countries simultaneously. The breakdown of security in eastern Chad and northern Central African Republic (CAR), partly linked to a spill-over of the conflict in Darfur, led to displacement of some 100,000 people in each of the two countries. Although Africa remained by far the continent most affected by internal displacement, the

New displacement

Countries most affected by new conflict-related displacement (2006):

Lebanon
DRC
Iraq
Sudan
Israel



Displaced man taking shelter in a school building in Sudan's Darfur region. Up to 2 million people fled their homes in Darfur after attacks by government-backed Janjaweed militias. (Photo: Petterik Wiggers, Panos)

total number of IDPs in the region slightly decreased from 12.1 million in 2005 to 11.8 million at the end of 2006. This reflected the large-scale return movements in countries such as Sudan (800,000), the DRC (at least 500,000) and eastern Uganda (up to 300,000). With 5 million IDPs, Sudan again topped the list of countries with the largest internally displaced populations. (See Africa chapter.)

In Asia, after years of continuously decreasing IDP figures, the number of internally displaced people went up again in 2006 – mainly due to displacement caused by renewed conflict in Sri Lanka, Afghanistan, Timor-Leste and Pakistan – and stood at 3 million at year's end. (See Asia chapter.)

The increase in the number of IDPs in Latin America was entirely due to continued displacement in a single country, Colombia. An estimated 200,000 Colombians

fled their homes in 2006, bringing the estimated number of IDPs to 3.8 million – the second largest IDP population in the world. (See Americas chapter.)

Europe was the only world region where no significant new displacements were recorded in 2006. (See Europe chapter.)

State failure to protect

The obligation to prevent arbitrary displacement and to protect and assist those who have been displaced falls squarely within the purview of states. The notion of state sovereignty including the responsibility to protect all those under national jurisdiction has gained wide recognition in recent years and was formally confirmed by states in the 2005 UN World Summit Outcome Document⁴. The Guiding Principles on Internal Displacement, the set of international standards that outline what this responsibility entails with regard to IDPs, were also recognised by states at the World Summit. In the Outcome Document, states resolved to “take effective measures to increase the protection of internally displaced persons”⁵.

Although these commitments constitute an important step in acknowledging state responsibility vis-à-vis internally displaced people, the reality is very different. Not only has the number of IDPs increased since the World Summit meeting in September 2005, it also

IDP estimates by region (2006)		
Region	Countries	IDPs (mil.)
Africa	21	11.8
Americas	4	4.2
Asia	12	3
Europe	10	2.8
Middle East	5	2.7
Total	52	24.5

Ethiopian returnees rebuild their house, destroyed during the Ethiopia-Eritrea border war. (Photo: Sven Torfinn, Panos)



appears that the number of IDPs faced with threats to their physical security has gone up significantly. With the changing nature of conflicts, civilians increasingly are forced to flee their homes both to avoid the effects of armed conflict but also because they are targeted by armed forces. In most situations with new displacement in 2006, governments were responsible for forcibly displacing people, either directly through regular armies or indirectly through government-supported militia.

Although IDP statistics are notoriously scarce and unreliable, it is possible to identify general trends with regard to the protection situation of IDPs. The number of IDPs considered at high risk of falling victim to physical violence rose by 1.5 million to an estimated 15.6 million worldwide during 2006. This means that almost two in three IDPs – in Sudan, Colombia, Burma and elsewhere – were forced to live in conditions where they feared for their lives. More than a third of them – an estimated 5.7 million people – could not count on their governments for protection from human rights abuses because the authorities were either unwilling or unable to guarantee their rights. The number of IDPs living under such governments was slightly lower than in 2005. An estimated 5 million IDPs were confronted with governments who did not provide them with any humanitarian assistance – this

number was significantly below that of the previous year, but remained at a disturbing level.

In several countries the very governments responsible for the protection of the displaced were the force behind arbitrary displacements. In some cases regular armies were among the perpetrators, as was the case in Burma and the CAR. In other countries militias directly or indirectly supported by governments were given a free hand to target and displace civilians, as in Sudan and Colombia. Occupying powers – such as Israel in the Palestinian Territories – were also responsible for forced displacements. At least 18 governments were involved in the arbitrary displacement of civilians during 2006, a significant increase over the previous year.

IDP return

Countries with the highest number of returning conflict-related IDPs (2006):

- Sudan
- Lebanon
- DRC
- Uganda
- Israel

Note on accuracy of IDP data

Although the availability of IDP data has improved during recent years, there remain enormous gaps. For most countries, not even the scale of the displacement crisis is known with any degree of accuracy, and it is even more difficult to obtain specific information on IDPs' living conditions and needs. IDP figures used by governments and international organisations are often only rough estimates; they do not provide breakdowns by gender and age, and they can at times be contradictory.

The IDP numbers presented in this report are therefore based not only on the "official" estimates published in the Annex but also on analysis of additional information on recent developments regarding new displacement, returns and reintegration in affected countries. Nevertheless, due to the paucity of IDP data for most countries, the figures in this report should be viewed as the estimates they are.

Measuring government action on IDPs

The Guiding Principles on Internal Displacement, rooted in international law, provide a framework for governments in exercising their responsibility to prevent arbitrary displacement and protect and assist those already displaced. A number of indicators can be used to measure the extent to which governments have assumed their responsibilities to IDPs⁶. An analysis of available information on these indicators shows that most governments were far from fulfilling their obligations adequately in 2006.

A first essential step for any government toward developing an adequate national response to its IDP situation is acknowledging the existence of the problem of internal displacement. However, more than a third of governments – including those of countries as diverse as Algeria, Burma, India (for some IDPs situations), Kenya and Zimbabwe – have not yet made this basic step and shy away from clearly and publicly recognising the internal displacement situation in their country and their responsibility to respond. The reason for this reluctance is often grounded in fear of becoming subject of international scrutiny or interference, in particular where governments bear responsibility for the violence and human rights violations that have caused the displacement. In countries like Guatemala and Rwanda, the authorities have ceased to recognise the existence of IDPs as such, although sustainable reintegration has not taken place. There were also positive examples in 2006 of governments making significant progress in assuming and publicly expressing their IDP-related responsibilities, for example in Turkey and Georgia.

Another important step towards an adequate national IDP response is the development of legal frameworks and policies in line with the Guiding Principles. Countries that have developed laws, policies and other documents regulating some or all aspects of internal displacement include Angola, Burundi, Liberia and Uganda in Africa; India and Sri Lanka in Asia; Azerbaijan, Bosnia and Herzegovina, Georgia, the Russian Federation, Serbia and Turkey in Europe; and Colombia and Peru in the Americas⁷. Although the number of countries where IDP legislation or policy is in place or under development is growing, the scope of existing laws and policies varies greatly, and not all governments make genuine efforts to implement them⁸. In 2006, the overwhelming majority of countries affected by internal displacement still did not have any IDP-specific frameworks guiding government action in this regard. A number of African states adopted a legally binding IDP protocol in the framework of the Great Lakes Conference in December 2006, and efforts were under way to develop an Africa-wide IDP convention under the umbrella of the African Union.

Designating a governmental body as a focal point on IDP issues has proved to be essential for creating an effective government response to internal displacement. Such focal points – usually located within relevant ministries or governmental agencies – are necessary for coordinating the national response, ensuring proper data collection, and acting as a counterpart to civil society and the international community on IDP-related issues. As of late 2006, almost half the countries affected by internal displacement did not have a



A displaced Lebanese woman walks through the rubble of her house, ruined during the Israel-Hizbollah conflict of 2006. (Photo: A. Branthwaite, UNHCR)

government body clearly designated to lead their IDP response. In the countries where a focal point was in place in 2006, these structures often did not have sufficient political clout or financial resources to be effective. Thus, the number of countries with functioning governmental IDP structures remained limited, in particular outside Europe.

The task of providing adequate assistance and services to displaced or returning communities is costly and often exceeds national capacities given that most countries affected by internal displacement are struggling with the costs and effects of either ongoing conflict or post-war recovery. Many of these countries are among the poorest in the world, and some – including Afghanistan, Somalia, Colombia, the CAR and the DRC – have governments that are not in control of some parts of their territory. Nevertheless, allocating resources is always a question of prioritisation, and the low level of resources invested in finding durable solutions for IDPs in many countries is striking given the importance of return and reintegration for internal stability and prospects for lasting post-conflict recovery. This is particularly true for countries with an obvious imbalance between the overall state resources available and the amounts allocated to address IDP situations – for example, in Angola and the Russian Federation.

Beyond the issue of resources, many governments have demonstrated a lack of political will to actively address the root causes of conflict and displacement and seek durable solutions for those displaced. This has been most apparent in the many situations where governments themselves have a role in exploiting and instigating conflict for political or economic gain and using forced displacement as a strategy of war. But also in countries with more constructive governments,

No government assistance

Countries where conflict-related IDPs received no, or very limited, humanitarian assistance from national authorities:

- Bangladesh
- Burma
- CAR
- Chad
- DRC
- Indonesia (West Papua)
- Pakistan
- Palestinian Territories
- Somalia
- Sudan (Darfur)
- Turkmenistan

authorities have found it hard to muster the political will to tackle the often politically sensitive underlying causes of displacement – such as lack of good governance and unequal access to resources – and to promote solutions that are in line with international standards. This is a particular problem where these standards are perceived as conflicting with overriding political agendas. In the Russian Federation, for example, the principles of freedom of movement and voluntary return in safety and dignity have clashed with the government's interest in "solving" the IDP problem by putting pressure on the displaced to return to Chechnya despite persistent security concerns⁹. And the need for integration of Serb IDPs from Kosovo at their current places of residence in Serbia, as long as return is not an option, has conflicted with the government's interest in nurturing the wish to return, which is seen as improving its bargaining position in the negotiations over the future of Kosovo. Conversely, certain political agendas have proved to have a positive affect on the respect of IDPs' rights, as illustrated by the way the prospect of EU accession has propelled a more vigorous approach toward solving the IDP situation in parts of southeastern Europe and Turkey¹⁰.

Finally, governments' performance can be measured against their willingness to engage civil society and, where necessary, the international community in their efforts to address situations of internal displacement. Involving civil society groups – including IDP representatives – is crucial for setting up a comprehensive and sustainable national response (see Civil Society chapter). Such groups play a vital role around the world in raising awareness of IDP-related concerns in their countries and advocating for respect of the rights of the displaced. However, in 2006 only one in four governments made a genuine effort to ensure the participation of the displaced or their representatives in IDP-related policy-making and programming. This was the case, for example, in Georgia, where NGOs were involved in the process of developing the government's new IDP policy.

Governments should seek and accept international assistance if national capacity is insufficient to adequately address an IDP situation. Although this is arguably the case for all but a very few internal dis-

The world's worst IDP situations

Burma (Myanmar)
CAR
Chad
Colombia
Côte d'Ivoire
DRC
Sudan
Iraq
Somalia
Sri Lanka
Uganda

(in alphabetical order; based on a combination of factors such as size of IDP population, scope of protection concerns, government response, and humanitarian access)

placement situations, many governments remain reluctant to allow such international involvement. In Asia in particular, governments in countries such as Bangladesh, Burma, India and Pakistan have used the principle of state sovereignty to fend off international offers for assistance in addressing situations of internal displacement. It is therefore not surprising that Asia, unlike other continents affected by internal displacement, has no regional bodies or mechanisms dealing with IDP-related issues. But the problem of state resistance to international involvement is not limited to Asia. The governments of Algeria, Eritrea, Rwanda and Zimbabwe, for example, have all been successful in keeping foreign engagement in their IDP situations to a minimum, notwithstanding their inability or unwillingness to provide sufficient protection and assistance themselves. In addition to the above-mentioned countries, a number of other governments hindered international humanitarian access to displaced populations in need of assistance, including Indonesia (in West Papua), Israel (in the Palestinian Territories and Lebanon), the Russian Federation (in Chechnya and North Ossetia-Alania), Sri Lanka, and Sudan (in Darfur). In total, one in three governments restricted humanitarian access to IDPs systematically or occasionally during 2006.

Displaced Roma girl from Kosovo now living in the suburbs of Podgorica, Montenegro. (Photo: C. Cazurro, UNHCR)



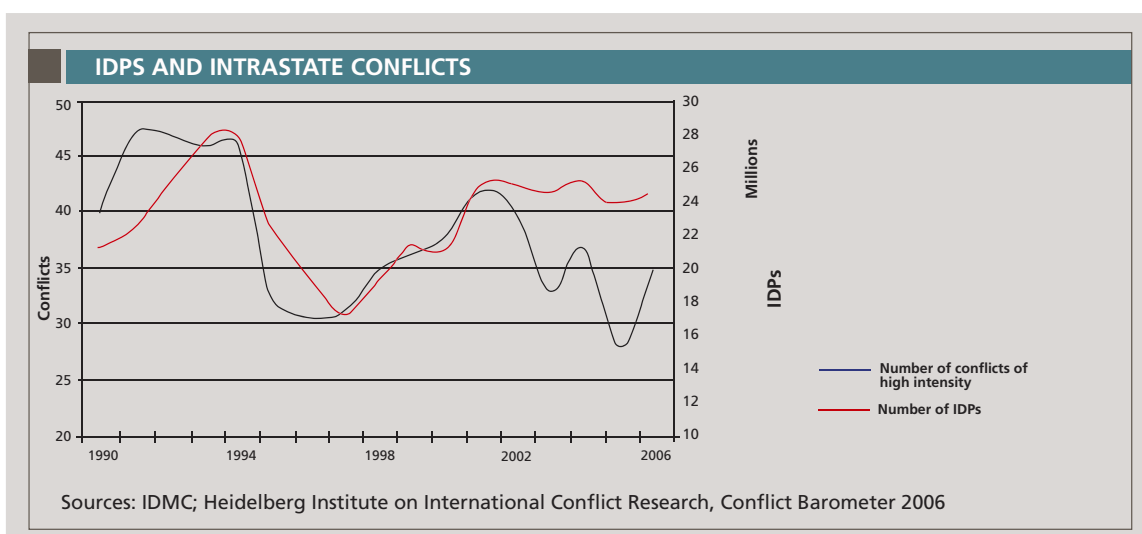
Sri Lanka, and, from late 2006, Somalia. Other armed conflicts remained at a high-intensity level, continuing to uproot hundreds of thousands of people, in Colombia, the DRC and Sudan, among other countries.

Only one international conflict caused internal displacement in 2006: the war between Israel and Hizbollah. But it was this conflict that uprooted the single largest number of people during the year (a total of far more than 1 million, albeit most of them temporarily).

Internal conflicts were far more frequent as a cause of displacement in 2006. Taken alone, none of these conflicts displaced as many people as the Lebanon crisis. But added together, the number of IDPs uprooted by internal conflicts far exceeded that of civilians fleeing their homes as a result of international war. Displacement-causing internal conflict took various different forms. Classic civil wars pitting government armies against rebel groups, such as the conflict in Sri Lanka, appear to have been increasingly replaced by more complex, sometimes internationalised, conflicts involving elements of inter-communal violence and campaigns by governments or non-state actors directed against civilians. Most of the conflicts causing displacement in 2006 fall into this category – perhaps best exemplified by the violence in countries such as Chad, the DRC and Iraq, where a combination of regular army campaigns, insurgent activities, inter-communal violence and involvement of external armed forces has created an environment of human rights abuses, generalised violence and insecurity that has prompted hundreds of thousands of people to flee their homes. In these conflicts, the killing, abuse and displacement of civilians and the looting and destruction of their properties is often not a by-product of war, but a deliberate strategy used by armed groups to weaken

Escalation of conflict

There was a clear correlation in 2006 between the escalation of conflict, in particular in the Middle East and Asia, and the increase in the number of IDPs. The number of high-intensity conflicts went up from 28 to 35 during 2006¹¹. Many of the conflicts that intensified during 2006 also caused significant new displacement, including the war between Israel and Hizbollah and the worsening security situations in Iraq, Afghanistan,



Five largest IDP situations

Sudan (5 million IDPs)
Colombia (up to 3.8 million)
Iraq (1.7 million)
Uganda (1.7 million)
DRC (1.1 million)

the support base of adversaries and punish those who are perceived to support them, and to reward their own fighters. Indeed, recent research appears to confirm this trend, suggesting that the number of violent campaigns directed by armed state or non-state forces against civilians increased by 55 per cent between 1989 and 2005, with the most significant increase occurring in the last few years¹².

The United States-led international “war on terror” has continued to fuel conflicts leading to internal displacement, for example in Colombia, Pakistan, the Philippines, Sri Lanka and Somalia. By providing governments a pretext – and, in some cases, the resources – for waging war on insurgents re-labelled as terrorists, the “war on terror” tended to encourage military solutions to conflicts, in effect narrowing the possibility of peaceful settlements and protracting a number of IDP crises.

International response

The level of international attention to the issue of internal displacement in 2006 was unprecedented, but there is limited evidence that this has translated into tangible improvements in the conditions of large parts of the global IDP population. In fact, if the global number of IDPs is taken as a key indicator of the effectiveness of the international response, it has to be concluded that, on the whole, the international community has failed – both in preventing new crises that cause displacement and in contributing to the creation of environments conducive to return and other durable solutions. The increase in the number of IDPs worldwide who are exposed to threats to their physical safety also raises questions about how successful international interventions have been in mitigating the effects of conflict. Nevertheless, progress has been made in some countries, and the increased attention to IDPs as an often-overlooked category of people with specific needs has helped mobilise national and international support.

International public awareness of the plight of internally displaced people may have improved as a result of the increased media coverage of the Darfur crisis and, to a lesser extent, the conflicts in Uganda and the DRC. However, reporting on the situation of IDPs in other conflicts causing large-scale displacement, most notably the Iraq war, hardly made its way into mainstream news programmes. The IDP crises in the CAR, Sri Lanka, Chechnya (Russian Federation), Somalia, the DRC and central India are all on Médecins sans Frontières’ list of the world’s most underreported humanitarian emergencies¹³.

At the international political level, the UN Security Council has put a number of countries with displacement crises on its agenda, most recently Burma in September 2006. However, the veto-yielding members remained divided over a number of conflicts and unable to act decisively to end humanitarian emergencies, not least due to the reluctance of China and Russia to impose sanctions on abusive governments and agree on strong peace-keeping missions to protect civilians in countries such as Sudan. Nevertheless, there were a number of encouraging developments

Governments as agents of displacement

Countries where governments or occupation forces were directly or indirectly involved in deliberately displacing people in 2006:

Burma (Myanmar)
CAR
Chad
Colombia
Côte d’Ivoire
DRC
Iraq
Lebanon
Kenya
Pakistan
Palestinian Territories
Philippines
Senegal
Sri Lanka
Sudan (Darfur)
Uganda (Karamoja)
Zimbabwe



Displaced children in a makeshift shelter in Kabul, Afghanistan. (Photo: S. Schulman, UNHCR)

at the political level: the (fragile) peace talks between the Ugandan government and the rebel Lord's Resistance Army that have resulted in the first prolonged cessation of hostilities in the history of that conflict; the largely successful elections in the DRC; and the peace agreement between the Nepalese government and Maoist rebels signed in November 2006.

In a resolution adopted in April 2006, the Security Council condemned acts of violence or abuses committed against civilians in situations of armed conflict,

including forced displacement, and demanded that all parties end such practices. The Council stressed the prohibition of the forcible displacement of civilians in situations of armed conflict under circumstances that are in violation of obligations under international humanitarian law. It called on conflict parties to ensure that peace processes, peace agreements and post-conflict recovery and reconstruction planning include the creation of conditions conducive to the voluntary, safe, dignified and sustainable return of IDPs and reaffirmed the need to maintain the security and civilian character of IDP camps¹⁴.

No government protection

Countries where authorities reacted with indifference or hostility to protection needs of conflict-related IDPs:

Burma
CAR
Côte d'Ivoire
DRC
Guatemala
Indonesia (West Papua)
Pakistan
Somalia
Sudan (Darfur)
Turkmenistan

Driven to a large extent by an acknowledgement of the international community's failure to respond adequately to the internal displacement crises in Darfur and elsewhere and championed by the departing Emergency Relief Coordinator, Jan Egeland, the United Nations began rolling out a new approach to humanitarian assistance during 2006. The so-called cluster approach, a key element of an ongoing broader UN humanitarian reform process, was introduced to improve humanitarian operations by designating lead agencies for certain sectors, or "clusters".

As designated lead agency for the three clusters most relevant for IDP situations – protection, camp management and emergency shelter – UNHCR assumed



Tens of thousands of people fled renewed fighting between the government and the rebel Tamil Tigers in Sri Lanka during 2006. (Photo: Reuters, courtesy www.alertnet.org)

responsibility for ensuring a timely, comprehensive and coordinated response to a number of ongoing conflict-related IDP crises and all major new ones.

The introduction of the cluster approach led to unprecedented attention paid to internal displacement at the headquarters level and contributed to moving the issue up on the international political and humanitarian agenda. However, implementation on the ground proved difficult in some of the roll-out countries and progress in improving the humanitarian and protection situation of IDPs was difficult to measure given the absence of reliable baseline data¹⁵.

UNHCR was gearing up in late 2006 towards redefining its policy and criteria for engagement in IDP situations, thereby reflecting the stronger role the agency had assumed regarding IDPs as part of the cluster approach. The high-level panel on UN coherence appointed by the UN Secretary-General also recommended a broader role for UNHCR in working with IDPs, saying that the agency “must reposition itself to provide protection and assistance to displaced people in need, regardless of whether they have crossed an international border”¹⁶.

As of late 2006, UNHCR – and the UN as a whole – was still far from being able to step in wherever national governments were unwilling or unable to protect or

assist IDPs. In several countries the UN did not address IDP issues at all, although the scale of assistance or protection needs and limited government capacity or willingness to address the situation would have warranted international involvement. The list of countries without any UN involvement in IDP issues shrank compared to previous years, and now mostly includes countries with governments opposing international involvement for political reasons, including Algeria, Rwanda, India, and Pakistan, and countries without significant assistance needs, such as Croatia, Israel or Cyprus.

In a large number of countries the UN assisted IDPs as part of programmes benefiting the wider conflict-

No UN involvement

Countries where the UN was not involved in providing humanitarian assistance or protection to conflict-related IDPs in 2006:

Algeria
Guatemala
India
Mexico
Pakistan
Peru
Rwanda



A group of indigenous Colombian IDPs during a perilous river journey on an overloaded canoe, fleeing attacks by the FARC rebel group. (Photo: Dermot Tatlow, Panos)

affected population, an approach that risks overlooking the specific needs and vulnerabilities associated with internal displacement. Issues related to personal documentation or compensation for lost property, for example, are particularly relevant for people displaced from their homes, but may not be addressed if IDPs are not identified as a specific group with different needs than those of other conflict-affected populations. In some countries a discreet approach to assisting IDPs may have been necessary, given the overall political environment, for example in Burma or Zimbabwe. But it is less apparent why the UN has not addressed internal displacement more specifically through its specialised agencies in a number of other IDP situations, such as those in Kenya and eastern Uganda.

As of late 2006, the UN's resident and humanitarian coordinators – the senior country-based officials whose responsibility it is to set up a comprehensive international IDP response – had only developed IDP strategies or action plans in little more than a dozen

countries. Inter-agency working groups dealing with IDP issues existed in only half the affected countries.

Improving the delivery of humanitarian aid to IDPs and other conflict-affected populations must remain a priority considering the still-glaring deficiencies of the current response system. But the urgent need for better humanitarian response and ongoing efforts to improve the system must not divert attention from states' responsibility to address internal displacement at the political level. Ultimately, only political solutions can resolve the essentially political problems that lie at the heart of most conflicts causing displacement. Although the governments of countries directly affected by internal displacement have the primary duty to address the root causes of conflict, other states – Security Council members, donors, neighbouring countries – also have a clear responsibility to encourage and provide sustained support for national efforts aimed at peacefully resolving conflict and ending situations of internal displacement.

International response taking shape

Late 1980s	Internal displacement emerges as an issue on the international agenda.
1992	UN Secretary-General appoints Francis Deng as his Representative on Internally Displaced Persons.
1997	UN Secretary-General appoints Emergency Relief Coordinator as focal point for IDPs in the UN system.
1998	Publication of the Guiding Principles on Internal Displacement.
1999	NRC launches IDP database at the request of the UN.
2000	--Inter-Agency Standing Committee adopts IDP policy. --Emergency Relief Coordinator establishes Senior Inter-Agency Network on Internal Displacement.
2001	Global number of IDPs reaches 25 million and remains largely unchanged for the subsequent years.
2002	Internal Displacement Unit (since 2004: Division) established within UN Office for the Coordination of Humanitarian Affairs (OCHA).
2004	--UN Secretary-General appoints Walter Kälin as Representative on the Human Rights of Internally Displaced Persons. --Inter-Agency Standing Committee adopts revised IDP Policy Package to strengthen Collaborative Response.
2005	Introduction of "cluster" approach; UNHCR takes lead responsibility for protection, emergency shelter and camp management clusters.

Regional Overviews 4



A young woman in Kalma, the largest IDP camp in Darfur, which hosts some 150,000 people. (Photo: Pep Bonet, Panos)

Africa

Africa remains the continent with the highest numbers of people who have been internally displaced due to conflict. While some conflict situations, as in Burundi and Uganda, appeared to improve during 2006 with substantial numbers of IDPs beginning or continuing to return home, many other countries have experienced a clear deterioration of their situation, as was the case in the Central African Republic (CAR). Chad has appeared for the first time on the list of displacement-producing countries, with no indication of an imminent improvement of the situation. Sudan and the international community continue to struggle to find solutions in the Darfur region, where violence and human rights abuses continue unabated. Somalia has experienced a very volatile year, marked by drought, floods and conflict and has, in the last days of 2006, plunged back into outright conflict. Many countries, like Rwanda and Kenya, have suffered from conflict-related displacement for years. Such protracted displacement situations, left to fester without any

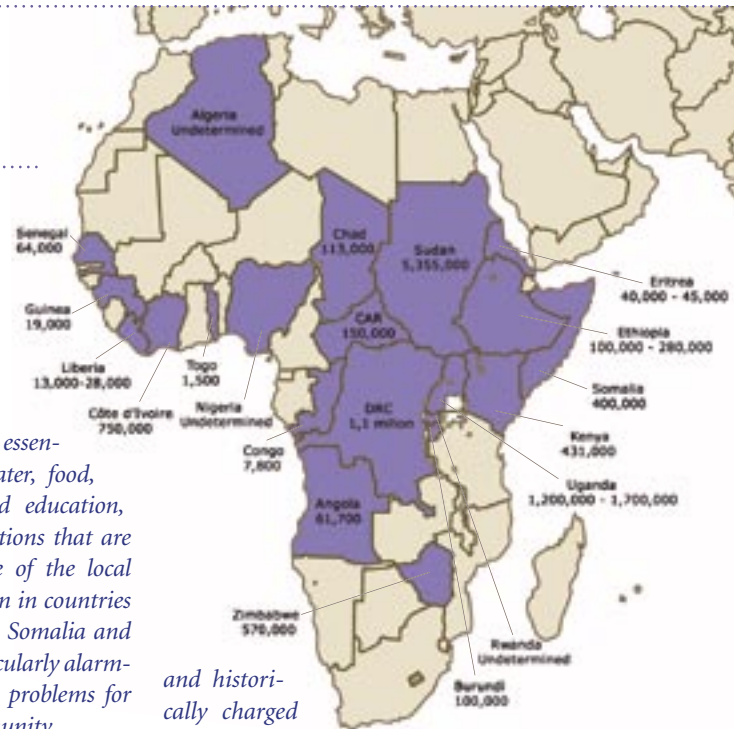
effort at finding a long-term solution, may in themselves harbour the seeds for renewed conflict.

With regard to access to essential services such as water, food, shelter, health care and education, most IDPs live in conditions that are clearly inferior to those of the local population. The situation in countries such as the CAR, Chad, Somalia and parts of the DRC is particularly alarming due to severe access problems for the humanitarian community.

Ending conflict-displacement on the African continent is essentially dependent on finding political solutions and engaging in meaningful peace and reconciliation processes. While the bulk of the political will to end violence must come from within the individual countries, the international community as a whole plays an important role – facilitating peace processes and aiding in the reconstruction of infrastructure. Fulfilling this role is very difficult in the complex

and historically charged African context,

where interests other than the humanitarian tend to maintain the upper hand. As a result, international humanitarian aid often remains ad-hoc and short term. Initiatives such as the UN cluster approach, which is being piloted in Africa, and the Peace Building Commission's work in Burundi, aim to provide more predictable and long-term aid to countries in conflict and to assist in the always-fragile transition from conflict to peace.



Continuing crisis

After the end of the Cold War, a multitude of factors plunged many African countries into conflict, with the resultant forced displacement of millions of civilians – the majority of whom never crossed an international border. Important causes of forced displacement have been the breakdown of state structures that had been sustained by Cold War dynamics, increasing poverty, population pressure, competition for access to land and scarce natural resources, and the disintegration of traditional conflict resolution mechanisms. In many cases, these processes have exacerbated local grievances and contributed to an increasing number of disgruntled and marginalised people, receptive to politically instigated violence along ethnic lines.

Almost half of all internally displaced people live on the African continent. Sudan alone accounts for more than 5 million IDPs, followed by northern Uganda with 1.7 and the DRC with 1.1 million. During 2006, significant internal displacement has occurred in Chad, the CAR, the DRC, Ethiopia, Somalia, and Sudan's Darfur region.

A number of countries experienced a significant deterioration of their human rights situations during 2006. In the CAR, fighting between rebel groups and government forces in the inaccessible north started in 2005 and then intensified during 2006, bringing the number of IDPs – most of whom have to survive practically without any assistance – from 50,000 to 150,000 in just one year.

Chadian IDPs on the road to Kerfi, having fled their villages by foot. Inter-communal violence in southeastern Chad displaced thousands of people in 2006. (Photo: Helene Caux, UNHCR)



Chad had not been considered a country affected by conflict displacement in 2005. However, during the past 12 months, the combination of ongoing fighting between rebel and Chadian government forces in the east, and the spill-over effect of the Darfur conflict, which triggered ethnic tensions and clashes, led to the internal displacement of more than 100,000 people.

In Sudan's war-torn Darfur region, several hundred thousand people have been displaced as a result of the uprising against the central government, which had started in early 2003 following decades of marginalisation. For 2006, the total IDP figure in Darfur remains at around 1.8 million people, not taking into account multiple displacements or unregistered IDPs. In south Sudan, no significant new displacement occurred during 2006 – an indication that the January 2005 Comprehensive Peace Agreement is holding up. The UN has started preparations for large-scale IDP return operations in 2007.

In the DRC, around half a million people were newly displaced during the first half of 2006, with government troops attempting to defeat and disarm rebel groups in the east. Since the July 2006 elections, the situation has stabilised somewhat and people have started to return home, despite lack of reintegration support.

Somalia has witnessed the displacement of tens of thousands of people due to both fear of renewed violence and, in December 2006, the outbreak of war between the Islamic Courts Union (ICU) and the Transitional Federal Government, the latter supported by Ethiopian forces. The war broke out in south-central Somalia while that region had not yet recovered from the severe flooding that had displaced up to 400,000 people in the second half of 2006.

In Ethiopia, several tens of thousands of people were displaced in inter-ethnic clashes in the regions of Oromia and Gambella.

In Côte d'Ivoire, displacement was triggered mostly by ethnically motivated inter-communal violence, whereas in Senegal the causes were clashes between government forces and hardliner separatist rebel forces. In Burundi, return movements continued, albeit at a lower pace, while new displacement occurred in and around the capital, Bujumbura.

Where some degree of political stability could be achieved, IDPs have begun or continued to return and reintegrate. This was the case in Algeria, Angola, the DRC, Eritrea, Togo, Guinea, Liberia, southern Sudan and eastern Uganda. In all cases, the return processes posed very specific challenges of reintegration and of rebuilding livelihoods in a context of general poverty,

insecurity and volatile political environments. Due to such continued insecurity, return movements often occurred alongside renewed displacement.

Power struggles and the colonial past

While religion and ethnicity appear to be the primary divisive factors in many conflict situations, it is important to bear in mind that existing tensions are often exploited for political or economic gain by aspiring politicians. Such national grievances are in some cases rooted in the colonial era, when Europeans pitted population groups and ethnicities against each other. They may spread, taking on a regional character, as the result of random state borders imposed by colonial powers.

In Sudan and Rwanda, for example, arbitrary state borders have contributed to the regionalisation of conflict as ethnic groups within one country seek support from the same or affiliated ethnic groups in neighboring countries.

In Côte d'Ivoire, ethnicity was explicitly used by political leaders as a means of preventing adversaries from gaining power. This tactic eventually resulted in the violent division of the country into the Ivorien south and the predominantly Muslim north.

Economic disparity is another factor leading to conflict. In countries like the DRC and Angola, a small elite profits from control over natural resources, leaving the vast majority of the population in crippling poverty.

Forgotten and protracted crises

A number of drawn-out, low-intensity conflicts have received hardly any attention from the international community – UN agencies, the international press, and non-governmental humanitarian organisations – despite a serious deterioration of the security situation. One pertinent example is the CAR, which continues to be considered a low-intensity conflict because of the relatively small number of casualties, despite the approximately 150,000 people who have been internally displaced. Only recently did interest in this conflict increase, but much more attention is needed to avoid further escalation. At present, both government and rebel forces act in total impunity in the north of the country, inflicting grave human rights

violations on civilians, including rape, looting, burning of villages and abductions.

The mere absence of armed conflict does not always result in sufficient political stability and the will to resolve outstanding displacement situations. As a result, IDPs may linger for years in miserable conditions, effectively prevented from returning to their homes and from finding durable solutions.

In Congo-Brazzaville, for example, insecurity persists in the main conflict-affected areas. Most elements of the March 2003 ceasefire, including plans for disarmament, have thus far not been implemented and armed rebel groups still spread insecurity. Almost 8,000 IDPs are affected by this situation and are unable either to return or to integrate locally.

Chad has its own internal conflict, unrelated to the Darfur spill-over, and in Togo, some 1,500 people cannot return home after having been displaced by political violence. In Senegal, increasing insecurity due to fighting between government and rebel groups along the northwest border with the Gambia has prevented many IDPs from going home and has triggered renewed displacement, as well as threatening



A young mother with her baby on her back pumping water in Parabongo IDP camp, Gulu District, northern Uganda. (Photo: H. Coussidis, UNHCR)



Internally displaced Somalis in makeshift shelters in the capital, Mogadishu. (Photo: Abdimalik Yusuf, IRIN)

the future of the peace process. In Burundi, most of the 100,000 long-term IDPs remain in camps, many of which have become semi-permanent settlements.

In a number of countries, IDPs are rendered invisible, simply owing to the fact that they have no official recognition. This is the case particularly in Kenya, Rwanda and Zimbabwe (all countries with high IDP estimates), where there continues to be a lack of action from both the government and the international community. In Kenya, supposedly a country of stability and peace, roughly 450,000 people remain displaced due to conflict and human rights abuses. Conflict has erupted sporadically over the years, with no response plan or assistance in place, which is why many people have been displaced for long periods, without prospect of return or integration.

In 2006, the government of Rwanda, dominated by the Tutsi minority, did not succeed in finding a durable solution for the more than 500,000 people it forcibly displaced in 1997 and 1998 as part of its brutal anti-insurgency strategy. After an assessment mission in 2000, the UN announced that all Rwandan IDPs had successfully returned or integrated, and thus it removed them from the humanitarian agenda. But in fact most of the country's displaced continue to live in precarious conditions. The Rwandan government does not appear to recognise the ethnic dimension of the

protracted IDP situation, which has the potential to ignite renewed tensions and bloodshed.

In Zimbabwe, despite a UN estimate of almost 600,000 displaced people in 2005, there is still a lack of consensus in both the government and the UN on the extent of the displacement situation.

The Ethiopian government does not officially recognise a large portion of its conflict IDPs. This has led to an ad-hoc and insufficient response to conflict-induced displacement situations, for example by leaving many IDPs out of food distribution systems.

Some countries and displacement situations have received considerable international attention, among them Uganda and the DRC. In July 2006 in the DRC, millions of voters took part in the first multiparty elections in more than 45 years. Around a thousand EU troops and more than 17,000 UN peacekeepers protected the elections, which represented an important step toward stability. In the wake of the elections, hundreds of thousands of IDPs were able to return home in eastern DRC, where they are now facing the challenges of reintegration.

Of all African crises, Sudan received the most international attention during 2006, particularly in the Darfur region. The spotlight of international focus, however,

is no guarantee of peace.¹⁷ Six UN security resolutions, monthly reports by the UN Secretary General, the presence of thousands of African Union peace-keeping troops and an internationally endorsed peace agreement did not end the suffering for the 1.8 million internally displaced people in the Darfur region. Human rights violations have escalated during the course of the year, while the government's promises to bring the perpetrators to justice ring hollow in the absence of investigations and trials. A special session on Darfur at the UN Human Rights Council in December 2006 did little more than highlight the increasing divisions within the international community.

Human rights violations

While national authorities have the responsibility under international law to protect IDPs and other civilians from human rights abuses, they often condone displacement or are even among the main perpetrators of abuse. In 2006, armed government forces in Sudan and the CAR displaced tens of thousands people. Governments in other countries, such as Rwanda, Angola, Kenya, Uganda, and the DRC, have been responsible for forcibly displacing civilian populations in their countries during conflicts – often in flagrant violation of international humanitarian law.

It is extremely difficult for the international community to enforce an individual state's human rights and humanitarian obligations. The International Criminal Court (ICC) can be one of the most powerful tools for doing so. In the CAR, the country's highest criminal court has recognised that the international justice system is the only effective means of fighting the crimes committed with total impunity by both rebels and government and of bringing justice to the victims, many of whom are IDPs.

But there are also serious obstacles presented by some of the few states under investigation. Sudan, for example, signed the Rome Statute of the International Criminal Court in 2000 but has failed to recognise the court's jurisdiction over investigations into atrocities committed in Darfur. In Uganda, the ICC's intention of bringing the rebel leader Joseph Kony to justice was received with skepticism by many Ugandans, who consider a viable domestic reconciliation process involving Kony more promising for long-term stability than international justice.

In addition to conflict-related suffering, IDPs are confronted on a daily basis with protection gaps related to the fact of being displaced. In most countries, IDPs have significantly less access than others to food, shel-



Internally displaced woman taking shelter in a school building in Darfur, Sudan. (Photo: Petterik Wiggers, Panos)

ter, health care, education, and arable land or other ways of earning a living. Strategies such as encampment policies (as in northern Uganda) deny IDPs access to basic services and freedom of movement. In other countries, such as Somalia, Ethiopia and Côte d'Ivoire, IDPs' clan affiliation or ethnicity prevents them from gaining access to services, often rendering them completely dependent on aid or leaving them in desperate situations where aid is not available (as is the case in the CAR, eastern Chad, and parts of the DRC).

In stateless Somalia, IDPs living outside their clan area or belonging to minority clans have far less access than others to the country's limited social services and to local justice systems, which are mostly provided on a clan-basis. In large areas of south and central Somalia, these clan protection problems are seriously exacerbated by the depletion of livelihoods due to years-long conflict and recurring natural disasters. Ethiopia's minority IDPs face significant disadvantages in accessing resources such as food aid, jobs and land, which are controlled by regional and local authorities of ethnic majority groups.

In the DRC, the people displaced during the first half of 2006 experienced extreme brutality at the hands of both undisciplined, unpaid military personnel and rebel forces. This brutality included killings, abductions, looting and burning of possessions and sexual violence used as a weapon of war and to destabilise communities.

An IDP settlement in Bossaso, Puntland, Somalia. (Photo: K. McKinsey, UNHCR)



Sexual violence against IDPs occurred in numerous countries, notably the CAR, Chad, Côte d'Ivoire, the DRC, Liberia, Sudan and Uganda. In Somalia, sexual violence against displaced women was widespread but only rarely reported and still less often punished, mainly because many of them lack clan protection.

Children suffered particularly in many conflict situations. Child abductions by armed forces and rebel groups were rampant in countries such as the DRC and the CAR. In south and central Somalia, which was plunged into renewed fighting in 2006, militia groups increasingly recruited children.

Return and resettlement

A number of African countries continued to progress on their path from conflict toward varying degrees of stability and toward the return or resettlement of IDPs, despite new displacement in some areas. Countries and areas with return movements include Algeria, Angola, Côte d'Ivoire, Eritrea, Guinea, Senegal, southern Sudan and the DRC, where the improved security situation that had allowed for relatively peaceful presidential elections in July 2006 prompted many IDPs to return. For all these countries, the return phase is a great challenge. The destruction of infrastructure and the loss of livelihoods are layered onto crushing poverty, landmines, property restitution issues, incomplete disarmament processes and political obstacles; the result-

ing combination turns reintegration and resettlement into a very fragile and years-long process, which is of central importance to the success of overall reconciliation and recovery. Thus, protection responsibility must extend into the return and reintegration phase of the displacement cycle.

In numerous countries, IDPs returned to seriously sub-optimal situations, continuing to be dependent on food and shelter assistance or left to their own devices, without any possibility of a livelihood and with extremely limited access to health care, education and other basic necessities (as in Angola, Burundi, the DRC, Liberia and eastern Uganda).

Where quick solutions to years-long conflicts appear politically desirable for national authorities and the international community, both tend to neglect or underestimate the political and reconstruction efforts needed for IDPs to return voluntarily and with dignity. The Liberian government declared its return process at an end in April 2006, although there was strong evidence that many returns were economically unsustainable and that a considerable number of IDPs never actually returned. This led to a situation with thousands of unregistered, and thus unassisted, IDPs still living in camps and urban slums.

In Côte d'Ivoire, return is impeded mostly by continuous conflict and crushing poverty – combined, for

Sudanese IDPs preparing for the rainy season in Kalma camp, Darfur.
(Photo: Roald Høvring, NRC)



many, with the loss of their plantations. Some “non-native” settlers, who returned in a UN-sponsored pilot project, were subject to violent attacks by the local population.

Eritrea has begun to return people who were displaced during the 1998-2000 border war with Ethiopia to their villages of origin along the border. In line with its aspiration to self-sufficiency, the Eritrean government declared the returns necessary so that people could cultivate the fertile border region instead of living in IDP camps, dependent on international aid. However, no information is available on the living conditions of the returned families.

Hundreds of thousands have returned home in eastern DRC since 2004, but most without any assistance and lacking access to basic infrastructure, potable water, food, seeds, tools, clothes and straw to build houses. In Katanga Province, for example, upon their return to villages destroyed by militias or the Congolese army, IDPs found no schools, no health centres and nothing to eat. The July 2006 elections in the DRC brought some stability, but it is now increasingly important to consolidate these gains, at least in part by providing the funds to ensure sustainable return and reintegration.

In Sudan’s south, between 1 and 1.2 million IDPs have returned spontaneously to their places of origin following the Comprehensive Peace Agreement of January 2005. The UN has assisted the return of only about

40,000 IDPs, while various state authorities in the south have helped more than 300,000 IDPs to return independently of the UN. The Comprehensive Peace Agreement ended 21 years of civil war between the central government and the southern-based Sudan People’s Liberation Movement/Army. The region still faces serious challenges, with the planned return and reintegration of an estimated 2 million IDPs (currently in Khartoum) and the reconstruction of virtually all infrastructure. Despite some serious security incidents in the south, very few people have been newly displaced there in 2006.

The return process in eastern Uganda has been hindered by the lack of infrastructure and by poor security in return areas. In northern Uganda, there is a cautious movement of IDPs to new settlement sites, which are often closer to home areas. The humanitarian community is divided on the issue of whether to provide assistance in these “halfway” sites.

Problems of access

Humanitarian access to affected populations continued to be inadequate in most African countries. The reasons are two-fold and often occur in combination: first, conflict-related insecurity and second, government animosity toward the international community, in particular the UN. The CAR, Chad and the DRC fall

into the first category, Zimbabwe and Eritrea into the second. In Côte d'Ivoire, Somalia and Darfur, access is limited by a combination of the two factors.

In the CAR, humanitarian access for the few active agencies became increasingly limited due to growing conflict-related insecurity. In eastern Chad, increased insecurity at the end of 2006 forced some agencies to considerably reduce the delivery of humanitarian assistance to tens of thousands of internally displaced people.

In Zimbabwe, the government has denied access on a number of occasions, especially with regard to shelter-related assistance. In Eritrea, in 2006, after the government forced a number of international NGOs to cease operations and leave the country, humanitarian assistance in this extremely poor and food-insecure country has further diminished.

In Côte d'Ivoire, humanitarian access has been limited in varying degrees by the endemic insecurity in some parts of the country. Following orchestrated attacks against UN offices in January 2006, which caused widespread destruction and forced the evacuation of hun-

dreds of peacekeepers and most humanitarian agencies from western regions, IDPs and other vulnerable populations in the country's west were left without assistance for several weeks.

Humanitarian access to Somalia remained an enormous challenge, and the difficult working environment worsened significantly due to fighting at various moments in 2006. At the beginning of the year, during the rise of the Islamic courts, tens of thousands fled their homes because of the drought and for fear of fighting, and many more became displaced in the last days of 2006 and into 2007. The defeat of the Islamic courts in December 2006 raised fears of the return of warlords and the former atmosphere of pervasive insecurity, which the Islamic leaders had managed to limit in the areas they controlled for some six months.

While the presence of thousands of aid workers in Darfur resulted in increased access and improved conditions in the IDP camps in 2005, the escalation of violence following the failed peace agreement of May 2006 has jeopardised humanitarian operations in the region and led to an overall deterioration of the human rights situation. In November, the Norwegian Refugee Council was forced to abandon the coordination of the largest IDP camp in Darfur as a result of repeated and consistent intimidation by local authorities.

Access to IDPs in eastern DRC improved in many areas in 2006. But in the eastern provinces of Katanga and Ituri, as well as in parts of the Kivu provinces, access remained difficult, due to military operations against uncontrolled armed groups and related attacks on civilians by militias and undisciplined Congolese troops. Other factors hampering the response to the needs of displaced people and returnees include the sheer size of the country, the absence of roads and the high degree of geographical dispersal of IDPs. In 2006, the World Food Programme had to resort to food drops and airlifts to reach IDPs in areas of eastern DRC where road and rail transport is virtually nonexistent.

National and international response

Lack of political will is often presumed to be the main obstacle in tackling the root causes of conflict and displacement. But today's political realities are often based on extremely complex and painful national histories, where reconciliation efforts following past conflicts have not provided the necessary basis for building peace.



IDPs in Mitwaba, Katanga Province, DRC.
(Photo: S. Schulman, UNHCR)



Displaced woman takes shelter from the rain in al-Junaynah, Western Darfur. (Photo: Claire McEvoy, IRIN)

Initiatives proclaiming themselves dedicated to the improvement of IDP situations, such as the Joint Monitoring Committee launched by the Ugandan government, are often no more than an exercise in window-dressing and do not extend beyond the capitals to reach the displaced.

Similarly, in Sudan the Humanitarian Aid Commission set up by the central government in 1995 to protect and assist IDPs did not achieve any tangible results in 2006, as demonstrated by the continued forced demolition of IDP camps in Khartoum and the ongoing attacks on IDPs in Darfur. In Kenya, the National IDP Task Force supposed to survey IDPs was never granted adequate resources and therefore only visited certain parts of the country. In Zimbabwe, funds for shelter supposedly provided to IDPs by Operation Garikai went to friends of the government.

Some governments have little experience in tackling humanitarian and displacement crises. This problem was particularly evident in Côte d'Ivoire, CAR and Chad, where the central governments had difficulty providing leadership in the humanitarian response to their displaced citizens. In Côte d'Ivoire, a draft Action Plan on the Return of IDPs may become a first step in the direction of a coordinated response involving both national authorities and the humanitarian community.

Where a government does not have control over the entirety of its territory, national responses remain necessarily limited to government-controlled areas. This problem greatly limits the national response in, for example, the northern regions of both the CAR and Uganda. In the DRC and Somalia, humanitarian assistance was delivered entirely by the international community and by local NGOs. This was due in Somalia to the absence of a functional national government, and in the DRC mainly due to the lack of effective government and political will.

On a regional policy level, success has been mixed in terms of raising the general awareness of states' responsibility towards their own displaced citizens. On the one hand, the African Union (AU) is currently in the process of developing an IDP Convention. In addition, the member states of the International Conference on the Great Lakes Region, which includes major IDP hosting countries such as Uganda, the DRC, Sudan and the CAR, in December 2006, signed a Pact on Security, Stability and Development in the Great Lakes Region, which includes a protocol on protection and assistance of IDPs, the first of its kind. The African Commission on Human and Peoples' Rights has appointed a Special Rapporteur focusing on IDPs. On the other hand, a February 2006 regional conference of the East African Intergovernmental Authority for Development (IGAD) focused primarily on refugee issues, thereby missing



Most IDPs in the Central African Republic live in the bush, like this family, with little or no access to food, proper shelter, health care and education. (Photo: Mpako Foaleng, IDMC)

the opportunity to reconfirm the IGAD states' commitment to developing national IDP policies, as stated in the 2003 IGAD Khartoum Declaration.¹⁸

International political and military response

The international response to Africa's IDP situations must take into account enormous national and regional complexities, while at the same time balancing regional realities with their own interests.

Sudan has remained a very difficult crisis in this regard. Although there is overwhelming evidence of the government's complicity in massive human rights violations in Darfur, diverging interests (often economic) have prevented major international stakeholders from joining together to take more forceful action to improve the situation.

In December 2006, the UN Security Council adopted a resolution providing for a regional peacekeeping force for Somalia, in support of its weak transitional government.¹⁹ This resolution may have contributed to triggering the current conflict, which threatens to plunge Somalia back into total anarchy.

In other countries, international lack of interest in human rights violations matched that of national governments. This was true for the CAR and Chad, where

international focus was essentially a spill-over from the Darfur crisis; these countries are only just starting to get much-needed increased attention.

In Zimbabwe, the Southern African Development Community (SADC), the regional organisation of southern African states, and the AU have addressed the displacement crisis, but have been reluctant to apply more pressure on the government of President Mugabe. The international response in Kenya was ad hoc at best, and focused more on people displaced by natural catastrophes than on the conflict-displaced. Similarly, in Somalia, the drought and flood emergency responses during 2006 were relatively satisfactory, while practically no funds remained for providing assistance to those expected to flee their homes due to the impending conflict.

Humanitarian reform

The UN's cluster approach is meant to close gaps and to offer predictability in emergency response. After having been applied for one year in the four pilot countries of the DRC, Liberia, Somalia and Uganda, the approach shows some positive results, and most agencies are standing behind it in principle. At the same time, it is clear that the successful implementation of the cluster approach will require continued goodwill and effort from all parties involved. In particular, issues



A young Chadian girl displaced by attacks on her village in which her father and two brothers were killed by Janjaweed militia from neighbouring Sudan. (Photo: H. Caux, UNHCR)

CAR and Chad: New Displacement Crises

CAR

Forced displacement in the CAR is a consequence of more than a decade of political instability and armed conflicts. Fighting between government forces and rebel groups in the north of the country – where state presence is very weak or nonexistent – has tripled IDP figures during 2006, from estimates of 50,000 in April to 150,000 at the end of the year. (Also during the year, some 80,000 people fled to neighbouring countries.)

Most IDPs have taken refuge in the bush, not far from their villages and fields. They are extremely vulnerable, existing without even minimum living conditions – limited or no access to health care, food, water, sanitation and education. Many displaced people were scattered in small, isolated settlements of makeshift shelters, with great exposure to disease.

Both government forces and rebel groups have, with total impunity, committed serious human rights abuses against IDPs, including arbitrary kill-

ings, rape, torture and destruction of houses and property. In the face of this suffering, the response to the internal displacement crisis in the CAR has so far been wholly inadequate both at the national and international level, owing to lack of planning and coordination, as well as inadequate funding and insufficient humanitarian presence in the displacement-affected areas.

CHAD

The number of internally displaced people in eastern Chad soared in 2006 from zero to 100,000 due to the deteriorating security situation there. The causes of displacement were dual: Janjaweed militia from Darfur allegedly carried out cross-border attacks on civilians in eastern Chad, while at the same time, inter-ethnic tensions were triggered by and the spill-over of violence from Darfur. Dozens of villages were burned to the ground, while humanitarian assistance was seriously compromised by the worsening insecurity.

relating to the inclusion of NGOs in the consultative and decision-making processes of each cluster and the concrete application of the clusters on the field level remain challenging in all four pilot countries. In addition, UNHCR still has to further develop its role as protection cluster lead.

Examples such as the Somalia shelter cluster's successful negotiations with Bossaso (Puntland) authorities regarding an innovative IDP shelter project indicate the positive results of a well-coordinated cluster approach. The Somalia protection cluster is co-chaired by UNHCR and OCHA and has put in place numerous protection initiatives, including the training of local actors in the Guiding Principles on Internal Displacement, an IDP profiling exercise, and a population-movement tracking system.

In Uganda, the protection cluster focused on enhancing freedom of movement and improving living conditions in camps, including IDPs' access to land. In Liberia, the international humanitarian community has effectively reorganised itself in accordance with global humanitarian reform. It has largely overcome a legacy of weak, confusing coordination mechanisms and bitter divisions, particularly between the UN Mission (UNMIL) and humanitarian agencies, and has formed an inter-agency team that includes non-UN organisations. As part of its new responsibilities, UNHCR has elaborated a camp closure and a protection strategy,

Pastoralists in the Horn of Africa

Most East African countries are home to large populations of pastoralists who follow seasonal migration patterns. Increasingly extreme climatic conditions, such as recurrent droughts and floods, have led to a corresponding increase in fights over scarce natural resources like drinking water and grazing land. This is particularly the case in Ethiopia, Kenya and Somalia. Although the people displaced by these resource battles qualify as IDPs, they are not always officially acknowledged as such – in part because their normal migration patterns make forced displacement difficult to recognise, and in part because the relatively low intensity of tensions have so far not prompted agencies to respond.

Conflict vs. Natural Disaster

The Horn of Africa – especially Ethiopia, Kenya and Somalia – is regularly vulnerable to natural disasters such as drought and floods. Particularly in Somalia and Ethiopia, natural disaster emergencies trigger considerably more donor interest and financial support than conflict-related crises and displacement. Hundreds of thousands of people have been affected by serious drought during the first half of 2006, only to lose their remaining possessions and livestock at the end of year in the worst flood in more than 50 years.

The relatively generous international response to the drought and flood victims was generally not matched by funding for the more protracted conflict-IDP situations, which require a longer-term, reconstruction-oriented approach. This is problematic in that funding that focuses on natural disaster relief perpetuates a short-term relief pattern. The international community seems to hesitate to engage in long-term recovery work and in protection programming.

which established a monitoring framework mechanism in both camps and areas of return.

In the DRC, the protection cluster has been one of the most active in the country, working with the UN Mission in the DRC (MONUC) to reverse army decisions to force IDPs to return home, and training Congolese troops in the Guiding Principles, humanitarian principles and awareness of gender-based violence.

While only four countries have been chosen for piloting and evaluating the cluster approach, the policy shift has had positive effects on the response structure in several other countries. For example, in Côte d'Ivoire, the international humanitarian community made tangible progress in coordinating its humanitarian response, both internally and with the government. The UNHCR-led IDP protection cluster has so far focused on much-needed information gathering on IDPs.

Early recovery and reconstruction

UNDP is the designated lead agency for the early recovery cluster, charged with infrastructure rehabili-



Dinka women and children disembarking after a two-day barge journey returning people displaced by the civil war in southern Sudan. (Photo: Sven Torfinn, Panos)

tation, employment generation and re-establishment of the rule of law. These activities should be implemented from the very beginning of an emergency, so as to work from the outset toward sustainable returns and solutions.

The problem is that humanitarian funding tends to be given for immediate emergency aid, mostly food aid. Somalia and Côte d'Ivoire are striking examples of such chronically one-note funding. In Uganda, the protection cluster has been over-funded, while clusters such as early recovery remain under-funded. Many of the financing patterns of the Consolidated Appeals Processes (CAP) show a clear focus on relief programming, while long-term reconstruction and rights-based awareness tend to be neglected in the programming of both UN agencies and international NGOs, and in donors' funding strategies.

But while more effort needs to be invested in promoting early recovery during emergencies, the United Nations have now recognised the need to channel resources and expertise to countries in transition, in order to avoid recurring conflict. In December 2005, the creation of a Peace Building Commission (PBC) was endorsed in the World Summit Outcome Document. The main purpose of the commission is to bring together all relevant actors to marshal resources and

to propose integrated strategies for peace-building and recovery. PBC partners are drawn from beyond the UN, involving the African Union, the World Bank and civil society, among others. As of the end of 2006, the commission was working with two countries in transition, Sierra Leone and Burundi. A fund administered by the UN Peace Building Supporting Office should allow these countries to realise critical projects in support of a successful transition. It remains to be seen whether, in Burundi, the fund will support the delivery of services to returning IDPs and refugees, so that the civilian population sees tangible peace dividends.

The success of humanitarian activities in Africa remains dependent on the political situations in the countries of operation. Aid agencies today grapple with the legacy of the international community's often painful role in colonial, Cold War and present African affairs, which makes their humanitarian involvement questionable in the eyes of many Africans. Unless humanitarian aid can clearly be detached from the past and current political interests of the international community, access will remain difficult and crises will continue to be forgotten. It remains an open question whether humanitarian imperatives will eventually prevail, placing the interests of the displaced and other conflict-affected people first and foremost.



An ethnic Wounaan woman who fled her ancestral home after the rebel Revolutionary Armed Forces of Colombia killed two community leaders and attempted to gain control of their tribe. After 40 years of civil unrest, Colombia has the world's second-highest displaced population due to conflict. (Photo: Dermot Tatlow, Panos)

Americas

While most of Latin America's civil wars have ended, the historical and structural injustices that triggered them and the forced displacements of millions of people remain largely unresolved. In 2006, the IDP situation in the region received little attention from the international community. The conflict in Colombia remains active and has caused the world's second-largest internal displacement crisis after Sudan. Other countries with conflict-related IDP populations are Guatemala, Mexico, and Peru.

In the region, more than 3.8 million of the estimated 4.1 million internally displaced are in Colombia. It is also the only country in Latin America where civilians continue to be forced from their homes as the result of an internal armed conflict. In 2006, more than 200,000 Colombians were compelled to leave their homes because of the conflict.

A worrisome recent evolution in the Central American region is the emergence of violent street gangs that reportedly result in people fleeing their homes to avoid extortion and violence.

The scale of the displacements caused by gangs in countries such as Honduras, Guatemala, and Nicaragua is unknown; not even estimated numbers are available.

Most of the IDPs in the Americas region were uprooted from rural areas and are currently living in urban squatter situations. The forced movement from rural to urban areas has largely coincided with economic migration in the same direction. This fact greatly complicates any effort at promoting return and reintegration as a durable solution.

Internally displaced people in the Latin American region are generally better organised than on other continents, but the results of their collective actions are meager compared to the magnitude of their problems. Latin America has one of the highest concentrations of wealth in the hands of elites in the world. The region also has a correspondingly high number of landless and dispossessed people, often indigenous, who make up the majority of IDPs. Approximately 25 per cent of the population lives on less than \$2 a day.



Although Colombia is the only country in the region where the UN has taken serious measures to address the IDP situation, the responses are not commensurate with the magnitude of the crisis. UN teams in Peru, Guatemala and Mexico have not adopted IDP-specific programmes. In Mexico, the affected communities do not recognise the state's legitimacy, which poses a serious obstacle to UN involvement. In Guatemala, Peru, and Mexico, the blurring of lines between residential and IDP populations have prevented the UN from adopting strategies addressing IDPs as a specific group with specific protection needs.

Background and causes

The extremely unequal distribution of wealth and land inherited from colonial administrations led as early as the 19th century to repeated uprisings – pitting rebel groups drawn from landless or dispossessed rural indigenous communities against land-owning elites. In the post-colonial period, most of these inequalities were perpetuated by the descendents of the European colonisers. In the 1960s and 1970s, armed uprisings triggered brutal counterinsurgency operations by national armies and paramilitary groups safeguarding the local elites and foreign investments. Millions of people were forced to flee and hundreds of thousands were killed. The violence and ensuing massive displacement peaked in the 1980s and faded

in the first half of the 1990s. The worst-hit countries were Guatemala, El Salvador, Nicaragua, Honduras, Peru and Colombia.

In other countries, which have not experienced civil wars, the indigenous populations have also been victims of direct or indirect state-sponsored violence. The indigenous populations in Brasil, Paraguay and Argentina have had their land taken by ranchers, miners and logging companies throughout colonial history and continuing into the present. The perpetrators, with the covert or overt support of state agents, have in many cases used extreme violence, such as massacres, killings and forced evictions to pursue their objectives.



A group of displaced people in Colombia.
(Photo: Arild Birkenes, IDMC)

The continuing search for solutions

The termination of the Cold War marked the end of many of the armed rebellions, although not the end of the structural injustices that had caused the violence and the massive displacements in the first place. Although the peace agreements of the 1990s included provisions for IDPs and refugees, implementation has been poor. Successful implementation hinges on political will as well as capacity, both of which have been lacking almost continuously since the signing of the agreements.

In addition, displaced communities are increasingly becoming indistinguishable from their host communities as economic migration from rural to urban areas continues – a movement actively resisted by hundreds of grassroots organisations throughout Latin America. While the people who were displaced more than a decade ago may today face the same needs as host populations, provisions in the peace agreements on land distribution and compensation for lost assets remain unfulfilled.

In several of the countries torn by internal conflict in recent decades, hard figures on numbers of IDPs are difficult to come by. Nevertheless, estimates provide an indication of unresolved situations. In Peru, IDP estimates run from as low as 60,000 to as high as 600,000, and in Mexico numbers range from 10,000 to 12,000 internally displaced people.

In Guatemala, a national IDP organisation estimates the existence of approximately 1 million IDPs more than ten years after the signing of the peace agreement of 1996. Yet the UN Population Fund and some national institutions counted only a total of 242,000 dispersed IDPs, excluding organised IDPs, in 1997.

In Colombia, the IDP situation is recognised by state authorities, the UN and national and international NGOs. Yet there is disagreement as to the magnitude of the IDP crisis and the nature of the state's response, which focuses more on humanitarian aid than on durable solutions such as the return of land taken from IDPs by paramilitary groups. The government says it has reduced the number of new displacements from 169,000 in 2005 to 109,000 in 2006, while at the same time recognising that under-registration of IDPs may run as high as 30 to 40 per cent.²⁰ According to an authoritative nongovernmental organisation, more than 200,000 people were forced to flee their homes in Colombia in the first nine months of the year alone. Moreover, killings, attacks and intimidation by armed groups continued to be reported throughout the year, in many cases carried out by army-backed paramilitary groups that, officially, were demobilised during the year.

In Peru, the government initiated an IDP registration process, which counted approximately 100,000 people by the end of 2006²¹ (a final number has yet to be released). In Mexico, thousands have returned, but many still live under threat by the paramilitaries and have not been compensated for lost land and property.

IDPs living in Ciudad Bolívar shantytown, Bogotá, Colombia.
(Photo: B. Heger, UNHCR)



In Colombia, the government has prioritised the return of IDPs, but its willingness to pursue durable solutions rings hollow in the face of the presence of armed groups and in view of the fact that the original causes of displacement remain unchanged.

Displacement as war strategy

Forced displacement of civilians in the Americas is less a byproduct of fighting between armed groups than a military objective serving political and economic ends. In Colombia, armed groups have forced millions of civilians from their homes, ostensibly to separate them from their armed enemies. Paramilitary groups have in many cases exploited this war strategy to expand their political, economic and territorial control. In the northwestern Chocó region, bordering Panama, paramilitary groups have displaced thousands of indigenous and Afro-Colombian communities to pave the way for projects such as a planned trans-oceanic canal, an inter-American highway, African palm plantations and logging.

This trend echoes other economically motivated armed evictions in the region. In Brasil, human rights violations, including forced evictions and killings of indigenous or tribal people, is in most cases perpetrated by mercenaries hired by mining or logging companies. In Guatemala, indigenous communities are defending their way of life against displacements caused by large-scale mining projects.

In Colombia, the enormous illegal fortunes generated by drug trafficking are used to perpetuate the armed conflict. In 1999, the government, with the support of the United States, initiated a large-scale anti-drug military campaign, but it has not achieved its target of reducing drug production; in fact, the total area under coca cultivation has increased. Worse, an estimated 200,000 coca farmers have had to flee their homes since the inception of the plan as a result of indiscriminate aerial chemical fumigation. However, these people are not recognized as IDPs by the Colombian government.

Colombian President Alvaro Uribe Velez, in his second term in office, has continued to pursue a policy of “democratic security”, which aims to quell the armed rebellion by involving civilians in counterinsurgency activities, arming peasant soldiers and setting up networks of informants. These “security” measures ignore core principles of international humanitarian law by blurring the distinction between civilians and combatants. The guerrillas have, on several occasions, killed civilians, including IDPs, who were part of the counter-insurgency programme.

Basic services

Latin America’s endemic poverty and enormous disparities affect IDPs disproportionately, in contrast to the resident population. This is particularly true in Colombia where the number of people being forced from their homes continues to grow every year. Although



An indigenous Colombian woman and her children in an abandoned house where they are living, after fleeing their original home. (Photo: Dermot Tatlow, Panos)

registered IDPs receive three months' humanitarian rations and formal access to education, health services and housing, there are significant flaws in the state's response. In the big-city slums, IDPs continue to be victims of "social cleansing" by paramilitary groups.

An additional problem has been that many IDPs have decided not to register as such, out of fear of being associated with the warring parties by resident populations and state authorities. Without official registration and proper identity documents, internally displaced people face significant difficulties in accessing government assistance, employment, health care, and education. Their civil and political rights, such as the right to vote, are restricted and their restitution and property rights undermined.

Increasingly in cities throughout the region, large segments of the most marginalised portion of the population are being recruited by criminal gangs; the ensuing warfare replicates allegiances and divisions at the national level. This has led in recent years to intra-urban displacements in Colombia, Guatemala, El Salvador, Honduras and Haiti.

The administration of justice is still weak in the region. Internal displacement, including armed evictions in Brasil, Mexico and Guatemala, has often been carried out with near-impunity, in many cases with the acquiescence or collaboration of law enforcement personnel and land-owning elites.

Collective response

IDPs and war-affected people in the Americas have a long history of peaceful collective action in defense of their rights – often initiated by indigenous communities. In a remarkable display of resilience in the face of war and human rights violations, the displaced in this region have organised into advocacy groups more than anywhere else in the world. Supported by a vast network of church and human rights groups, IDPs have been able to articulate demands, bring governments to the negotiating table and draw international attention to their plight, including that of the inter-American human rights system.

This work usually runs counter to the interests of the armed organisations and their financial and political supporters, mirroring in many respects the nature of the conflicts. Defending the interests of IDPs or other victims of conflict in more than a purely humanitarian way is often perceived as an attack on the perpetrators of displacement or other rights violations. Consequently, organisations defending both victims in general and, more particularly, IDPs' right to return and have their land restored have been among the primary targets of armed groups. Hundreds of leaders of human rights organisations and displaced communities have been assassinated, and attacks remain a major obstacle to their work and, indeed, to their very existence.

In Guatemala and Colombia, peace communities and indigenous groups have asked armed groups to respect their neutrality, but they have not been spared – attacks have ranged from food blockades and restrictions on freedom of movement to the murder of leaders. Attacks against leaders of peace communities and displaced or landless people in the region continued throughout the year. In Colombia, leaders of IDP organisations and indigenous communities, human rights advocates, social workers, teachers, trade unionists and church leaders were the targets of attacks.

National, regional and international responses

Governments in the Americas have acknowledged the problem of internal displacement and set up national bodies to deal with the issue. However, they have often failed either to allocate sufficient resources to these institutions or to take legal measures to ensure effective implementation. In Colombia, the government of President Uribe made several efforts in 2006 at addressing the plight of the growing number of IDPs, but the results were mixed and the conflict goes on at full tilt. Moreover, the demobilisation process has further complicated the pattern of violence, with new armed entities emerging from the old paramilitary groups.

In Colombia, the gap between comprehensive national legislation on IDPs and implementation of policies was noted by Walter Kälin, the UN Representative on the human rights of internally displaced persons, during his visit to the country in June 2006.²² Other agencies, such as the Office of the UN High Commissioner for Human Rights and the Inter-American Commission on Human Rights, have criticised the government for failing to protect IDPs and other victims of the conflict.²³

The implementation of peace agreements with provisions for uprooted populations has been slow. In Mexico, for example, legislation on internal displacement has not yet been adopted, although a law was proposed in 1998. Similarly, in Guatemala, several thousand dispersed IDPs are still waiting to go home: key elements of the 1996 peace agreements covering resettlement, compensation and land allocation have only partially been put into practice. In the case of Peru, the government provided hardly any assistance or protection to IDPs at the height of the conflict there at the end of the 1980s; registration of IDPs began only in 2006. Over time, governments and international actors in Peru and Guatemala have shifted to targeting disadvantaged populations as a whole rather than recognising IDPs as people with particular protection needs.



IDPs living in dire conditions on the outskirts of the Colombian capital, Bogota. (B. Heger, UNHCR)

Regionally, there are various noteworthy initiatives aimed at tackling the problem of internal displacement. The Organisation of American States (OAS) was the first regional body to endorse the UN Guiding Principles and apply them to its work. The 1989 International Conference on Central American Refugees (CIREFCA), the UN multi-agency Development Programme for Displaced Persons, Refugees and Returnees in Central America (PRODERE) as well as the San Jose Declaration on Refugees and Displaced Persons of 1994 all focused on the protection, assistance and reintegration of uprooted populations in the region. In addition, the Inter-American Commission on Human Rights (IACHR) of the OAS established the innovative Permanent Consultation on Internal Displacement in the Americas in 1992.

The situation for IDPs and evicted people in Latin America has been complicated by the coincidence of economic migration from rural to urban areas. The lines between the two kinds of movements are increasingly blurred, thus throwing into question traditional responses to humanitarian situations. While the Colombian IDP situation stands out as the largest and most pressing in the Latin American region, the protracted situations in Mexico, Peru and Guatemala deserve renewed attention. Peace agreements had promised durable solutions and a willingness to address structural disparities, but these promises have not been kept.



A boy watches as vehicles burn during the violent clashes that displaced tens of thousands of people in Timor-Leste in mid-2006. (Photo: Norman Ng, UNHCR)

Asia

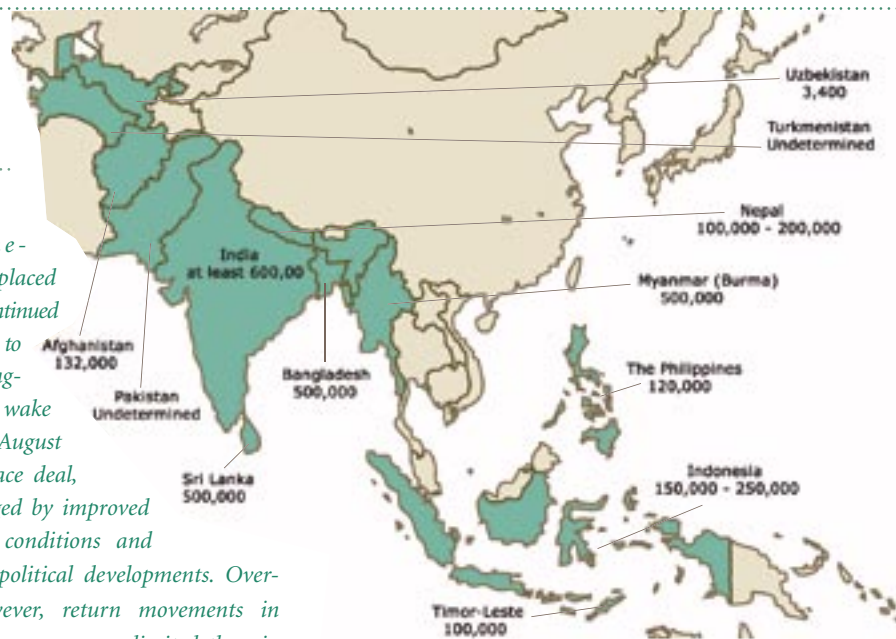
More than two-thirds of Asia's 3 million internally displaced people are in south Asia, where violence and human rights abuses have forced hundreds of thousands of people from their homes during 2006. New violence in Sri Lanka, Afghanistan and to a lesser extent in Pakistan displaced upwards of 500,000 people during 2006, although often only temporarily. New displacement in the south-east Asian region – mainly in the Philippines, Burma, and Timor-Leste, where 15 per cent of the total population fled their homes – put the total number of newly displaced in Asia at close to 900,000. For the first time since 2001, the total number of IDPs in the region reached the 3 million mark. In comparison, the number of refugees originating from Asia remained at 2.9 million.

New or recent peace processes in the region yielded positive results and allowed for the return of tens of thousands of people. In Nepal, a peace agreement between the Maoist rebels and the new government encouraged thousands of people to return to their homes, while

in Aceh (Indonesia), displaced people continued to return to their villages in the wake of the August 2005 peace deal, encouraged by improved security conditions and positive political developments. Overall, however, return movements in the region were more limited than in previous years. This was mainly due to the fact that IDPs originating from areas where conflict had produced large populations of displaced people (such as Afghanistan, Indonesia and the Philippines) have now mostly returned, despite conditions that are often not conducive to sustainable reintegration.

Firmly committed to the principle of sovereignty, most Asian countries view internal displacement as a strictly domestic matter, ranking low on the national priority list. At the regional

level, there were no real steps in 2006 towards an increased involvement in the issue. Non-interference remained a fundamental principle of inter-state relations in Asia and there is no agreement on considering internal displacement as a matter of regional concern. By and large, displaced populations are largely dependent on the goodwill of their governments, whose response varies greatly from one country to another.



Causes and background

Internal displacement in the region is mainly due to armed conflicts between government forces and insurgent movements. These "vertical" conflicts are either fought on the basis of ideology – as in Nepal, Afghanistan and the Philippines (where the communist NPA party battles the government) or with the aim of gaining control over resource-rich territories and resisting the central government's assimilation policies as in Sri Lanka, the northeast of India, the Mindanao region of the Philippines, Burma, Aceh and Papua in Indonesia, and Balochistan in Pakistan. They have, in many cases, lasted for decades and produced successive generations of internally displaced people.

Often displacement has followed outbreaks of violence between majority ethnic groups and those

excluded from the general development process. Indeed, the social, economic and political marginalisation of ethnic minorities, together with land issues, has often been central to the growth of tensions that eventually result in displacement. When migrants from a minority ethnic group and/or religion make up a significant proportion of the population and are perceived as being more successful or having better access to land and employment opportunities, this often fuels perceptions of inequality and injustice.

Development policies and projects (including forced relocation or large population transfers) aimed at increasing control over territory have often planted the seeds of future conflict. In many regions of Indonesia, the Philippines (Mindanao) and Bangladesh



Ethnic Tamils flee from Tamil rebel territory to government-controlled areas. (Photo: Reuters, courtesy www.alertnet.org)

(Chittagong Hill Tracts), state-sponsored relocation programmes significantly altered the demographic balance between local populations and settlers, the latter gradually gaining an economic and territorial predominance resented by the former.

Relocation projects have in the past displaced millions in Asia, and development policies that have failed to find durable solutions for those affected sometimes bear significant responsibility for having created the conditions leading to conflict and displacement. Development projects continue to represent a major direct cause of displacement in Asia. Although no figures are available, it is estimated that millions of people are forced from their land and homes each year due to development projects linked to water supply (dams, reservoirs), urban infrastructure (roads, highways) and energy needs (mining, power plants). Ethnic minorities and indigenous groups tend to be disproportionately affected – they experience traumatic relocation and impoverishment and often have to wait years before receiving compensation (if, indeed, any is ever forthcoming). Nearly all countries in the region are affected by this type of displacement, which is particularly acute in countries with fast-growing economies such as India, the Philippines, Indonesia and China, where the Three Gorges Dam (the largest hydro-electric dam in the world, completed in May 2006) has already displaced more than a million people²⁴.

Natural disasters are yet another major source of displacement in the region. During 2006, millions of people were displaced by the earthquakes, floods, storms and volcanoes that routinely affect the region. Despite the largest humanitarian and reconstruction

effort in history, hundreds of thousands of people displaced by the Indian Ocean tsunami at the end of 2004 continued to suffer from its tragic consequences with inadequate housing and lack of access to land²⁵. In Pakistan, tens of thousands of people also continue to live in camps after the earthquake that hit Kashmir in October 2005. And in Aceh, almost exactly two years after being devastated by the tsunami, torrential rains and floods forced more than 400,000 from their homes in December 2006.

New conflict-related displacement

Up to 900,000 people were newly displaced in 2006 by several developments: a sudden deterioration of the protracted conflict in Sri Lanka, and fighting between government forces and insurgents in the Philippines, Afghanistan and Pakistan. A new crisis also emerged in Timor-Leste, where 150,000 people fled their homes following violence in Dili, the capital.

Following a dramatic escalation of the armed conflict between the Sri Lankan government and the Liberation Tigers of Tamil Eelam (LTTE) in April 2006, almost 4,000 people were killed and more than 200,000 displaced, mainly in the country's north and east. The deliberate targeting of civilians by both sides and the limited access provided to areas of displacement have raised serious protection and humanitarian concerns – not only for the newly displaced but also for the hundreds of thousands uprooted earlier in the conflict and by the 2004 tsunami. As of the end of 2006, the total number of conflict-induced internally displaced people in Sri Lanka was estimated at 500,000.

IDPs from Muttur at a makeshift camp near Trincomalee, Sri Lanka.
(Photo: Norman Ng, UNHCR)



Four years after officially gaining independence, violence and displacement again hit Timor-Leste. Unrest began in February 2006, when demonstrations by disgruntled soldiers claiming ethnic-based discrimination culminated in a deadly riot at the end of April. Fighting at the end of May between security forces and rebel troops added to widespread insecurity in Dili and forced an estimated 150,000 people to leave their homes, seeking refuge in and around the city. Following the intervention of an Australian-led international police force to restore law and order, the majority of displaced people were able to return home in a matter of months. But at the end of the year, tens of thousands still remained in camps, either too afraid to return amid volatile security conditions or else unable to do so because their houses had been destroyed during the April rioting.

In Afghanistan, internal displacement was again on the rise during 2006, mainly as a result of an upsurge in fighting between July and November in the south of the country between NATO troops and Taliban insurgents. According to the government, some 20,000 families were displaced in the southern provinces of Helmand, Kandahar and Uruzgan. It is uncertain how many remained displaced by the end of the year. The deteriorating security conditions in the south have to be seen in the context of growing popular disillusionment with the slow pace of reconstruction and development progress, which has fuelled dissatisfaction within the local population and paved the way for local insurgent groups.

On the other side of the border, in the North Waziristan region of neighbouring Pakistan, army

operations begun in 2004 to target Taliban-connected militants continued during 2006, displacing thousands of civilians. Elsewhere in Pakistan, massive temporary displacement of civilians was reported in the resource-rich province of Balochistan, following intense clashes between government forces and local militant groups fighting for more autonomy.

In the Philippines, close to 100,000 people fled their homes during the year because of fighting between government forces and various rebel groups. The main incident occurred during the summer when rebels from the Moro Islamic Liberation Front (MILF) clashed with paramilitary forces in Maguindanao province on Mindanao Island, displacing an estimated 40,000 people from their homes. In addition to the year's new displacements, tens of thousands of people remain displaced (or live in situations akin to displacement) due to past conflicts, mainly in the Muslim-populated areas of Mindanao, where close to 2 million people have been displaced since 2000.

Protection and humanitarian concerns

Internally displaced people in Asia are vulnerable to a variety of threats during displacement. Certain humanitarian concerns – including lack of food, poor shelter or limited access to health care – were shared by all groups forced to flee in the region. On the other hand, immediate threats to the physical security of the displaced were only reported in a limited number of Asian countries during the year. These included Burma, Sri Lanka, India and Indonesia's Papua province.



Afghan IDPs squatting in the former Russian Cultural Centre in Kabul.
(Photo: S. Schulman, UNHCR)

In most cases, both government and insurgent forces were responsible for the abuses.

The situation in Burma is widely regarded as Asia's worst. During 2006, the government's strategy of forced assimilation and repression of autonomy movements, in particular the Karen National Union, resulted in the displacement of the populations of more than 200 villages and the burning of fields and crops. It is estimated that at least 82,000 people were displaced by a year-long military offensive during 2006²⁶. In an environment where neither protection nor assistance is available, the displaced in hiding are exposed to a variety of threats which include lack of food and medical care, landmines, and shooting on sight by Burmese army patrols.

Any improvements observed since 2002 in terms of violence suffered by the displaced in Sri Lanka was reversed during the last year by the dramatic deterioration of security there. The worsening human rights situation was at times the direct result of military strategies used against civilians, including deliberately targeting them, preventing them from leaving conflict areas, and using them as human shields.

In India's central Chhattisgarh state, Maoist rebels attacked a relief camp hosting 4,000 displaced people in July 2006, killing or wounding more than 50 residents and abducting another 41²⁷. There are no estimates currently available on the number of people displaced by the Maoist militants or by government

counterinsurgency operations, but it is believed that tens of thousands of people are affected, mainly in Chhattisgarh and Orissa state.

Tension has remained high in Indonesia's Papua province throughout the year. In March 2006, a protest against the US-operated Freeport mining company degenerated into riots causing up to 1,200 students to seek refuge in the hills surrounding Jayapura, the province capital. Fleeing violent retaliation from the Indonesian military, the displaced students were reportedly left without food and in need of medical attention. No information was available on the situation and needs of those displaced, but local human rights organisations fear that many have been subject to serious abuses by the police. At the end of the year, counterinsurgency operations conducted by the military against separatist rebels in the central highlands forced an estimated 5,000 people to seek refuge in the jungle, where at least four people died as a result of lack of food and medical attention.

Displaced people and host communities trapped in zones of conflict or in areas where humanitarian access is severely restricted were particularly vulnerable to nutritional and health hazards. When there was a lack of access to the affected population, this was both a barrier to getting reliable information on protection and assistance needs and hindered the delivery of the needed assistance. In Sri Lanka, both the government and the LTTE blocked access to, and information flow from, the fighting areas in the north and east where at the end of 2006 up to 130,000 people were trapped, cut off from international scrutiny and from adequate assistance. A 2006 report by a Thai NGO²⁸ revealed that mortality and malnutrition rates in Burma were among the worst in the world, in particular in areas with large concentrations of IDPs in the Karen, Karen and Mon states in the east of the country. Invoking security as the reason, the Pakistani government at the end of 2006 refused access to conflict areas in southern Balochistan province and prevented humanitarian assistance from reaching thousands of internally displaced people, a majority of them women and children who were left without shelter, food and other essentials; an estimated 28 per cent of children under 5 were described as acutely malnourished.²⁹

Many internally displaced people in Asia have been displaced for years with little if any perspective for return. The lack of prospects for the future is leading to serious psycho-social problems among long-term IDPs. Living in relocation sites or makeshift camps in miserable conditions, with no opportunity to earn a

Displaced children in Kabul, Afghanistan.
(Photo: S. Schulman, UNHCR)



living, the displaced are often entirely dependent on relief assistance. An estimated 67,000 Sri Lankan IDPs live in so-called welfare centres, which have become de facto permanent homes. Poor subsistence conditions prevail in these squalid, overcrowded camps, with little access to basic services such as health care, sanitation and clean water, and education. In India, IDPs in Assam, Tripura and Indian-controlled Jammu and Kashmir have lived for years in relief camps that are deprived of adequate social services, including medical care, clean water and education.

Durable solutions

Some returns were possible during 2006, mainly owing to new peace processes or the consolidation of existing ones. Political developments in Nepal took a positive turn during the year: fighting between Maoist rebels and the government came to an end, and a comprehensive ceasefire was signed in November, allowing for the return of tens of thousands of displaced people. In Indonesia's Aceh province, the August 2005 peace agreement between the Free Aceh Movement and the government was reinforced by a stable security situation, and successful local elections were held at the end of the year. This allowed for further returns, both in tsunami-hit areas and also in former conflict-affected regions. In both countries, however, challenges to the safe and sustainable return of the displaced remained significant, in particular in Nepal, where returns were hampered by continued abuses by the Maoists and a lack of government assistance in areas of return.

Often excluded from the official statistics, returned or resettled populations frequently continue to live in situations akin to displacement, with inadequate housing, little access to land and means of livelihood, and with specific vulnerabilities linked to their displacement. In the overwhelming majority of cases, displacement has caused severe impoverishment, either because the means of livelihood have been lost or because assets have been depleted during displacement. Even when it is available, assistance provided is generally insufficient to ensure sustainable return in areas devastated by years of fighting and underdevelopment. In Afghanistan, for example, where close to 500,000 displaced people have returned since 2002, unemployment, a lack of socio-economic progress, and unresolved issues linked to land and property have undermined the sustainability of returns. In some former high-conflict districts in Aceh, where close to half the population fled violence during the past decade, available assistance has been minimal or non-existent, pushing hundred of thousands below poverty level³⁰.

In Indonesia's Central Kalimantan province, where the majority of the estimated 150,000 Madurese displaced back to their home island by ethnic riots in 1999 and 2001 have returned in recent years, returnees are reported to live as second-class citizens, barred from returning to certain specific neighborhoods or from taking advantage of certain employment opportunities. Most Madurese have never received compensation for lost or destroyed property³¹.



IDPs in a camp near the port in Dili, Timor-Leste. (Photo: Norman Ng, UNHCR)

National and international response

IDP protection remains a low priority for most governments in Asia; they continue to consider internal displacement as a strictly domestic issue, generally subordinate to economic and development objectives or geopolitical and military strategies. Overall, the level of protection and assistance in the region is highly variable. Some governments have made efforts towards a more systematic, predictable response to IDP needs, through the adoption of national policies or assistance strategies. Most countries provide assistance on an ad-hoc basis, sometimes with the help of international aid agencies, while others deny the issue altogether and leave the displaced without any assistance or protection.

In recent years, several countries, including Sri Lanka, Indonesia, Afghanistan, and, in 2006, Nepal and Timor-Leste, have adopted IDP policies or strategies. But in most cases, the policies adopted were either not in line with international standards such as the UN Guiding Principles on Internal Displacement, or their implementation was fraught with problems due to corruption or lack of financial resources.

In March 2006, the government of Nepal issued a new IDP policy, but as with previous plans, this one failed to recognise people displaced by state forces, and it also lacked implementation guidelines. The policy was put on hold pending its revision and the adoption of an implementation plan, and had not been approved

by the end of the year. In Sri Lanka, a national IDP relief strategy was adopted in the wake of the 2002 ceasefire, but its implementation has often been subordinate to political considerations³². In Indonesia, where an IDP policy was put in place in 2001, corruption and coordination problems at both the provincial and district level have prevented its full implementation. More than five years later, displaced people in former conflict areas such as Central Sulawesi, Maluku and North Maluku remain in need of housing and livelihood assistance.

Some countries refuse to even acknowledge the existence of internal displacement emergencies – generally because of their involvement in the forced displacement of their own people – and do not allow access to external actors. As a result, little is known about the extent of the human rights and humanitarian needs of the displaced in these countries, and no assistance is reaching these populations.

The military junta ruling Burma continues to refuse any external assistance, and even denies the existence of any humanitarian crisis. In Indonesia's Papua province, a ban on foreign media and NGOs has, since 2003, prevented any independent monitoring of the human rights and displacement situation, which is feared to have deteriorated in the context of an increased military presence during last year. Limited humanitarian access to the North Waziristan region and to Balochistan province has left tens of thousands without assistance. In Bangladesh's Chittagong Hill Tracts, the government has done little to address the needs of up

to 500,000 IDPs and has discouraged the involvement of donors and international actors because of what it terms the “sensitivity” of the issue.

In countries affected by man-made or natural disasters, the UN plays a major role in helping deal with the resulting displacement emergencies. During 2006, the UN continued to conduct large humanitarian and reconstruction operations linked to the 2004 tsunami, mainly in Aceh and Sri Lanka. In Timor-Leste, the UN reacted swiftly to the displacement crisis, launching a \$19 million Flash Appeal and establishing a new UN mission in August 2006 for an initial period of six months. In Nepal, the encouraging response from donors to protection activities listed in the 2005-2006 Appeal was not matched in other sectors vital to the assistance and rehabilitation of the displaced.

In India, Burma, Bangladesh and Uzbekistan, the UN did not address internal displacement, mainly because of government opposition. The UN Security Council formally reviewed the human rights situation in Burma three times in 2005 and 2006, but failed to agree on a resolution condemning the government’s attack on civilians in ethnic minority areas. The UN’s cluster approach has been applied to three countries in this region, Pakistan, the Philippines and Indonesia – in all cases to deal with displacement situations caused by natural disasters.

This past year was one of mostly negative developments in Asia. With up to 900,000 people displaced during the year and less than half a million able to return to their homes, internal displacement was on the rise for the first time since 2001. While many protracted displacement and human rights crises, such as in Burma, Papua and the Philippines, saw little improvement, others, such as in Sri Lanka and Pakistan, deteriorated significantly. On a more positive note, the end of fighting in Nepal and the consolidation of the peace process in Indonesia’s Aceh province have allowed for the gradual return of the displaced and have demonstrated that even the worst displacement situations can find solutions when the desire for peace is driven by sufficient political will.

It must be remembered, however, that the end of fighting rarely coincides with the end of displacement. Even when the political settlement of a conflict does take the concerns and needs of IDPs into account, there is usually a long way to go before this translates into concrete results. In several countries in the region, displaced people remain unable to return home, or live in situations akin to displacement, for years after the conflict has ended.

IDPs uprooted by the violence that erupted in Dili, Timor-Leste, in 2006.
(Photo: Mateusz Tuniewicz, IDMC)





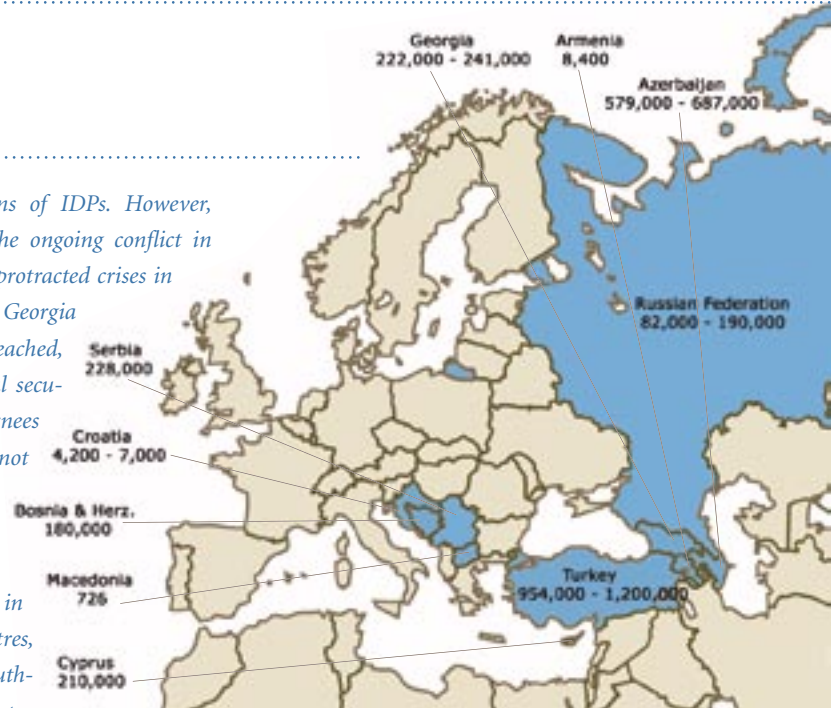
Displaced Roma boy from Kosovo in an informal settlement in the suburbs of Podgorica. (Photo: UNHCR / Carlos Cazurro)

Europe

In Europe, where internal displacement situations exist in the Balkans, the Caucasus, Turkey and Cyprus, the number of IDPs has been slowly falling over the past several years. However, during 2006, the number of IDPs remained virtually unchanged at approximately 2.8 million. There were several positive developments with regard to the situation of IDPs in Europe in 2006, although many challenges remain. Some governments demonstrated an increased political will to address the IDP situations in their countries. Turkey and Georgia elaborated national strategies to better the situation of IDPs, while Azerbaijan continued implementing its programme to improve the living and socio-economic

conditions of IDPs. However, resolutions to the ongoing conflict in Russia and the protracted crises in Azerbaijan and Georgia have not been reached, and the physical security of returnees therefore cannot be guaranteed. IDPs continue to face poor living conditions in collective centres, especially in south-eastern Europe, Azerbaijan, Georgia and Russia. IDPs also face significant obstacles to return and local integration, such as

discrimination, lack of livelihood opportunities, poor infrastructure and segregated education.



Characteristics and causes

Displacement in the region tends to be protracted and to have its origin in conflict. The average duration of displacement is 14 years, with the exception being Cyprus, where displacement has continued for more than 30 years. Despite the fact that peace and ceasefire agreements have taken effect in some countries, displacement persists. Causes are multiple: in some cases, violence continues in spite of the agreements; in others, it is a matter of lingering inter-ethnic hostility and physical insecurity. For these reasons, as well as the fact that in many areas the conditions for return do not exist, remaining IDPs are reluctant or unable to return to their places of origin. Sometimes those who have managed to return have later been displaced again after new hostilities have broken out. One consequence of this protracted displacement is that IDPs in Europe have found a broad range of coping mechanisms, rendering IDP populations in any given country far from homogenous.

While the total number of IDPs in the region remained unchanged in 2006, the figure grew in some areas, while shrinking in others. For example, the num-

ber of IDPs increased in Azerbaijan due to inherited IDP status and in Turkey the government figure went up due to the collection of updated data. But at the same time, the IDP numbers in Russia decreased due to a deregistration exercise by the authorities. In other countries, such as Cyprus, Georgia and Armenia, no significant change in IDP numbers took place, and in Bosnia and Herzegovina, Croatia, Macedonia, and Serbia there was a slight decrease. The region has about three times as many IDPs as it does refugees originating from the area (close to 1 million in 2005)³³.

Causes of displacement in the region include independence claims, territorial disputes, inter-ethnic violence and struggles for political recognition. Following the dissolution of the Soviet Union, a number of national minority groups – including the Abkhaz and Ossetians in Georgia and the Chechens in Russia – claimed their right to self-determination. Rejection of these independence claims by central governments led to internal armed conflicts and subsequent major displacement. The struggle of the Kurds to obtain political recognition and rights in Turkey since the 1980s has also



Displaced man with a bomb shell that destroyed his village in southeastern Turkey. (Photo: Ali Rizat Kutlu)

caused large-scale internal displacement as a result of armed conflict between government forces and the Kurdistan Workers' Party (PKK) in the southeastern part of the country. Massive displacement was also the result of territorial disputes between Armenia and Azerbaijan over Nagorno-Karabakh in 1988, and between Turkey and Cyprus over northern Cyprus in 1974, both of which quickly escalated into armed conflict with a strong ethnic basis. Inter-ethnic violence also erupted in the former Yugoslav republics of Bosnia and Herzegovina, Croatia, Serbia and Macedonia during the break-up of Yugoslavia, at times taking the form of inter-ethnic cleansing, displacing millions of people.

National responses to internal displacement

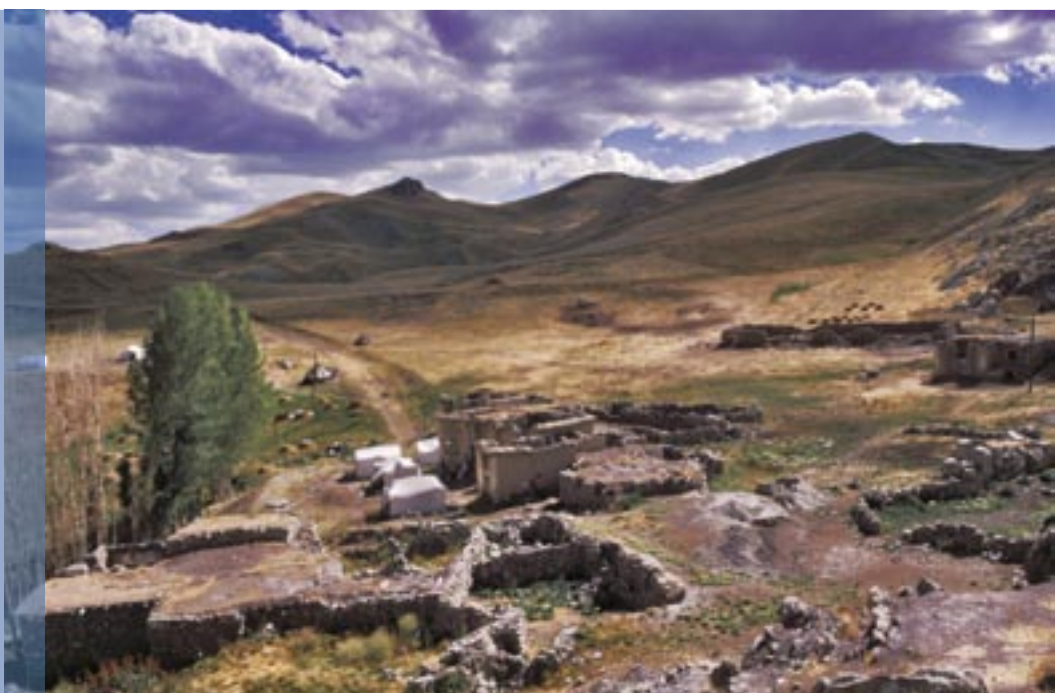
Georgia and Turkey demonstrated significant political will to address their respective internal displacement situations in 2006. In Georgia, the government drafted a National Strategy for Internally Displaced Persons, a framework that aims to improve the current living

conditions of IDPs while at the same time reaffirming the right of IDPs to return to their original homes. This was done in consultation with local and international actors, including IDPs themselves. The Turkish government also issued a national framework aimed at improving the situation of IDPs, as well as the findings of a survey by Hacettepe University on migration and displacement. The survey found that up to 1.2 million people had been displaced during the conflict. The government in the eastern Turkish province of Van adopted an action plan to address the internal displacement situation in the province. Van is one of the 14 provinces affected by the armed conflict between the PKK and the government security forces.

Commenting on the Georgian National Strategy for IDPs, the UN Representative on the Human Rights of IDPs, Walter Kälin, welcomed the fact that although the implementation plan for the strategy had not yet been completed, the strategy adheres to international human rights law as well as to the Guiding Principles on Internal Displacement. The Representative also remarked positively on the action plan for IDPs in Van province in Turkey, since all stakeholders were involved in the development of the plan, activities and results are clearly set out according to a calculated timeframe, and responsible agencies are identified together with their corresponding budgets. But the Turkish government has not yet developed a national IDP action plan, nor has it established a governmental IDP structure with adequate resources and staff to coordinate its national response.

Several other countries demonstrated the political will to address their IDP situations. In Azerbaijan, the government continued with the implementation of its 2004 State Programme on the Improvement of Living Conditions and Employment of Refugees and Displaced Persons by resettling IDPs to purpose-built settlements. In Serbia, a Protocol on Return to Kosovo was signed in June 2006 by the UN Mission in Kosovo and the governments of Serbia and Kosovo. The protocol emphasizes the voluntary nature of return and outlines procedures to ensure a durable return in safety and dignity. In Bosnia and Herzegovina, the relevant government ministries and UNHCR agreed on guidelines for determining the status of displaced persons to facilitate a consistent approach in the review of IDP cases. And in Russia the federal government identified the return of IDPs to the Chechen Republic as one of its priorities, and also issued an order that the conflict in North Ossetia be resolved and the resulting IDP situation be addressed. However, by the end of 2006, Russia had not realised this goal.

IDPs in southeastern Turkey live in tents next to their ruined village, to which they return temporarily every summer. (Photo: Ali Rizat Kutlu)



National efforts for property restitution and compensation for displaced persons was also a significant issue in Europe in 2006 (see Housing, Land and Property chapter). In March, a property commission was established by the Turkish authorities in northern Cyprus as ordered by the European Court of Human Rights (ECHR). After reviewing one of the decisions of this commission, the ECHR concluded that, in principle, the requirements of its decision had been fulfilled³⁴. In Turkey, the government extended the deadline for submitting compensation applications to January 2007, but NGOs have called for at least an additional year. While Turkey's compensation law is a significant step in addressing property loss among displaced people, IDPs have not yet widely benefited from the law³⁵.

The government of Chechnya in Russia also took measures to address property loss among IDPs. Residents of temporary accommodation centres were listed as priority recipients of compensation for lost housing and property, and displaced families who had never owned property were put first in line for land plots. However, only those with fully destroyed property could apply for compensation. Furthermore, the processing of compensation payments for IDPs in Russia was on hold for all of 2006 while the compensation commission awaited approval of the final list of recipients and the provision of additional federal funds. From 2003 to the end of 2006, approximately 46,000 citizens – some of them IDPs, some of them not – received compensation for lost housing and property, though recipients often

did not receive the full entitlement, and compensation levels are not commensurate with the actual cost of construction materials.

Significant political changes affecting European IDPs occurred in 2006, most notably in June when the parliament of Montenegro declared independence from Serbia following a referendum. The status of Montenegro's IDPs, who originate from Kosovo, formally a part of Serbia, remained ill-defined by the end of the year, as they could no longer be considered internally displaced within the same country. Referendums on the issue of independence were also held in the secessionist territories of South Ossetia, Georgia and Nagorno-Karabakh, Azerbaijan, the results of which showed the population's desire for independence, though the international community did not recognise these referendums as legitimate. Discussions on the political status of Kosovo also continued in 2006, and it was feared that the decision scheduled for early 2007 might induce further displacement.

While a peaceful resolution to conflicts in the Balkans was eventually found, such has not been true in the Caucasus. Negotiations between Azerbaijan and Armenia on resolving the conflict over Nagorno Karabakh continued in 2006, and although the two parties appear to have come closer to an agreement on some issues, a number of impasses remain more than a decade after the ceasefire. Resolutions to the conflicts in Georgia and Russia also have yet to be worked

Settlement of Roma who have been displaced from Kosovo to Montenegro. (Photo: Carlos Cazurro, UNHCR)



out. The Caucasus currently has no prospect for accession to the European Union and the international and regional communities are divided over what the political future of the area should be. This is in contrast to the Balkans, where the prospect of EU accession was a motivating factor in improving IDP situations.

Another political development in Russia was the passage of a law requiring non-governmental organisations to re-register with the government and report on activities and sources of funding. One of the results of the NGO re-registration exercise was the interruption of assistance to some IDPs, such as regular medical examinations and garbage pick-up at collective centres.

The year 2006 also saw significant developments in the area of shelter for IDPs. In Georgia, the ongoing process of privatisation of state property has increasingly created difficult situations for the many IDPs residing in newly privatised buildings. The compensation provided by private investors has on several occasions proven to be insufficient to secure adequate alternative accommodation. In some cases, those who refused to move were forcibly evicted. A campaign by the Russian government to promote return to Chechnya continued targeting temporary settlements and did not always respect the principle of voluntary return. Several temporary settlements were closed down, and IDPs deemed to own habitable housing in Chechnya were de-registered. According to the UN Office for the Coordination of Humanitarian Affairs in Russia, initial implementation of this plan was “imperfect” in that verification of original housing was not accurate and

the wishes of IDPs unwilling to return were disregarded (although these problems were later addressed by the government)³⁶.

Similarly, the government in Macedonia announced its plan to close collective IDP centres and to relocate the residents to subsidised private accommodation. But many IDPs refused this offer, saying that they would prefer to receive compensation for their destroyed homes.

Durable solutions

In late 2004, a process aimed at ending displacement in the Balkans by 2006 was launched by UNHCR, the EU, the Organisation for Security and Co-operation in Europe together with the governments of Bosnia and Herzegovina, Croatia and Serbia-Montenegro. This initial objective was not reached, but the regular decline of return in the area implies the process is now mostly residual (with the exception of Kosovo, where large numbers of people are still displaced and security remains one of the main obstacles to return).

In Serbia, return figures declined from 2,100 in 2005 to 1,350 in 2006, while only 6 per cent of those displaced from or within Kosovo have returned to their place of origin. Impunity for war crimes and ethnically motivated crimes, including house looting, is widespread and threatens to push returnees and ethnic minorities who never left into displacement. Numbers of returns to Kosovo will likely remain low until its political future is determined in 2007. While more than half of IDPs



Internally displaced Chechen family living in a box-tent built with international support. (Photo: T. Makeeva, UNHCR)

and refugees have returned to their homes in Bosnia and Herzegovina since the end of the conflict in 1995, the number of returns has decreased substantially over the past several years. Between 2004 and 2005, the number of returns dropped from 18,000 to 5,100; and the number decreased even further in 2006 with some 3,000 displaced persons returning to their place of origin. A property repossession scheme was the catalyst for return in Bosnia and Herzegovina, where, by early 2006, the restitution process was nearly complete. In Croatia, house looting and devastation of repossessed properties combined with long delays in reconnecting houses to water and electricity made living conditions particularly harsh for returnees. However, one incentive for return to Croatia has been the government reconstruction of homes damaged by the war. At the beginning of 2006 the Croatian government had reconstructed 138,000 of 200,000 damaged homes.

Returns were also under way in other areas of Europe in 2006. The impetus for return in Russia was a vigorous government promotional campaign, as well as signs of reconstruction in the Chechen Republic. Approximately 3,300 IDPs returned from Ingushetia to the Chechen Republic and more than 700 from Dagestan to the Chechen Republic. In Azerbaijan, in the absence of a political solution to the conflict with Armenia, return has not been an option for the majority of IDPs. There have been only individual instances of families returning to “liberated” areas. These returnees have maintained their IDP status since the government is unable to guarantee their physical security. An estimated 45,000 IDPs are believed to have permanently or semi-permanently returned to Gali district of Abkhazia during the past few years.

Return of IDPs to areas where they constitute an ethnic minority is also an issue in Europe. In Bosnia and Herzegovina, the majority of returnees in 2006 settled in areas where they were an ethnic minority. Serbia witnessed a continuing decline in returns of minority Serbs and Roma to Kosovo, due to the March 2004 violence directed against Kosovo Serbs and Roma which displaced approximately 4,200 persons. Those who returned settled almost exclusively in Serb majority areas in Kosovo and in rural municipalities. In Russia, ethnic Ingush IDPs from North Ossetia pushed the authorities to facilitate their return, resorting to a hunger strike and a demand for a meeting with the presidential envoy for the region, among other activities. Despite measures taken by the North Ossetian authorities to address the IDPs’ concerns, the return of these IDPs to their areas of origin is still a contentious issue.

While some governments have taken initiatives to promote the local integration of IDPs, others have discouraged this. In the case of Serbia, the Protocol on Return to Kosovo mentions the possibility of IDPs settling in a place different from either their area of origin or their area of displacement. This provision appears to reflect the authorities’ increased acceptance that return to Kosovo may be unlikely and, further, the belief that IDPs’ desire to resettle elsewhere within Kosovo should be respected and supported financially.

Although the Ingush government in Russia has zoned several areas for new village developments and allo-

Azeri IDPs living in abandoned train wagons.
(Photo: Andy Johnstone, Panos)



cated plots of land to individual families, it has not announced any plans to build a road to these villages or install basic infrastructure. As a result, the remaining IDPs in Ingushetia are without land, a permanent home, assets or any traditional safety net.

With return as the only durable solution under discussion in Azerbaijan, the authorities have prevented IDPs from integrating locally by requiring them to register at both their original and current place of residence, an exercise that proves to be extremely difficult. The result is that IDPs are often unable to obtain employment, education and health care on equal terms with the local population.

Internal resettlement of IDPs was the approach of only one government in 2006. The Azeri government continued to demonstrate the political will to address its internal displacement situation and resettled IDPs to purpose-built settlements, a programme that will be complete by the end of 2008. In 2006, the government allocated approximately \$210 million for this programme, in addition to funds from the Asian Development Bank and the Islamic Development Bank. Although this programme has the potential to be a durable solution, it cannot be considered one right now since the government presents it as a temporary remedy. Additionally, IDPs are not given current and objective information about the settlement area, they are not given full property rights to the dwellings to which they are resettled, and the voluntary nature of the resettlement has repeatedly been questioned.

Gaps in national responses

Despite considerable positive developments in the national response to internal displacement in Europe in 2006, gaps remain. Living conditions of IDPs in all collective centres in Europe remain deplorable. Often lacking proper sanitation, running water, regular electricity, adequate insulation and proper maintenance, living conditions in these centres render IDPs more vulnerable to infectious diseases and other health risks such as depression and social isolation. Many IDPs are also denied personal documentation, which prevents them from accessing the benefits to which they are entitled. For example, Roma IDPs in Bosnia and Herzegovina and Serbia, living in improvised settlements and lacking any official address, are often unable to obtain an IDP card, which is needed to obtain social assistance. Information on the situation of IDPs in some countries, such as Armenia, is completely lacking.

Another issue in some countries is that displaced children are educated separately from others, thus hindering their local integration and the reconciliation process. While in some cases, such as in rural IDP settlements, other options may not be feasible, segregated classes remain problematic where children are separated based on their IDP status, as in Azerbaijan and Georgia, or their language, as in some parts of Bosnia and Herzegovina, Croatia, Serbia and Kosovo.

An additional limitation on IDP protection is the weak rule of law in most countries in the region, which

denies IDPs their right to an effective judicial remedy for disputes. The most serious situation is in Chechnya, where the High Commissioner for Human Rights, Ms. Louise Arbour, in her visit of February 2006 concluded that the Chechen Republic is ruled by force and not by law³⁷. According to the UN Office for the Coordination of Humanitarian Affairs, the Russian authorities have recognised the weakness of the rule of law in the Chechen Republic³⁸. In addition to these gaps in the national response to internal displacement, several other obstacles stand in the way of durable solutions for IDPs in Europe.

The absence of peaceful resolutions to ongoing conflicts poses a major challenge to return and local integration in the Caucasus, Turkey and Cyprus, as does the presence of landmines and, in the case of the Caucasus and Turkey, the continuation of armed hostilities.

Another major obstacle to sustainable return is inadequate property restitution and compensation. Greek Cypriots are not allowed to hand down property if their heirs are not resident in the north, while IDPs in Turkey face practical and legal obstacles in applications for property compensation.

Continued ethnically based hostility is also an obstacle to return in some European countries. In Croatia, the rate of return has been much lower among ethnic Serbs because legislation and assistance has discriminated against them in areas such as property repossession, reconstruction, access to citizenship and pensions. It is only after most reconstruction was completed for ethnic Croats that the government started including a majority of Croatian Serbs into their house reconstruction programmes, targeting returning IDPs and refugees. Many of the displaced, an overwhelming majority of them Serbs whose occupancy rights were terminated during the war, still have no way to repossess their homes or to be compensated. Up until now, return to North Ossetia in Russia has been virtually individual, and the authorities have been trying to completely close some areas for return, declaring them to be environmental reserves.

The lack of adequate living conditions in return areas is also a major obstacle. In Bosnia and Herzegovina, the access of returnees to employment, education, social and economic rights and justice remains dependent on their ethnicity since there is a lack of inter-entity cooperation on these issues. The poor economic situation and/or absence of basic infrastructure in the Croatia Danube region, the north Caucasus in Russia, and return areas in Georgia and Turkey are also strong disincentives for return.

International response

European organisations and institutions such as the European Union and the European Commission, the Council of Europe, the European Court of Human Rights and the Organization for Security and Cooperation in Europe have all played a significant role in monitoring the rights of displaced people and minority groups in Europe. The European Union continues to provide recommendations on governance practices and to be one of the main donors in the region. The UN and international donors also contribute significant financial support to address internal displacement situations in Europe.

The European Court of Human Rights issued decisions on various IDP property-related cases in Europe in 2006. In the controversial *Blecic v. Croatia* decision of 8 March 2006, it ruled out an attempt to challenge the termination of occupancy rights in Croatia, reasoning that the terminations occurred before Croatia accepted the court's jurisdiction. Regarding Turkey, the ECHR found that the compensation law provided an effective legal remedy that applicants must exhaust before filing a case with the European Court.

The Council of Europe issued several documents related to IDPs in 2006. It set forth recommendations for Azerbaijan, Armenia and Georgia regarding their displaced communities; these included the need to reach a peaceful settlement of conflicts, pursue local integration and refrain from using IDPs for political aims. The Council of Europe also passed a resolution on the implementation of the Framework Convention for the Protection of National Minorities in Kosovo, stating the need to take into account the rights of national minorities and to respect the right to return. The Council also published a Stability Pact for the South Caucasus that addressed the issue of conflict resolution.

While the UN led the international community's efforts at finding a peaceful resolution to the Georgian-Abkhaz conflict, the OSCE played a mediator role in negotiations toward the resolution of the Georgian-South Ossetian conflict and other conflicts in the South Caucasus.

For internally displaced people in Europe, 2006 was a year of mixed developments. While some governments took significant measures to improve the situations of IDPs, these efforts have yet to be fully implemented. In the end, durable solutions in the region depend on conflict resolution. Since many obstacles litter the road to long-lasting solutions – especially with respect to the unresolved conflicts in Azerbaijan, Georgia and Russia – internal displacement for the most part continues, with limited opportunities for IDPs to return home, integrate locally or settle elsewhere.

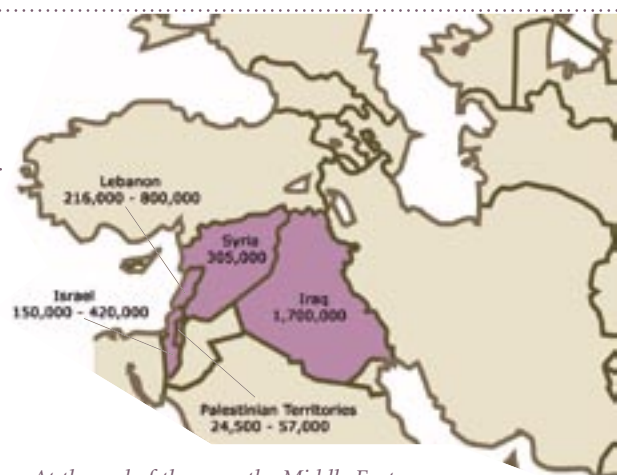


A Lebanese girl stares out at a neighbourhood destroyed by an Israeli air strike in the southern Lebanon town of Tyre. (Photo: Nikola Solic, Reuters, courtesy www.alertnet.org)

Middle East

An increase in human rights abuses and an escalation in armed conflicts caused new population displacements across the Middle East in 2006. People were displaced by an outbreak in cross-border conflict between Hizbollah and Israel, as well as the escalation of conflict in Iraq and the Occupied Palestinian Territories. The most systematic and widespread violations occurred in Iraq where people suffered the effects of ongoing military operations and a rise in sectarian violence in 2006. The violence, layered onto years of prolonged displacement, war and occupation, led to a dire situation rife with human rights abuses. Renewed military operations and economic decline also led to an increase in the vulnerability of displaced people in the Palestinian Territories, all of whom have also suffered from long-term displacement and conflict.

The Middle East is the region with the most significant deterioration in its IDP situation in 2006. The region counted more than half a million more internally displaced people than the previous year, with close to 2 million people newly displaced in 2006. The most dramatic of these displacements occurred in Lebanon where an estimated 800,000 people were internally displaced during the period of a single month. In addition, new displacements during the year include at least 500,000 people in Iraq; 300,000 to 500,000 people in Israel; and several thousand people in the Palestinian Territories. A majority of displaced people returned to their homes in Lebanon following a UN-brokered ceasefire, while in Israel, all the people displaced in July and August have returned.



At the end of the year, the Middle East was home to an estimated IDP population of 2.7 million people. The region counted more than twice the number of refugees compared to IDPs, with a total refugee population of almost 7 million people originating from the region³⁹. Iraq remained the country with the largest IDP situation in the region, with a total estimated population of 1.7 million people displaced within the country by the end of the year. But systematic national IDP assessments are not being done, so figures may not reflect the reality on the ground.

Causes and areas of displacement

Human rights abuses and internal and international conflicts along political, religious and ethnic lines, as well as competition over land and natural resources, have been among the causes of internal displacement in the region. Armed conflicts and subsequent displacement have also led to the resettlement of populations along ethnic or religious lines.

In Iraq, human rights violations were perpetrated by all parties to the conflict, and there was a rise in inter-communal violence after the attack on the Al-Askari shrine in Samarra in February 2006. Nearly half a million Iraqis are believed to have fled their homes during 2006 as a result of greater insecurity and violence, including an increase in criminal gang and militia activity. Divisions, especially among religious communities, intensified, with reports of targeted abductions, assassinations and death threats used as tactics for forcible displacement. Both Shiite and Sunni Arabs fled their

homes for safety in areas where they are in the majority. Sectarian-induced displacement was particularly intense in mixed areas, such as in parts of Baghdad and Diyala. Other groups, including Christians, Palestinians, and Sabean-Mandeans, were also displaced due to intimidation and threats. Simultaneously, military operations led by the US-led Multi-National Force in Iraq and Iraqi Security Forces also continued to cause displacement.

The majority of displaced Iraqis were forced to leave their homes over a period of four decades during the regime of Saddam Hussein. The previous regime, dominated by Sunni Arabs, had pursued a policy of "Arabisation", expelling non-Arabs (including Kurds, Assyrians and Turkmen) from the oil-rich region of Kirkuk and replacing them with ethnic Arabs in an attempt to consolidate control over the region's natural resources. The government had also uprooted many Shiites liv-



A truck laden with IDPs makes its way north from the besieged village of Bent Jbail, a Hizbollah stronghold. (Photo: Jeroen Oerlemans, Panos)

ing in the southern provinces as punishment for their assumed opposition to the regime following the Gulf War in 1991.

In 2003, the US-led invasion of Iraq and the fall of Saddam Hussein's government made return possible for those forcibly displaced under the "Arabisation" campaign, as well for as other displaced Iraqis. However, the return of Kurds to Kirkuk and surrounding areas led to the displacement of the Arabs who had been relocated to these areas. While the original causes of displacement are no longer present, some people are being displaced for a second time. In addition to the ongoing conflict, insecurity and political instability, many people have not been able to return due to lack of housing and infrastructure in return areas.

During the summer of 2006, Israel launched widespread military operations in Lebanon after the Shiite organisation Hizbollah kidnapped two Israeli soldiers during border clashes in early July. Nearly 1 million people were displaced in Lebanon, the vast majority within the country. After a UN-brokered ceasefire in August, most of the displaced returned to their homes in south Lebanon and the southern suburbs of Beirut, but some 200,000 people remained displaced.

The main causes of internal displacement were indiscriminate attacks by Israel on civilians and civilian property, as well as a general climate of fear and

panic among the civilian population caused by warnings, threats and attacks by the Israeli armed forces.⁴⁰ Returns have been hindered by demolished homes and infrastructure, the presence of cluster bombs, and loss of livelihoods.

In addition, significant numbers of people remain displaced from the Lebanese civil war of 1975-1990 and from Israeli military operations in, and occupation of, part of south Lebanon until 2000. No updated, reliable survey exists to determine their numbers, which range from 16,750 to 600,000. Lack of adequate compensation and reconciliation are among the key factors preventing this group of displaced people from returning.

In Israel, several hundred thousand people fled the north of the country during the conflict with Hizbollah. Hizbollah fired thousands of rockets into northern Israel. Most of the rockets seem to have been directed at civilian areas; they hit pedestrians, hospitals, schools, homes and businesses. Following the August ceasefire, the majority of the displaced were able to return. Once home, many – especially children – had to cope with the trauma linked to displacement.

There was no significant improvement in the situation of the several thousand people who have remained displaced in Israel since the 1948 war. In the south of the country, Bedouin villagers continued to be under pressure from the authorities to leave their land. The Israeli government aims to build permanent settlements for the Bedouin living in the villages it considers illegal. The programme, which provides some compensation for displaced Bedouin, has met with strong resistance from the Bedouin community, which generally does not wish to move.

The year 2006 was also marked by the resumption of Israeli military operations in the Gaza Strip and, to a lesser degree, in the West Bank. In response to the abduction of an Israeli soldier and the repeated firing of rockets into Israel by Palestinian militant groups, Israel launched large-scale military operations in June in the Gaza Strip which caused serious damages to civilian infrastructure and destruction of thousands of homes. UN agencies estimate some 3,500 people were displaced during the summer of 2006. Another Israeli offensive on the town of Beit Hanoun in northern Gaza triggered the displacement of hundreds of Palestinians in November 2006.

Displacement as a result of the construction of the West Bank Wall and its associated regime (land and property confiscations, permit systems, and new regu-



Displaced people camping in Sanaya Park in Beirut. (Photo: Hans Christian Knævelsrud, NRC)

lations at checkpoints and gates in the Wall) continued during 2006. More than 50 per cent of the Wall has been completed despite the ruling of the International Court of Justice that the construction is illegal and that the Wall should be removed. The Palestinian Bureau for Statistics estimates that nearly 15,000 people have been displaced between the start of construction in 2002 and the end of May 2005.

Restrictions on freedom of movement and lack of access to basic goods and services resulting from the construction of the Wall have been the most important factors in forced displacement. The Wall, according to Israeli government plans of April 2006, will be 703 km long – only 20 per cent of which runs along the 1949 armistice line, “the Green Line”. If the Wall is completed based on the current plan, 60,500 West Bank Palestinians will reside in the so called “closed zone”, between the Wall and the Green Line, and some 124,300 Palestinians will be surrounded by the Wall. About a quarter of the 230,000 Palestinians holding East Jerusalem residency permits are located on the West Bank side (east) of the Wall and must cross one of four checkpoints to get to Jerusalem for daily services and jobs. A survey carried out in 2006 found that 17 per cent of Palestinians who have recently changed their place of residence in Jerusalem did so as a direct result of the Wall. The study also found that as many as 64 per cent of Palestinians in East Jerusalem are considering changing their place of residence because of the Wall⁴¹.

In Syria, a shift in national policy raised prospects for the return of some internally displaced people to the area of Quneitra, an area bordering the Golan Heights that was regained by Syria in 1974. Until recently, the government had kept the town in ruins as a memento of the Israeli incursion and occupation of the Golan Heights. A broad return to the Golan Heights remains unlikely in view of Israel’s continuing occupation of the territory. Some 300,000 people remain displaced from the Golan as a result of the 1967 Arab-Israeli war, according to Syrian government statistics.

Renewed fighting between government forces and followers of the late Sheikh Badr Eddin al-Houthi, a Shi’ite dissident, also led to the displacement of civilians in the northern province of Sa’ada in Yemen. There is no estimate of how many people have been displaced because access to this remote and mountainous area is difficult and no humanitarian organisations operate in the region. Fighting reignited in November 2005 after an amnesty extended to al-Houthi’s militia members in September by President Ali Abdullah Saleh failed. Similar armed confrontations between the Yemeni armed forces and al-Houthi supporters took place in mid-2004.

Deteriorating security

A deterioration in the security environment in several countries in the region during the year meant that displaced people faced serious restrictions on their human rights, such as physical safety, freedom of movement and access to basic goods and services.



A Lebanese girl displaced with her family by the fighting of summer 2006. (Photo: Hans Christian Knævelsrud, NRC)

In Iraq, high levels of violence, including killings, torture, and illegal detention affected the ability of all Iraqis to exercise their basic human rights. There were reports of widespread violations of human rights and humanitarian law by members of the Multi-National Force in Iraq, insurgents and local militias. Armed groups maintained a climate of fear, violence and intimidation. There were numerous reports of sectarian militias forcibly evicting people from houses and shops in order to rent them to IDPs arriving from other areas. In other cases, sectarian militias forced people who abandoned their houses to rent them out to IDPs at a very low cost.

The United Nations office in Iraq continued to receive allegations that the Multi-National Force and Iraqi security forces were involved in incidents of excessive use of force and mistreatment, severe restrictions on freedom of movement, as well as evictions and demolitions of homes in areas where military operations were ongoing. Displaced Iraqis had to compete with local communities for extremely limited access to goods and services. Displaced people lacked permanent shelter, food, and access to schools, health services and jobs.

Most displaced people sheltered with relatives and extended family, as well as in empty public buildings and camps set up by the government. Increasing tensions over scarce resources were reported between displaced people and host communities.⁴²

In the Palestinian Territories, the security situation sharply deteriorated during 2006, affecting all Palestinians, whether displaced or not. In reaction to Hamas' landslide victory in January's parliamentary elections, Israel suspended the transfer of the tax duties it collects on behalf of the Palestinian Authority and imposed heightened security and movement restrictions. The Palestinian Authority's most important donors, the United States and the European Union, also decided in March (based on the agreement of the diplomatic Quartet composed of the US, Russia, the EU and the UN) to withdraw direct aid until the new Hamas-led government condemns Palestinian attacks on Israelis, recognises the state of Israel and accepts certain peace agreements and obligations.

A rise in poverty and the increasing restrictions on everyday life have increased displacement among Palestinians. Despite the creation of a Temporary Mechanism by Western donors in June, the new measures plunged the Palestinian Authority into a profound financial crisis. Four out of ten Palestinians in the West Bank and Gaza were living below the poverty line, according to the Palestinian Central Bureau of Statistics. The situation in the Gaza Strip also took a turn for the worse with the start of Israeli military operations in June and almost daily military strikes. In addition, Israel imposed a virtual state of siege on the Gaza Strip, almost completely locking down the main civilian and commercial entry points into the area, as well as access to the coast. In the West Bank, there was a dramatic rise in the number of checkpoints and road blocks (up 40 per cent in 2006 over the previous year) and an increasing fragmentation of Palestinian territory.⁴³

In Lebanon, Israeli military operations during the summer of 2006 affected security and freedom of movement in the entire country, especially in the south of the country and in the southern suburbs of Beirut. Throughout the conflict, Israel dropped leaflets across Lebanon warning the population to flee ahead of air strikes, although in some cases people were unable to leave their homes (reasons ranged from destroyed bridges and roads to lack of transportation or a physical inability to flee). A number of displaced people were also targeted by the Israeli military as they fled their villages. While the security situation improved with the ceasefire, the widespread presence

of unexploded ordnance and mines in south Lebanon continued to present an acute physical threat to displaced people, returnees and local communities. In an attempt to hamper the return of IDPs, Israel dropped up to 1 million cluster bombs in more than 800 locations in south Lebanon, most of them during the last 72 hours before the ceasefire. Cluster bombs have also had a devastating impact on the economic livelihoods of returning displaced people and on the local communities of southern Lebanon, as many farmers were unable to get to their fields and harvest crops.

In Israel, the security situation also deteriorated during last year. Up to 1 million people were forced to stay in bomb shelters, hide at home or alternate between the two during the Hizbollah-Israeli fighting. The situation of Arab-Israeli residents in towns hit by the rockets was particularly difficult. Most did not have relatives to stay with in safer parts of the country, and many could not find safety in their towns, as Arab towns generally lack public infrastructure, including bomb shelters. In addition, thousands of Bedouin living in southern Israel in villages considered illegal by authorities continued to live without basic infrastructure or social services from the state, and were threatened with eviction. In December 2006, the Israeli authorities razed 17 homes in the Bedouin village of Al-Twayil. This was done in spite of a recommendation by the Israeli parliament to postpone the demolition, in order to allow residents to find alternative housing.

In Syria, IDPs from the Golan Heights continued to face problems in exercising their right to family life, as most displaced Syrians were unable to contact family members living in Israeli-occupied Golan.

Durable solutions

The identification of comprehensive solutions for the displaced was hampered by renewed armed conflicts in the region and a lack of security. In Iraq, violence continued in most parts of the country, making dignified, safe returns impossible. Displaced Iraqis viewed the increasing sectarian violence as an attempt at altering the social and demographic makeup of the country.⁴⁴ Other obstacles to return included lack of shelter, unresolved property claims, lack of financial resources to rebuild homes, and inadequate basic services and infrastructure in return areas. Poor security restricted the work of the Iraqi property commission set up in 2004 to provide restitution or compensation to people who lost their property under the former



A shell-shocked family taking shelter in a school in Beirut. All over the city, schools served as refuges for people fleeing south Beirut. (Photo: Jeroen Oerlemans, Panos)

regime. Displaced people in Iraq also reported having their houses illegally occupied, further complicating the possibility of return.⁴⁵ In Lebanon, demolished homes and widespread destruction of infrastructure also hindered the prospects for return and reintegration of displaced communities.

Large-scale return and sustainable solutions for the displaced were also unattainable because of the lack of political progress in addressing the root causes of displacement in the context of the broader Arab-Israeli conflict. Thus, in Israel, Syria and the Palestinian Territories long-term displaced populations remained in limbo. Many of the tens of thousands of Arab villagers who were displaced within Israel during the 1948 war, as well as their descendants, still want to return to their original homes. Their prospects for return remain dim. Additionally, Syrians wishing to return to the occupied Golan Heights did not see much hope of this, as Israel announced its intention of stepping up the construction of settlements in the area.⁴⁶

Durable solutions for IDPs in the region continued to be limited by the lack of comprehensive, accurate information on displaced populations. For example, in Iraq and Lebanon, it is difficult to determine to what extent many rural people displaced by previous conflicts have integrated into urban regions and whether they should still be considered internally displaced.



IDPs from northern Israel in a tent compound in the south of the country. Most Israelis displaced in summer 2006 were able to return soon after the ceasefire. (Photo: Ahikam Seri, Panos)

National and international response

The national and international response to internal displacement in the Middle East remained uneven, its effectiveness undermined by factors including lack of resources, absence of political will and insecurity. Governments in the region strained to put together the resources and capacity to provide effective protection of and assistance to those displaced within their territories. Several countries in the Middle East host significant refugee populations, which further limits governments' already limited capacity to respond to their own internal displacement situations.⁴⁷

In two countries in the region, Lebanon and Iraq, ministries have been established to find solutions for the displaced. In Iraq, the Ministry of Displacement and Migration assisted the displaced and continued to work on developing national policy and legislation to address the situation of IDPs. However, its ability to provide protection and assistance was limited by insecurity and overwhelming needs. In Lebanon, the ministry for the displaced has said that a lack of funds has prevented it from implementing programmes to support the return of those Lebanese displaced both during the civil war and the Israeli occupations until 2000; the ministry has also come under criticism for mismanagement of funds. In the aftermath of the recent war, the Lebanese government has put together a recovery plan, with the support of the international communi-

ty, and has begun implementation of a broad range of assistance, recovery and reconstruction activities.

In Syria, the government continued to carry out housing projects in Quneitra, which could lead to the return of an estimated 50,000 people. The Israeli government, which was initially slow to respond to the needs of those displaced during 2006, promised \$2 billion to rebuild the most affected towns of northern Israel.

While in some parts of the world, regional mechanisms have effectively addressed IDP situations, in the Middle East there is no structure specially focused on the problem of internal displacement in the region. The League of Arab States is the only body that fulfils a regional function, but it does not address IDP issues in general (although it has focused on displaced Palestinians in particular); additionally, Israel and Iran are not among the League's members. The League is involved in conflict resolution at the political level, including in response to Israeli military operations in Lebanon and Gaza and in support of a reconciliation process in Iraq.

International agencies, including the UN, provided support to the government of Iraq and, more recently, to Lebanon in response to the large-scale displacements that occurred in 2006. In Iraq, the UN has continued to operate at a minimal level because of the high levels of violence in the country. In Lebanon, the UN applied the cluster approach, the humanitarian coordination mechanism whereby certain UN agencies are assigned lead roles by sector in order to improve the efficiency of humanitarian response. Although on the whole successful, international organisations faced difficulty in assisting IDPs during the emergency period in Lebanon due to factors including the highly politicised environment, security restrictions and widespread destruction, which severely limited free movement.

No international agency is recognised as having an explicit protection mandate for internally displaced Palestinians in the Palestinian Territories. The UN provides substantial emergency assistance to vulnerable people, including those falling under the mandate of the UN Relief and Works Agency (UNRWA). This group includes many, but not all, of those who have been internally displaced within the Palestinian Territories. In December 2006, the UN General Assembly approved plans for a UN registry to handle Palestinian claims of property damage resulting from the construction of the West Bank Wall. However, the exclusion of non-material damages (including forced displacement), the lack of clarity concerning the eligibility criteria for com-

Hundreds of thousands of people were displaced in Iraq as a result of increased sectarian violence and targeted killings during 2006. In Nassiriyah, destitute families are forced to send their children out to pick garbage. (Photo: UNHCR)



pensation, and the modalities of assessment and validation of damage claims raise concerns as to its effectiveness. In Israel and Syria, where IDPs' humanitarian needs have been minimal, the UN does not address the situation of the displaced population at all.⁴⁸

The plight of the internally displaced in the region drew some international scrutiny during the year. A commission of inquiry was set up within the framework of the Human Rights Council to investigate human rights violations committed in Lebanon during the summer of 2006. The UN Representative to the Secretary General on the human rights of IDPs also visited Lebanon and Israel to assess the situation for internally displaced people in both countries and then issued recommendations.

In several countries in the region, local non-governmental organisations, volunteers and political groups played a critical role in assisting internally displaced people and in advocating for their rights. In Iraq and in Lebanon during the 2006 conflict, central authorities struggled to meet the needs of overwhelming numbers of displaced people, which forced many to rely on the widespread support of local aid groups, political parties and volunteers. In Israel too, most of the assistance to the displaced during the Israel-Hizbollah fighting was provided by NGOs, Jewish voluntary agencies and individuals.

Humanitarian organisations working in the region were often prevented from reaching displaced populations to deliver aid. In parts of Iraq, humanitarian organisations were able to provide only sporadic assis-

tance to IDPs because of ongoing military operations. In addition, some local aid groups received threats for helping displaced families of certain religious affiliations, and several international aid organisations were also threatened due to perceived allegiance to a Western agenda.

In Lebanon, on several occasions during the summer of 2006, Israeli military forces refused to ensure safety for international aid convoys and also targeted humanitarian convoys, thereby preventing assistance from reaching displaced communities.⁴⁹ In the Palestinian Territories, access conditions for international organisations deteriorated over the past year, at a time when humanitarian needs were acute. The work of humanitarian organisations in the Gaza Strip and the West Bank was severely hobbled by frequently erratic, and increasingly restrictive, procedures at checkpoints, regular delays and denials of access and freedom of movement by the Israeli Defense Forces and border police.⁵⁰

The massive rise in numbers of people displaced in the Middle East region during 2006 has made the issue of internal displacement a paramount concern and an obstacle to stability. Internally displaced people faced extensive threats to their rights and safety because of conflict and human rights violations. Human suffering in the region was acute during the year. The situation in Iraq remains the largest internal displacement crisis in the region, yet corresponding humanitarian assistance and funding were grossly inadequate. At year-end, the number of internally displaced persons in Iraq was continuing to rise.

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Workers at Panzi Hospital, Bukavu, DRC, who care for women recovering from brutal rape attacks. The hospital specialises in treating both the physical and psychological injuries resulting from sexual violence. (Photo: Pep Bonet, Panos)

GENDER-BASED VIOLENCE

Sexual and gender-based violence is one of the most pervasive violations of the rights of women and girls during armed conflict and displacement. It is often employed as a strategy of war by armed actors to gain power. Women and girls are at risk of sexual and gender-based violence in most internal displacement situations. This can include rape, forced impregnation, forced abortion, trafficking, and sexual slavery. While men and boys may also be affected, research indicates that sexual and gender-based violence predominantly affects women and girls.⁵¹

Despite progress in the development of law and policy on addressing sexual and gender-based violence in armed conflict, individual cases as well as patterns of abuse against displaced women and girls continued to be reported during 2006. As pointed out in a report on Uganda by a consortium of NGOs, gender-based violence is often neglected in humanitarian programming, in spite of being one of the most serious protection issues facing IDPs.⁵² Sexual violence against displaced women and girls remains an under-reported aspect of conflict. In many countries, displaced women and girls do not report incidents of abuse and violence to medical and humanitarian organisations. Nevertheless, cases of sexual and gender-based violence were reported among IDP communities in a number of countries, particularly in the DRC, Sudan, Colombia, Nepal, the Philippines, Iraq, Chad, Uganda, CAR, Somalia, Burma, India, Liberia, Kenya, Côte d'Ivoire and the Russian Federation.

Rape was used as a weapon of war – to punish communities for their political allegiances, as a form of ethnic cleansing, and to forcibly displace civilians – in countries including Colombia, the DRC and Sudan. Armed groups engaged in acts of sexual violence to attack the values of the community, punish or terrorise communities and individuals accused of collaborating with enemy forces, or provide gratification for fighters. In the DRC, various armed groups have abducted and kept as sex slaves thousands of women to provide sexual, domestic and agricultural services.

In the DRC, Sudan and Uganda, there were widespread reports of systematic sexual and gender-based violence against displaced women and girls. The number of reports of incidents of rape against internally displaced women rose sharply during 2006 in parts of the

DRC. Incidents were reported more frequently along the Kanyabayonga-Kayna road, North Kivu province, where fighting between the army and rebel soldiers has displaced at least 70,000 people. Some 4,000 displaced women were reported to have been raped in South Kivu.⁵³

In Darfur, girls and women have been targeted in inter-ethnic fighting both in a deliberate attempt to dishonour them and as a means of ethnic cleansing, particularly in areas inhabited by displaced populations. Many victims were under 18 years of age. In May 2006, for instance, a group of about 25 armed men in Sudan Liberation Army uniforms threatened, beat and robbed six separate groups of women and girls in Hajar Jalanga, in West Darfur. During the same month, Janjaweed militia attempted to rape women and girls displaced from villages near Kutum, in North Darfur. And in July, approximately 25 armed militias, some in army uniforms, assaulted 20 women outside the Kalma IDP camp in Nyala, South Darfur. Increasing numbers of rapes by displaced men of displaced women were also reported within IDP camps in Darfur.

In Chad, members of armed groups, including the Janjaweed, targeted displaced women and girls in attacks on IDP sites in the eastern part of the country. UNICEF received reports that 33 women and girls from the Bil-digue and Haraza tribes at the Koubigou IDP site had been raped.⁵⁴

In Uganda in 2006, there continued to be cases of sexual exploitation and sexual violence against women and girls by government and military personnel in IDP camps. The issue worsened with an increase in the numbers of displaced people leaving the camps for new settlement areas. A lack of schools and health facilities in the new areas has meant that men are the first to go, leaving women and children behind in the existing camps, where they are able to gain access to basic services but where they are also exposed to a greater risk of gender-based violence, abuse and exploitation. In January 2006, a Ugandan soldier was reported to have been responsible for the rape of a 17-year-old girl outside Pagal camp in Gulu district, and in February 2006 a 17-year-old soldier was arrested and charged with rape in Lira Palwo in Pader.⁵⁵ Patterns of sexual violence were also reported in IDP camp settings in Somalia and Sri Lanka during the year.

Poverty and a lack of any other income-generating activity forced many internally displaced women into prostitution and trafficking during 2006. In Nepal, according



A displaced woman from Darfur, where many cases of gender-based violence were reported in 2006.
(Photo: Petterik Wiggers, Panos)

to local NGOs, displaced women fleeing their homes or living in IDP camps have sometimes been forced into prostitution to survive or have fallen prey to traffickers. In IDP camps in Uganda, many girls and women engage in “survival sex” to obtain food or “transactional sex” in exchange for spending money or small objects.⁵⁶ Lack of access to income sources has forced displaced women to collect firewood in the Kieni forest of Kenya, where if caught, they are subjected to sexual abuse, severe beatings and imprisonment by forest guards.

Displaced women and girls are often exposed to sexual and gender-based violence in the course of obtaining basic resources such as food, water and fuel for themselves and their families. In Sudan, rapes and other forms of sexual abuse were frequently reported when displaced women and girls had to leave camp areas to gather firewood. In Liberia, displaced women have been forced to exchange sex for aid, including food from national and international peace workers, according to a report by Save the Children.

There were also reports that displaced women and girls were subject to multiple forms of harassment and abuse by both government forces and non-state actors in Nepal, India and Colombia. In Nepal, an inter-agency mission in the east of the country received informal reports that displaced women were subject to harassment and abuse by both government forces and rebels. A June 2006 study by Terre des Hommes showed that displaced girls working in carpet factories in Nepal were at high risk of abuse, including sexual and verbal harassment. A number of women of the Hmar minority group, living in Manipur, North India, were raped during attacks by militants that displaced thousands of people from the area to the neighbouring state of Mizoram. Violence against women may also increase within the family due to the stress of displacement. A government survey in Colombia showed that almost half of all displaced women there reported physical violence at the hands of their partners in 2006.⁵⁷

Peacekeepers were also involved in sexual abuse against displaced women and girls. In August in the DRC, the international media reported allegations of a soldier-run prostitution ring involving girls as young as 15 in the South Kivu area. Some of the implicated soldiers are believed to be United Nations peacekeepers. Allegations of sexual exploitation and abuse committed by UN peacekeepers in several countries were under investigation in 2006. In December, senior UN and NGO representatives issued a statement addressing sexual exploitation and abuse by aid workers, emphasising a zero tolerance approach.

National responsibility to protect

The Guiding Principles on Internal Displacement explicitly call on governments to provide protection for women and girls. Provisions regarding displaced women and girls are guided by two core concerns: to safeguard them from gender-specific violence and to uphold their rights to equal access to services and participation in assistance programmes.

But abuses against displaced women and girls have generally been perpetrated with impunity, and a majority of displaced women and girls did not have adequate access to physical, legal and social protection during 2006. A number of investigations into sexual abuse were ongoing at the international level last year, although the process is lengthy. At the end of the year, the lead prosecutor of the International Criminal Court said in a briefing to the Security Council that it had “reasonable grounds to believe” that crimes against humanity, including rape, had been committed in Darfur.⁵⁸ Similar investigations have been under

Displaced women and girls are vulnerable to sexual abuse when venturing outside camps to gather firewood. (Photo: Roald Høvring, NRC)



way in the DRC and northern Uganda, where there have been widespread allegations of systematic patterns of rape of displaced and other women.

Progress was made in strengthening the legal protection afforded to displaced women who have survived acts of sexual and gender-based violence in some conflict-affected countries. Countries where legislation criminalising sexual violence was adopted or amended during 2006 included Liberia and the DRC. Liberia passed a Rape Amendment Act, and the DRC adopted a bill on sexual and gender violence as a result of lobbying by local NGOs and the UN. The law strengthens the legal protection available to victims of sexual violence, broadening the definition of rape to include those committed with objects, a practice that has been common in the Congolese war.

In some countries, national laws may prevent displaced women and girls from gaining access to assistance. In post-war Bosnia and Herzegovina, legislation related to civilian war victims, including victims of rape, differs between the country's two entities, which may create unequal access to social benefits or support depending on the area of displacement or return.

Regional and international response

At the regional level, a protocol on the Prevention and Suppression of Sexual Violence against Women and Children in the Great Lakes region of Africa was adopted in 2006 within the framework of the International Conference on the Great Lakes region. The protocol calls on states to take particular measures to ensure that internally displaced women are protected.

The UN and NGOs continued to develop initiatives to address sexual and gender-based violence in humanitarian situations during 2006, including medical and psycho-social assistance, and legal and income-generating activities. While advances have been made, much still has to be done to improve prevention of and response to gender-based violence in IDP communities. For instance, a 2006 study by the International Medical Corps on the mental health of displaced women in South Darfur found that almost one-third of displaced women surveyed suffered from a major depressive disorder. Almost all the women said that counselling provided by humanitarian agencies would help them.⁵⁹

At the interagency level, progress was made in the elaboration of practical guidelines and tools to prevent and respond to gender-based violence. The creation of a standby force of gender experts for deployment in humanitarian emergencies was part of efforts to more effectively integrate gender issues into the UN system.

In 2006, following a comprehensive review of the extent to which humanitarian interventions address the needs of women, girls and boys, the Inter-Agency Standing Committee, the primary mechanism for inter-agency coordination of humanitarian assistance, identified key gaps. Based on these, it proposed five areas for action: developing gender equality standards; ensuring gender expertise in emergencies; building capacity of humanitarian actors on gender issues; using sex and age disaggregated data for decision-making; and building partnerships for increased and more predictable gender equality programming in crises.



Children waiting to leave an IDP camp in southern Sudan. (Photo: Sean Sutton, Panos)

INTERNALLY DISPLACED CHILDREN

Displacement frequently causes the breakdown of family and community structures and the disintegration of traditional social norms, leaving children particularly vulnerable. Too often the rights of displaced children are violated, resulting in abuse, discrimination, malnutrition, poverty or even death. During 2006, displaced children were recruited by government forces and armed groups, were victims of sexual exploitation, and/or were not able to go to school. In most cases, national governments did not provide much-needed assistance and protection. Violations against displaced children largely continued unimpeded in 2006, despite the establishment in several countries of a monitoring system on violations against children in armed conflict, as well as advocacy efforts by the Office of the Special Representative of the UN Secretary-General for Children and Armed Conflict, UNICEF, member states and NGOs.

Major violations

Displaced children – particularly those who have been separated from parents and family – are often

targets of abduction and recruitment by rebel groups, paramilitary or government forces. Recruitment of displaced and other children by national armed forces and/or militias continued throughout the year in Burundi, Colombia, Côte d'Ivoire, Chad, the DRC, Iraq, Burma, Nepal, Philippines, Somalia, Sri Lanka, Sudan and Uganda.⁶⁰ In addition to military duties, displaced and other children are often sexually exploited or enslaved.

Displaced children were also denied education and health care. Destruction or occupation of schools or hospitals in the course of attacks on civilian populations occurred in the CAR, Côte d'Ivoire, the DRC, Israel, Lebanon, Nepal, the Palestinian Territories, Sri Lanka and Sudan. Also, in southern Afghanistan, more than 100,000 children were reportedly denied access to education because of insecurity caused by the Taliban and other armed groups.⁶¹ In Iraq, children were kidnapped and teachers subject to violence, both of which seriously affected the delivery of education.

Humanitarian aid workers were often prevented from gaining access to displaced children due to insecurity in several countries, such as the DRC and Iraq. Meanwhile, the governments of Burma, Sudan and Zimbabwe severely restricted humanitarian access to displaced children. In Nepal, humanitarian access remained difficult in 2006 due to insecurity but also due to restrictions imposed by the Communist Party

of Nepal-Maoist. In Sri Lanka's north and east, both the government and the LTTE have denied access to humanitarian organisations assisting displaced children. In Lebanon, displaced children were denied humanitarian assistance because of an Israeli military blockade of Lebanon's borders and seaports, and the bombing of roads and the main airport.

Sexual violence continues to be a serious and significant part of the violence suffered by displaced children (see Gender-Based Violence chapter).

National responsibility

States bear the primary responsibility for the protection of displaced children, as laid out in both humanitarian law governing conflict situations and in the Convention on the Rights of the Child and its optional protocol on children in armed conflict. The Guiding Principles on Internal Displacement also specifically recognise that "children and unaccompanied minors ... shall be entitled to protection and assistance by their condition and to treatment which takes into account their special needs."⁶²

In some countries experiencing internal displacement, including Colombia, Sudan, Sri Lanka, Uganda and the DRC, the UN Special Representative on Children and Armed Conflict has obtained commitments from parties to the conflicts not to use landmines, attack schools or hospitals, or recruit or use children as child soldiers, and to release abducted children. But, so far, these commitments have not translated into tangible improvements for the children.⁶³

The International Criminal Court (ICC) has the potential to act as an important deterrent to abuses against displaced children. In March 2006, the ICC, with the cooperation of DRC authorities, indicted Thomas Lubanga, leader of a militia that had caused large-scale displacement in northeastern DRC, for the commission of war crimes, the conscription and enlistment of children under the age of 15, and the use of children for active participation in hostilities.

The international agenda

In order to bring an end to grave violations against displaced and other children in situations of armed conflict, the UN Security Council passed a resolution in 2005⁶⁴ outlining a Monitoring and Reporting Mechanism to be implemented by the UN, in collaboration with government and civil society organisations. The



Displaced children are particularly vulnerable to sexual abuse, abductions and other violations of their rights. (Photo: Christophe Beau, IDMC)

following violations are monitored by this mechanism: killing or maiming of children; recruitment or use of children as soldiers; attacks against schools or hospitals; denial of humanitarian access for children; abduction of children; and rape and other grave sexual abuse of children. A working group comprised of the 15 Security Council members reviews and guides the monitoring process. In 2006, based on the above-mentioned resolution, the UN Secretary-General reported to the Security Council on violations in Burundi, Côte d'Ivoire, the DRC, Somalia, Sudan, Nepal and Sri Lanka. All these countries experience significant internal displacement, and information on displaced children has improved as a result of the monitoring.

International initiatives to assist displaced children and to protect their rights also included medical, psychosocial and legal assistance to survivors of sexual violence, advocacy for the release of children associated with armed forces and groups, demobilisation, family tracing and reintegration activities, and mine awareness-raising, as well as the rehabilitation of schools that have been attacked, the provision of school materials, and the building of "safe-play" areas in towns and villages affected by mines and unexploded bombs. Many of these activities were realised in collaboration with local partners. A valuable resource for those working to better protect displaced children is "Right to Education during Displacement: A resource for organizations working with refugees and internally displaced persons", developed by the Women's Commission for Refugee Women and Children in 2006.

HEALTH AND NUTRITION

Fleeing from home unexpectedly and in fear creates enormous physical and mental stress. This stress may continue through the various phases of displacement, and even after a permanent solution has been found. In addition, most IDPs have specific displacement-related problem caused by nutritional deficiencies or insufficient quantities of food and drinking water. The vast majority of IDPs cannot reach a doctor in time. Aside from material assistance, some form of psychosocial support may be needed to ensure that traumatised IDPs regain the ability to cope.

Health

Health status and mortality rates are the most important indicators for assessing the impact of conflict or other disasters on a population. Yet, while mortality rate studies are increasingly used to guide humanitarian action, it is not always easy, for various political and logistical reasons, to collect and publish such data.⁶⁵ Where mortality rate studies do exist, they often stretch over several years. For example, the International Rescue Committee has been conducting mortality studies in the DRC since 2000. Its latest findings were that almost 4 million people have died as a result of the conflict since it erupted in 1998, and that every month almost 38,000 deaths occur above the country's "normal" level, mostly in the eastern regions. Those deaths are mostly the result of curable diseases and are due to the lack of access to health care, which, in

turn, is a result of conflict-related insecurity.⁶⁶ Mortality rates of infants and children under the age of 5 are extremely high in countries like the DRC, Ethiopia and Somalia, indicating a catastrophic health situation.

The existing – and limited – IDP-specific health data suggest that in more than half the countries affected by internal displacement, including practically all African and most Asian countries, IDPs – and in many cases the population at large – have no access to adequate health care. The main reasons are breakdown of health services in war-affected areas, lack of national financial resources, or the IDPs' remote location. Most of northern Uganda's IDPs were confined to camps with extremely limited access to health care. In several countries, including Burma, Somalia, the Palestinian Territories and Serbia (Kosovo), IDPs faced discrimination in gaining access to health care because of their ethnic origin or because of restricted freedom of movement. Lack of personal documents may also restrict access to health care; this is the case for European Roma.

Most diseases IDPs are exposed to are preventable. They include diarrhoea, acute respiratory infections, tuberculosis, malaria, cholera, measles and meningitis. Polio broke out in the Horn of Africa in 2006. The little information that is publicly available on the health status of IDPs is mostly based on anecdotal evidence, as not many health surveys specifically focus on IDPs.

While IDPs in the Balkans generally have satisfactory access to water, sanitation and health care, they are more likely than the local population to suffer from trauma-related problems.⁶⁷ Roma IDPs usually live in informal settlements with very poor sanitary conditions. IDPs in Azerbaijan and the Russian Federation access health care less easily than the local population



A displaced Lebanese child being vaccinated. (Photo: Dina Debbas, IRIN)

in some areas, due to administrative inconsistencies, lack of health care facilities and the demand for informal payments for medical treatment.

Recognising the physical expression of mental or social suffering is particularly relevant in conflict areas. Symptoms of illness, headaches or insomnia occur more often after flight or the loss of a family member. Traumatized people often suffer more profoundly from an illness than others would, and they are more resistant to treatment.⁶⁸ So even when displaced populations have the same access to health care as the local population, it is likely that they will require particular attention.

Nutrition

Nutrition and health constitute the core subsistence rights of IDPs, along with shelter and clothing (Guiding Principle 18.2). But conflict, ethnic discrimination, landmines or operational difficulties in reaching remote populations heavily undermine that right.

Caught in areas of conflict or remote parts of the country and, as a result, deprived of access to food and means of production such as arable land, IDPs often receive inadequate support from their government or the international community. Many suffer from malnutrition, often more so than the non-displaced populations who, despite suffering similar hardships, may have been able to retain resources and coping strategies. Furthermore, the mere delivery of food may not be enough to avert malnutrition. Traumatized persons suffer more frequently from eating difficulties or digestion problems. It is well-documented that a mother's trauma or depression has a direct effect on the nutritional status of her children.⁶⁹

For most countries, very little information is available on the nutritional status of IDPs, either because there are no surveys or because the displaced were not addressed separately from the general sample population. Countries with IDP-specific nutritional information include Burma, Colombia, the CAR, Chad, Ethiopia, Liberia, Somalia, Sudan, Uganda, Timor Leste and, to a lesser degree, Angola and Nepal. All surveys indicate extremely high malnutrition rates among IDPs, with some above the critical 15 per cent emergency threshold set by the World Health Organisation.

The right to food

Providing food aid is complex and politically very sensitive. It can have an aggravating effect when parties to a conflict use food aid strategically, by diverting it from



Many IDPs suffer from malnutrition and are dependent on food deliveries, often more so than non-displaced populations. (Photo: Christophe Beau, IDMC)

the intended beneficiaries for their own profit (as was the case with Somalia's warlords), or by deliberately restricting access to food (Burma, the DRC, Colombia, Côte d'Ivoire, Nepal, Sudan). A government's inaction can also have adverse effects, as has been the case in Colombia.

In other situations, it is difficult to ensure that food reaches displaced populations because they live in remote areas, while conflict-related insecurity may hinder humanitarian assistance, as has been the case in the DRC, the CAR, Ethiopia, Somalia and Uganda. In Iraq, military operations have repeatedly prevented access and delivery of humanitarian assistance.



Displaced women in Chad prepare food while camping by the roadside. (Photo: H. Caux, UNHCR)

Where food aid can be delivered, particular attention must be paid to its actual distribution to the intended beneficiaries. If existing power structures are not taken into account, marginalised and weak groups may be further disadvantaged.⁷⁰ Improved access to arable land and tools during displacement would greatly enhance IDPs' access to food and reduce their dependence on humanitarian aid. While efforts are made in Uganda and northern Somalia to provide IDPs with land, in many countries, fertile land cannot be accessed due to conflict-related insecurity (Colombia, Côte d'Ivoire, Burma, Eritrea, India and Bangladesh).

Water and sanitation

Clean water and appropriate sanitation are fundamental for a healthy environment. Access to clean water is recognised as a human right, but in at least one-third of the countries affected by internal displacement, the majority of IDPs are deprived of that right. In combination with the absence of adequate sanitation facilities, this has an extremely negative impact on their health. The spread of water-borne diseases is one consequence.

In many countries, IDPs' access to clean water and sanitation is inferior to that of the general population. These countries include Angola, Burma, the CAR,

Colombia, Ethiopia, Iraq, Liberia, Mexico, Nepal, Peru, the Philippines, Somalia, Sudan and Uganda. A study carried out by Oxfam on the health of conflict-displaced populations in south Ethiopia found that many of them survived on two to three litres of water per day.⁷¹

Large populations in the Horn of Africa encountered similar hardship after the floods during the last quarter of 2006. The floods further contributed to the destruction of any water and sanitation infrastructure that may still have existed in this disaster-prone region. Looming conflict in Somalia seriously hampered the delivery of aid to the more than 400,000 flood-displaced.

Precarious living conditions with respect to water and sanitation are particularly evident in overcrowded camp situations – for example in the DRC, Uganda, Somalia or Sri Lanka. While camp populations can be assessed relatively easily, the majority of IDPs are dispersed in rural or urban areas, and little data exists on the hardships they experience as a result of poor water and sanitation facilities.

Mental health of IDPs

Many IDPs experience high levels of fear and humiliation. In chronic conflict areas, large segments of the population experience trauma, and children are often particularly affected.

The international humanitarian community increasingly recognises the importance of providing psycho-social help to conflict-affected populations, as indicated by an increase in comprehensive psycho-social studies. For example a 2006 IOM psycho-social needs assessment in former conflict districts of Indonesia's Aceh Province showed extremely high levels of traumatic symptoms.⁷² In Colombia, NRC's legal aid to IDPs now includes the possibility of psychosocial support. The reasoning behind this service is that a traumatised person may feel too disempowered to demand his or her rights as an IDP. Those rights are, in theory, substantial in Colombia, but are often not exercised. The ability to claim their rights helps IDPs perceive themselves as actors rather than mere victims of circumstance. This work of regaining personal dignity and the strength to actively shape their lives is of particular significance to IDPs.

For the most part, psycho-social help is still provided as an adjunct to traditional humanitarian aid, although there is a growing understanding of the need to integrate it into more traditional aid work. A recent publication by the Swiss Agency for Development and Cooperation describes the various levels on which trauma influences a person's physical and mental well-being.⁷³

In most countries, some sort of psycho-social aid for IDPs is currently provided, although it almost never covers the entire displaced population. The southeastern European countries affected by internal displacement come closest to providing such support to the majority of their IDPs.

The Rehabilitation and Research Centre for Torture Victims, has partnerships in several displacement-affected countries, including Bangladesh, Sri Lanka and the Philippines. In Iraq's Kurdish areas, the German-Iraqi NGO WADI supports displaced and local women in distress.⁷⁴ In Sri Lanka and Nepal, there are NGOs that are assisting IDP women and children with mental problems. In Uganda, a psychosocial resource book for teachers was developed and distributed in the north. In Russia, Médecins sans Frontières' mental health counsellors visit collective centres and conduct educational sessions on how to recognise and cope with various psychological problems. One obstacle to the success of this and other psycho-social assistance

programmes is that there is a fierce stigma attached to seeking psychological help, especially for men. Generally, the support provided by local or international organisations remains limited and, at times, not well coordinated.

An inter-agency Task Force on Mental Health and Psychosocial Support was formed in June 2005 with the dual goal of integrating mental health issues into all relevant aspects of humanitarian work and of developing guidelines on mental health for organisations working in the field.

HIV/AIDS and displaced people

It has been widely recognized that HIV/AIDS has a disruptive effect on families and entire communities. Malnutrition is typically higher among populations with a high prevalence of HIV/AIDS, because the body of HIV-positive people cannot absorb nutrients as efficiently, and because there are fewer adults earning an income, which increases food insecurity. Stigmatisation further contributes to the precarious situation of people affected by HIV/AIDS.⁷⁵

Other studies also point out that IDPs and populations living in conflict areas are at greater risk of contracting the virus than others, because of their unstable living conditions and vulnerabilities. But while it is often presumed that IDPs have higher HIV infection rates than the general population, this was not borne out in a January 2006 study of eight IDP-hosting countries. The study found that insufficient data exists to confirm a consistent higher prevalence of HIV/AIDS among displaced people and calls for more research into this issue.⁷⁶

Even in situations where conflicts have ended, the nutrition and health status of IDPs can remain at emergency levels for a long time, due to poor access to water and sanitation, and because appropriate preventive and curative health services remain scarce. In post-conflict situations, the degree to which IDPs' nutritional and health conditions can improve is dependent on their capacity to recover from trauma and loss of assets. But in addition, governments and international donors must be willing to invest in the recovery and compensation programmes necessary to set a country on the path toward equitable development.

URBAN DISPLACEMENT

The phenomenon of displacement from rural areas to urban centres exists in at least half the more than 50 countries affected by conflict-induced displacement and involves millions of people. Large numbers of IDPs in countries where no information exists are also likely to have left their rural homes for cities.

In Africa, countries including Sudan, Angola, Algeria, Liberia, Sierra Leone, Somalia, Kenya, Zimbabwe and several others have experienced an accelerated urban growth rate as people have been forced away from rural areas for dual reasons – their search for both protection and livelihood opportunities leads them to capitals and provincial urban centres. The same is true in most countries that have experienced massive internal displacement in Asia, Europe and Latin America. In situations such as in Afghanistan, where people fled violence-ravaged cities during war and returned in the post-conflict phase, their numbers, combined with people from impoverished rural areas seeking a better life, create enormous challenges.

Many IDPs start their exile in the city by staying with host families, or in basements, schools and other public buildings, but millions end up in fast-growing slum areas and, as a result, face acute poverty. This has been the case in Sudan, where more than 2 million IDPs are estimated to have settled in Khartoum in various squatter areas. In Colombia, more than a million of the country's internally displaced are estimated to have fled to urban areas for protection, which has led to the uncontrolled growth of slums in Bogotá and elsewhere. In Algeria, at the peak of the conflict there, 1 million people were estimated to have fled, primarily to urban centres, leading to a massive growth of shantytowns around major cities. The same is true for Turkey, where the majority of the estimated 1 million displaced people fled to the larger cities.

The arrival of fleeing populations may shape a city's development in a positive way: new arrivals bring new resources that can contribute to the local economy and cultural life. But there are also multiple problems in urban areas that have received thousands and sometimes millions of people in a relatively short period of time. Large population increases have caused overcrowding and congestion in areas where resources were often already limited. Land in urban areas is scarce and expensive, and this can force newly arrived



A neighbourhood in the Turkish city of Izmir, where large numbers of Kurds have taken refuge after being displaced. (Photo: Ali Riza Kutlu)

IDPs to settle far from people from their original communities. This ruptures existing social support networks and increases the vulnerability of the IDP population. Cities and towns may be safer than rural areas, but livelihoods are sometimes harder to come by. To cope with their new situation, IDPs have to change the way they earn a living. The majority of urban IDPs depend on informal employment, so income is low and there is little chance to bring in enough money to improve their economic status.

The massive migration into urban areas is most often not followed by investment in infrastructure to provide basic sanitation, water, health care and schools. Urban slums where young people have no hope for the future can become a fertile recruitment ground for violence and crime. In Colombia, thousands of people have been forced to flee within and between cities because of the lack of protection in slum areas. Protection concerns are even more serious for displaced women and girls, who are vulnerable to rape and other gender-based violence. Some have even been

forced into prostitution and domestic slavery. Tensions between IDPs and resident populations can be acute, particularly if the presence of displaced people is viewed as a burden on local infrastructure and scarce resources.

Urban IDPs generally live beyond the reach of traditional humanitarian assessment and programming. In the majority of cases, these IDPs are not registered with government assistance agencies, and little is known about their precise numbers, demographics or basic needs.

One main reason for the lack of initiatives aimed at reaching urban IDPs may be the difficulty in assessing their numbers and socioeconomic conditions. IDPs in urban areas are often invisible, as they settle among the local population. They can be geographically dispersed throughout a city, and many move around among cities, camps and even their place of origin.

In some countries, protection concerns are so serious for urban IDPs that they do not identify themselves as such, preferring to keep a low profile rather than approach the authorities for help. Another issue is how to distinguish internally displaced people from other migrants. Many countries where conflict has created internal displacement also face a failing rural economy and rapid population growth. In this context, people may have mixed reasons for migrating towards urban areas.

In some protracted situations, such as in Turkey, Lebanon, Sudan and Colombia, the identification of IDPs and evaluation of their needs can be even more problematic. Many IDPs gain access to income-generating activities and local services over time. Many come to consider their new location to be “home” after having resided there for a long period. In these instances, it can be difficult to ascertain the degree to which IDPs have integrated, and to assess their intentions for the future. In post-conflict situations, many IDPs who return to their former homes in rural areas may later come back to the cities because of lack of livelihood opportunities and basic services in areas of return.

Although there are few studies comparing the living conditions of the displaced in urban areas with those of local populations, some reports and anecdotal evidence indicate that urban IDPs are an especially vulnerable group in many countries. In Sudan, where there is a high concentration of displaced people on the periphery of the major towns, urban IDPs are exposed to forced relocations that limit livelihood opportuni-

Urban Problems

Colombia:

“The colonial city of Cartagena has become a magnet for displaced people escaping the violence. Roughly half of the displaced families who arrive here were once small land owners and subsistence farmers. Many flock to Cartagena driven by the misguided belief that a city built around tourism will mean a better chance of getting a job. But most end up peddling snacks and souvenirs to tourists or washing car windscreens at traffic lights, competing with thousands of other displaced families doing the same thankless task.”

—Anastasia Moloney, *World Politics Watch*, 2 November 2006

Somalia:

“Around 250,000 IDPs live in Mogadishu. These have fled their area of origin due to conflict, but very little humanitarian relief reaches them in the city due to lack of access. IDPs have few employment opportunities and most survive on casual work. The worst-off resort to begging. IDPs typically live in shelters made from branches, plastic sheets or bits of scrap metal with no toilets. During the rainy season, diseases like malaria, TB, diarrhoea and dysentery spread quickly. Most IDPs (and other urban poor) cannot afford to visit health facilities and die of diseases that could easily be prevented or cured.”

—UNOCHA, *Overview of Humanitarian Environment in Mogadishu*, 26 August 2006

ties. They receive limited or no assistance from the humanitarian aid community.⁷⁷ In Nepal, a March 2005 study found that more than 70 per cent of IDPs in Kathmandu and Birendranagar could not earn enough money to support their families; some IDPs reported earning nothing at all.⁷⁸ In Colombia, urban IDPs generally have less access to health care, education, nutrition, water and sanitation facilities than the rest of the population, including the poor resident population in the shantytowns.⁷⁹

Apart from the methodological difficulties faced by humanitarian and development organisations when

assessing IDP situations in larger cities, the political will to address the protection and assistance requirements of displaced people is often lacking. In countries with large numbers of urban IDPs, the issue of displacement can be so overwhelming that governments may prefer not to implement assistance programmes that may only serve to reinforce urbanisation. Donors may also be reluctant to support IDP programmes in urban areas for the same reason. Often in post-conflict situations, national authorities prefer to facilitate IDPs' return to original communities that are deemed sufficiently safe to allow for return.

Assistance to IDPs residing in urban areas must often take into account different concerns than in rural areas, and may require more long-term engagement. One example is shelter assistance. While shelter in rural areas can be planned and delivered relatively easily, construction of urban shelter requires long-range planning, is more expensive and takes longer to complete. Also, as land is a more valuable asset in densely populated areas, shelter interventions in cities frequently raise political and economic issues that require close cooperation and planning with local authorities. Interventions in many cases should include assistance to local communities in order not to create resentment between IDPs and the local population.

Both national and international actors should in the future work toward meeting the requirements of the urban displaced in a more consistent way. There is an evident need to improve assistance to and protection of IDPs in urban areas during emergencies. And in post-conflict situations, a balance must be struck between, on the one hand, supporting national development policies that often favor return to rural areas and, on the other, creating programmes in support of IDPs who decide to remain in new homes in the cities.



The needs of IDPs in urban areas are often overlooked. (Photo: S. Schulman, UNHCR)

GROUP AFFILIATION

One factor contributing to displacement may be affiliation with a certain group, either real or perceived. In such instances, those persons who are (or appear to be) associated with a specific group may be targeted in the conflict and, as a result, forced to flee their homes.

In some cases there is a strong link between displacement and affiliation with a certain group. In Rwanda, Nepal and Iraq, for example, many IDPs belong to the political or ethnic group that had previously held power. Sunni Muslims privileged by the previous regime in Iraq now face mistreatment and are being displaced, although Shiites and other groups have also been displaced. Similarly, in Uganda many Acholi, who are of an ethnic background different than that of the ruling party, have also been forced into displacement. Specific groups fled their homes during conflict in Azerbaijan, Russia and Turkey on the basis of their ethnicity. For example, Ingush living in North Ossetia, Russia, fled to neighbouring Ingushetia after inter-ethnic violence broke out between them and Ossetians. People were also forced to flee in countries such as Burma due to their perceived or actual political affiliation. It is important to note that the animosity between groups of different affiliations may have arisen from external causes, such as preferential treatment of one group over another during colonisation.

In other cases, the factors contributing to displacement are complex and, as a result, a clear connection between displacement and affiliation with a specific group cannot be made. Although members of certain religious communities have been displaced in Bangladesh, India and Indonesia, their displacement is not always entirely due to their religious affiliation. In Bangladesh, for example, displacement is also a result of tension on the Bangladesh-India border, as well as land acquisition by the government for nation-building and forest preservation.

Similarly, migrants in India, Indonesia and the Philippines have been forced to flee their new place of residence, but not solely on the basis of being newly arrived in the region. Rather, migration has given rise to tensions over access to resources and highlighted the lack of available land in these areas and therefore displacement has more to do with resources than being

a migrant. In another example, while members of particular ethnic groups have been displaced in Somalia, Ethiopia and Kenya, the type and location of the land on which they were living was a primary factor in their displacement, not their affiliation with a given ethnic group. In Ethiopia, for instance, IDPs were displaced by rival ethnic groups in competition for land and water, but the displacement had more to do with the struggle over resources, than it did with ethnicity.

One consequence of the displacement of certain groups has been the homogenisation of the demographic makeup of the places of origin. This has been particularly the case in Bosnia and Herzegovina, Croatia, Serbia (Kosovo), Russia, Indonesia and Iraq, where once mixed neighbourhoods are becoming more uniform. For example, in Iraq Sunni Arabs are fleeing from Shiia and Kurdish areas to Sunni areas and the Shiias are fleeing Sunni areas to Shiia areas. These demographic changes have an impact on the return prospects of IDPs. In Russia, most Chechen IDPs have returned to Chechnya, while many Ingush IDPs have opted to remain at their new location in Ingushetia. In Central Sulawesi and North Maluku, Indonesia, few Christians and Muslims envisage a return to mixed communities; Serb IDPs from Kosovo are also still not confident that they will return and live in safety in areas where they are a minority.

In some cases, displaced people belonging to specific groups face additional constraints compared to the general IDP population. In 2006, Arab Israelis faced more obstacles in escaping from the conflict zone than did others, since they often did not have relatives or a support system in southern Israel. In the Philippines and Russia, young male IDPs are sometimes suspected of belonging to rebel groups and as such are harassed by military or paramilitary groups. While most IDPs in Bosnia and Herzegovina and Croatia do not suffer discrimination at their place of displacement, Roma IDPs in the Balkans are especially vulnerable since they face discrimination throughout displacement, and their general situation of poverty and social marginalisation is aggravated by displacement. In Somalia, local assistance to IDPs is given almost exclusively through clan structures, and those IDPs that reside outside their clan structure are therefore more vulnerable.

While affiliation with a certain community may be a prominent factor of displacement in some instances, more often such affiliation is just one among a complex mix of factors.



Destroyed houses in northern Central African Republic. (Photo: Mpako Foaleng, IDMC)

HOUSING, LAND AND PROPERTY

Control of and access to land has been a source of conflict and displacement in numerous countries such as Colombia, Guatemala, the DRC, Kenya, the Philippines, Rwanda and Zimbabwe. Restitution of land and property upon return is therefore a central element of post-conflict reconciliation. But it is particularly challenging in countries with less formalised legal systems, where it can be hard for displaced people to prove their ownership rights.

Access to housing and land is a concern lasting from the beginning to the end of the displacement cycle. Once displaced people are forced from their place of origin, they can face difficulties in finding adequate shelter and land to ensure minimum food security and self-reliance. If they are not provided with alternative solutions, IDPs tend to encroach on the land of populations living in the areas to which they have fled, which can then create further tensions (as has been the case in Kenya). When the security situation improves or a peace treaty is signed, property disputes associated with the return phase are another potential source of tension. Returning IDPs often find their houses and land destroyed or occupied by other people, as

in Peru, Guatemala, the Balkans and in Sudan's Darfur region. For this reason, it is crucial that peace agreements include provisions for the resolution of property and land problems. Such provisions currently exist in 17 countries affected by internal displacement, including in Nepal where a peace agreement was signed in November 2006. This accord stated the commitment of both the government and the Maoist rebels to return land and other property seized. At the regional level in Africa, a protocol on the property rights of returnees was adopted in December 2006 in the framework of the Great Lakes Conference process, and model legislation was drawn up in September 2006 with the objective of protecting the property rights of IDPs in countries such as Burundi, the DRC, Rwanda and Uganda.

In many post-conflict situations, institutions have been set up to process property claims and resolve disputes. In 2006, new restitution or compensation mechanisms were created in Iraq, Georgia, Lebanon and in northern Cyprus. Obstacles in the way of these mechanisms range from the authorities' lack of will to the weak role of the international community to the fragility of the rule of law and state authority inherent in post-conflict situations.

The tension between customary and statutory law that exists in most countries in Africa, Asia and Latin America, as well as the very low level of formal land registration, is another factor complicating the restitution/compensation process. It is estimated that in Africa only 1 per cent of land and property are registered under the cadastral system, mostly in urban South Africa⁸⁰. In the absence of reliable property registration and cadastre, displaced persons do not have the possibility of presenting ownership titles to prove their possession of land or property. In addition, informal ownership is usually based on customary law and linked to the right of use, and this right becomes limited in case of displacement and may favour those who have been using the land.

Land titling has been presented by many states and some international organisations as a way to increase security of tenure and better protect property rights. However, there have been several cases where land titling had adverse consequences.

In countries such as Indonesia, Sudan and the Philippines, natural resources and unoccupied land, including some land held under customary law, have been declared state-owned and later sold into private ownership. In Sudan and Colombia, the state used this process to grant concessions to oil and mining com-

panies, which resulted in the forced displacement of the resident population. In countries such as Uganda and the DRC, political and economic elites, with the collaboration of certain traditional chiefs, have taken advantage of land titling programmes to obtain private ownership over customarily owned land. In Uganda, land held under customary ownership was privatised during displacement, leaving IDPs without land to which to return.

A similar process is occurring in Asia. In the Philippines, Christians, benefiting from better access to information about land titling programmes, obtained titles over land owned under customary law by indigenous Lumads and Muslims. This led to widespread displacement of the latter groups. Now that the majority of lands in conflict-affected areas are titled, it is difficult for ancestral land claims to be adjudicated. Despite government attempts to recognise the right of indigenous people to hold lands under their ancestral claims or ownership through the adoption of an Indigenous People's Rights Act (IPRA), there has been little result. The Muslim population in particular refuses to be considered as indigenous people, and the IPRA is not, in practice, applied in the Autonomous Region in Muslim Mindanao. In India, property rights violations are a constant source of displacement in tribal areas, where customary law has been the rule until the government decided to use the land. Large development projects led by the state have provoked several waves of displacement. In the absence of alternative solutions, people displaced by those projects have often occupied others' land, thereby creating a new source of tension and displacement; this has been the case in numerous instances in northeast India.

In the context of a poorly functioning formal state system for land transfers and purchase, and with the breakdown of the customary system as the result of displacement, land titling initiatives can thus have a negative effect, in particular on vulnerable individuals, such as displaced people, women (particularly widows) and children. Members of these groups are usually considered to have tenancy rights only, not ownership rights. Land titling usually benefits those in power and men. Given inequitable laws and practices denying wives joint ownership of family land, women often lose out in this process. In cases where land titling contributed to violations of rights and was one of the causes of displacement, a return to the status quo ante will not necessarily lead to a fair outcome. Restitution in such situations should be replaced by some form of land redistribution.



New houses have been built for resettled IDPs in Azerbaijan. (Photo: Nadine Walicki, IDMC)

In Africa, access to land has remained a pressing concern for IDPs in Sudan, Somalia, Chad, Burundi or Kenya. Evictions in Zimbabwe and Kenya continued during 2006. In Kenya, ethnic tensions have been exacerbated by government-initiated evictions based on recommendations from a government commission investigating illegal allocation of public land. The recommendations included the creation of a land title tribunal to review irregular titles and suggested that where environmental and water catchment areas were at stake, the landless should be resettled on alternative land. As of December 2006, the land tribunal had not yet been appointed. The only tangible government reaction has been to carry out violent evictions of displaced persons who had previously taken refuge in forest land.

In Sudan, the government has actively fuelled local grievances between pastoralists and farmers over access to land and water. Land disputes, particularly in urban or semi-urban areas in the south are also likely to rise as IDPs from Khartoum return within the framework of the Comprehensive Peace Agreement of January 2005.

In Somalia, UN-Habitat developed a pilot resettlement project for urban IDPs to facilitate their access to land. The project will adopt a phased approach according to which IDPs will receive successively: a plot of land, a tent, assistance in construction of housing, and final-



A displaced Liberian woman builds a new house. (Photo: Jacob Silberberg, Panos)

ly connection to utilities such as electricity, sewage and water. The project combines the interest of the land owners currently renting to IDPs with the overall urban development plan of the town where IDPs are living. Landowners give some of their land to IDPs in exchange for the connection of the development area to town services and infrastructure, which in turn increases the value of the landowners' property.

In Asia, Burma remains the country most affected by conflict-related forced evictions and confiscation of property: 323 villages have been destroyed, forcibly relocated or otherwise abandoned between October 2005 and October 2006. Altogether more than 3,000 villages have been emptied since 1996, displacing more than 1 million people⁸¹. Weak private property rights and poor land ownership records facilitate involuntary relocations by the government. In this context, access to land and food security is a major issue for IDPs in Burma. Similarly, in Indonesia, poor official land registration policy contributes to communal conflicts, and land rights disputes are addressed only reluctantly by authorities. In Nepal, the restitution process has been affected by political considerations: According to some NGOs, Maoists have reportedly given fair land restitution only to those returnees who were not considered to be "feudal/exploiters". One returnee member of a political party disliked by the Maoists was placed into the feudal category and received only one-third of his land upon return⁸².

In Latin America, extremely unequal land and wealth distribution, which fueled many of the uprisings and the civil wars in the 1970s and 1980s, have not been rectified in the post-war period. Peace agreements in Guatemala, Mexico and Peru contained provisions aimed at resolving land issues for IDPs and other war-affected people, but these agreements remain largely unfulfilled. In Guatemala, key commitments, such as the resettlement of the displaced, redistribution of land and compensation for uprooted people and other victims of the conflict, have only been implemented to a very limited degree. In response to the slow implementation, landless people invaded and occupied large landholdings, which were met with violent evictions by the state in 2006.

In Colombia, the only country in the region with an ongoing armed conflict of significant scale, mechanisms have been put in place for IDPs and uprooted people to repossess land and assets illegally seized by members of paramilitary groups. However, these mechanisms have proved cumbersome and generally inefficient. In Peru, more than three years after the Truth and Reconciliation Commission recommended compensation for IDPs who lost their land, competition for control over land still lies at the heart of fierce animosity between white settlers and indigenous populations. Most of the land belonging to indigenous

people held under customary tenure was privatised by settlers through land titling. As a result, many indigenous IDPs have been unable to return or regain their ancestral property.

Internal displacement in Europe is characterised by protracted situations with no massive conflict-related evictions currently taking place; long-term solutions are being envisaged through allocation of land, resettlement, or restitution and compensation schemes. To date, the government of Azerbaijan has allocated some 60,000 hectares of land from state and municipal land funds to IDPs and created 760 farms providing livelihoods for about 47,000 IDPs⁸³. The government also continued its project of resettling IDPs close to their original place of residence. IDPs do not own the houses built for them and are expected to hand them over to the government when they return to their original places of residence. This solution improves IDPs' living conditions while maintaining an incentive for them to return.

In Russia, the government is allocating land for returnees but has not resumed its compensation programme, as it waits for additional federal funds. Restitution/compensation legislation and mechanisms also exist in the Balkans, Cyprus, Turkey and Georgia with varying rates of success. While only residual problems remain in Bosnia and Herzegovina, Croatia still does not allow for restitution or compensation for pre-war holders of occupancy rights. In April 2006, a new property agency was created in Kosovo. This institution succeeded the Housing and Property Directorate and will deal with remaining caseloads of residential property. The new agency will also consider claims for repossession of agricultural land and business premises which, until recently, had to go through a lengthy court process.

In northern Cyprus, a property commission was set up in March 2006 as it had been requested by the European Court of Human Rights (ECHR). In Turkey, an ECHR decision issued in January 2006 ruled that the country's 2004 compensation law provides an effective legal remedy, which applicants must exhaust before filing a case with the European Court. Consequently, 1,500 property-related cases that were pending before the Court will now be referred to the various compensation commissions, with the risk of overburdening them. While the compensation law is a significant step, IDPs have not yet benefited widely from it because of the lack of uniformity in its implementation due to wide discretionary powers of compensation commissions,

lack of awareness of procedures on the part of officials and claimants, and the absence of a clear government directive on implementation.

In Georgia, the Parliament passed in 2006 a law on property restitution in areas of origin including Abkhazia and South Ossetia, but this law has been rejected by South Ossetian authorities, and it seems difficult to see how it can be applied without first finding a political solution to the conflict.

In the Middle East several compensation and reconstruction schemes have been designed in response to the massive destruction and forced displacement caused by the conflicts in the region in 2006. In Lebanon, two compensation mechanisms have been established to address damage to private property, one dealing with southern Beirut alone while the other covers the rest of the country. The multiplicity of actors involved in reconstruction resulted in competing compensation schemes and confusion among potential beneficiaries. The absence of coordination between the government, Jihad Al Bina (Hizbollah's reconstruction arm) and international donors resulted in either duplication of effort or gaps in assistance. For instance, the "adopt a village" approach, whereby donors, for the most part Arab countries, assist specific villages by distributing reconstruction assistance payments to owners of damaged property, has created situations where assistance is not distributed evenly throughout the country. In the south, reconstruction efforts as well as access to land is seriously limited by the presence of an estimated 1 million cluster bombs.

In December 2006, the UN General Assembly approved a plan for a UN registry to handle Palestinian claims for compensation for property damage resulting from the construction of the West Bank Wall. However, the exclusion of non-material damage (including forced displacement), the lack of clarity concerning the eligibility criteria for compensation, and the means of assessment and validation of damage claims raise concerns as to its effectiveness. In Iraq, a new law came into force in March 2006, replacing the previous property commission with a new one and improving conditions for compensation.



Personal documents are necessary for IDPs to gain access to a number of rights and benefits. (Photo: Christophe Beau, IDMC)

DOCUMENTATION

Internally displaced people often find themselves without documentation – their documents may have been lost during conflict or they may never have possessed them in the first place⁸⁴. When a country experiences regime change or division, existing documents can become invalid. In the chaotic aftermath of displacement, IDPs often face great difficulty in renewing their documentation. They are often unaware of which institutions to approach or the procedures to follow. When IDPs do try to obtain documentation, it can require travelling long distances and may involve costs that not all IDPs can bear, as well as security concerns. Because of these barriers, there is a significant chance that many displaced people will remain without documentation.

The consequence of this varies greatly depending on the country. In societies with a developed formal legal system, the possession of documents such as identification cards, passports, birth certificates and marriage certificates, as well as documents relating to education, health and welfare rights, and housing, land and other possessions are necessary for the effective realisation of rights and entitlements. In such cases, the lack of adequate procedures for renewing IDPs' missing or invalid documents can lead to violations of political, social and economic rights. In societies with less formalised legal systems, a significant proportion of the population does not possess documentation, especially in rural areas. Identity, filiations and possession are based on customary or religious law. However, even informal societies are faced with the need to

issue some type of documentation to IDPs during the various phases of displacement to better assist them or to protect their rights. When displacement occurs, a registration exercise sometimes takes place and an IDP card is issued. The card can be a temporary substitute for permanent documents, which should be issued upon return – or once displacement turns out to be long-term. In the context of durable solutions, documentation is essential for the establishment of various rights, such as ownership of occupied property and land or pension rights. For IDPs, the possession of documentation is a precondition for the full exercise of citizenship rights.

The issue of documentation is addressed by Principle 20 of the Guiding Principles on Internal Displacement, which recalls a widely accepted standard in international human rights law: the right to recognition as a person before the law. To put this right into effect, state authorities, have a duty to issue identity documents, as both a tool for recognition of the individual and as a means for the individual to gain access to government institutions and service. The lack of adequate documentation can compromise access to other rights mentioned by the Guiding Principles, including those relating to liberty and security, freedom of movement, family life, education, health care, political participation, an adequate standard of living and property.

The main challenge to the implementation of Principle 20 is the difficulty for states in issuing new personal documentation in the absence of supporting documents. Many IDPs do not have any documents at all. According to regular procedures, new documents are usually issued on the basis of previously-existing documents or evidence proving the identity or status of a person.

Adapting procedures to the circumstances created by displacement is of paramount importance. This can be done by considering alternative identity-determination procedures, including the use of a broad range of records such as electricity or telephone bills, rental and bank receipts. A balance has to be found among the need for legal certainty, concern over the risk of fraud, and IDPs' need to obtain the necessary documents to benefit from humanitarian assistance and basic services.

Customary law and traditional methods of identification, such as the use of witnesses, should be considered for use in informal societies and in formal legal systems when such system is incomplete (a frequent occurrence in situations where records have been destroyed or taken away as in Bosnia and Herzegovina or Kosovo). In Afghanistan, Sudan, Burundi, northern Uganda and the DRC, official registers of births, deaths and marriages are frequently incomplete and significant sections of the population have never been issued official documents. This is particularly the case in certain rural areas, where indigenous people and some ethnic minorities are proportionally less likely to be registered.

Informal mechanisms have been used in numerous countries to fill these gaps and establish identity, age or ownership. In Nigeria, the confirmation of a village chief or a relative is an informal and accepted method of identification. In Eritrea, three witnesses are needed for confirmation of identity. To ensure accuracy of testimony, witnesses can be held responsible for their declaration. In other countries, having a relative buried at a certain location is considered a proof of ownership. In Sudan, age certificates, which are required to allow people to work, are established by a doctor. Community mapping processes involving groups of displaced persons or returnees can be particularly useful in addressing the gaps of civil registries or land records.

Certain groups, such as indigenous people, women or Roma, are disproportionately affected by exclusion from official records. In Colombia, many indigenous people and Afro-Colombians, who have also been disproportionately affected by internal displacement, have never possessed documents. In Serbia, Roma displaced from Kosovo face additional problems in obtaining identity cards since many of them never registered their permanent residence in Kosovo and consequently never possessed ID cards or birth certificates. The absence of identity documents prevents their registration as IDPs and impedes access to related benefits

such as subsidised health care and accommodation in collective centres. This is one of the reasons for the high number of Roma living in informal settlements in squalid conditions.

In the case of women, documents can be essential to claim inheritance rights. Marriages contracted under customary law (which represents the majority of unions in countries with less formalised legal systems such as Burundi, the DRC and Sudan) are often not recognised by statutory law; when questions of land inheritance arise, these women are left without legal standing. In these cases, recognition of customary marriages could protect women, although customary law regulating inheritance rights is often patriarchal and tends to dispossess widows, to the advantage of male relatives.

Confronted with the difficulty of finding sufficient evidence to issue permanent documents, some governments have issued temporary documentation or granted rights and humanitarian assistance through IDP registration. While this is a seemingly expedient solution, it may in the end turn out to be logistically and morally difficult to differentiate displaced persons from other vulnerable people in need of assistance. Furthermore, the creation of an IDP status implies both a definition of criteria and some form of determination process. Caution should be exercised to ensure that the criteria used are in line with the Guiding Principles.

In addition, in cases where displaced persons do not wish to be identified as such, linking assistance to IDP status forces displaced people to choose between physical security and humanitarian assistance. In countries such as Colombia, registration is perceived as a threat because there is suspicion that the data provided may be passed on to armed forces, police or military groups who may suspect IDPs of affiliation with opposition groups. This emphasises the need for any registration exercise to take protection concerns into account.

Cooperation between authorities and the international community has led to innovative outreach initiatives to access areas where displaced persons are located. In Colombia, UNHCR, the Colombian Registrar and a number of NGOs have established mobile documentation units to visit areas inhabited by IDPs and to help them complete applications for personal identity documents⁸⁵. In Sri Lanka, legal clinics of the Norwegian Refugee Council were often accompanied by local, district and national officials to facilitate the intake of claims. Such initiatives not only facilitate access to documentation but can also play an important role in reinforcing IDPs' confidence in the authorities.

CIVIL SOCIETY

Civil society played a vital role around the world in 2006 in raising awareness of IDP-related concerns and advocating for their rights. IDP organisations and internally displaced people themselves brought attention to IDP situations by issuing reports and press releases, advocating with stakeholders, convening forums on issues related to conflict and displacement, and utilising official mechanisms. Civil society groups also provided direct humanitarian assistance to IDPs, especially in contexts where security hindered the work of international agencies.

As in 2005, a lack of financial and human resources continued to impede the work of local organisations. NGOs on all continents also endured political harassment and threats from their governments, substantially limiting the scope of action and silencing critical perspectives on IDP situations. While local organisations are often relied upon by larger international organisations to implement humanitarian programmes and provide information on specific issues, they rarely have the opportunity to set their own agendas and priorities.

Humanitarian assistance

In a number of situations, local groups proactively participated in addressing the needs of IDP communities. In Bosnia and Herzegovina, IDP associations were involved in deciding on the location of relevant reconstruction projects. In Serbia, similar associations gathered useful information on areas of origin and lobbied local authorities and the international community for reconstruction. In Bossaso, Somalia, IDP communities took an active role in the allocation of plots of land to the displaced. In Georgia, national NGOs ran IDP-oriented projects ranging from medical assistance and psychosocial rehabilitation to extra-curricular education for displaced children to human rights awareness and vocational training.

The direct assistance provided by NGOs in emergencies is invaluable. For example, local NGOs in Lebanon were central to the response to the IDP crisis caused by the recent conflict, providing food, water, supplies and advocacy work. In Iraq, the ongoing violence has meant that the UN and international NGOs have a minimal presence, and as a result local NGOs play a vital role in addressing humanitarian needs.

In all contexts, coordination of local NGOs is difficult. Kosovo Serb associations, for example, participate in local mechanisms that help determine the location and scope of reconstruction projects, yet coordination remains problematic because of the multiplicity of IDP associations and their often-competing interests.

Ensuring that the work of local groups is taken into account by international agencies as they plan their response to IDP situations is a key challenge. In 2006, this was especially evident in countries where the humanitarian community utilised the cluster approach. Various sectors, or “clusters”, such as the one dealing with protection, did not adequately include local organisations’ activities in their overall planning. If collective humanitarian response is to be maximised, this challenge must be overcome with inclusive programmes reflecting the work of all actors, including local groups.

Enhanced awareness

In 2006, local NGOs continued to provide crucial information to stakeholders on internal displacement situations. In Burundi, Ligue ITEKA, a prominent local NGO, has influenced humanitarian response by issuing press releases on a number of specific issues, such as food distribution and protection.⁸⁶ In the DRC, local NGOs provide informal briefings to the broader humanitarian community on situations in remote locations. In Uganda, the Refugee Law Project (RLP), hosts a seminar series, bringing together refugees, UN officials and diplomats; in 2006, RLP hosted a seminar on the relationship between the country’s current peace talks and IDP return.⁸⁷

In Azerbaijan, the National Network of IDP Women held public hearings in three regions of the country on the issue of violence against women and early marriages. The hearings drew large audiences, including the chairwoman of the State Committee for Family, Women and Children’s Issues and senior-level local government representatives. In Chechnya, a round-table discussion was held with IDPs, local authorities and public organisations, organised by the Committee to Protect the Rights of Forced Migrants. In Kenya, the Kenya National IDP Network, made up of IDPs themselves, compiled lists of displaced families in need of resettlement.

Local groups have also used non-traditional methods to highlight situations of internal displacement. In Somalia, one local NGO in Hargeisa used street theatre and circus performances as a means of sensitising

The Red Cross and local NGOs provide free telephone service to Lebanese IDPs so they can contact family and relatives. (Photo: Dina Abou Samra, IDMC)



ing the local population to the plight of displaced persons and to raise awareness of other community development issues.

Video has also been used as a medium to illustrate internal displacement to international audiences. WITNESS, a nonprofit organisation in the United States, has partnered with local organisations in Burma and the DRC to produce films that draw attention to these situations. In Turkey and Lebanon, artists have used film and photography to expose IDP situations.

In a number of countries, such as the Philippines, Uganda and Russia, IDP groups have conducted direct advocacy with important decision-makers. One notable example was the work of the Darfur Consortium, a group of civil society organisations, whose particular concern is effective protection of civilians in Darfur. In December 2006, the consortium brought together key Sudanese experts on the sidelines of the Human Rights Council in Geneva to discuss the impact of international intervention in Darfur. In addition, in the run-up to the Beijing Africa Summit in November 2006, consortium members lobbied Chinese embassies in Africa on the need for the Chinese government to play a positive role in pushing for a solution to the Darfur crisis.

Utilising official mechanisms

IDP organisations used national, regional or international legal mechanisms last year to advance the rights of displaced people. At the national level, in Israel NGOs such as ADALAH have taken to the country's

Supreme Court such cases as one involving Bedouin villagers threatened with eviction or another in which Arab business owners were discriminated against in the compensation process after the mid-2006 Israel-Hizbollah conflict. In Georgia, NGOs representing the displaced held forums on the development of an IDP strategy. The Georgian government has made special efforts to include local NGOs, and the draft strategy specifically notes the role of both local and international NGOs in monitoring its implementation. Following public-interest litigation filed by IDPs, the Supreme Court of Nepal in February 2006 ordered the government to promulgate a law to provide relief to displaced people.

In Colombia in September 2006, the Constitutional Court received a number of reports from IDP organisations that criticised the lack of implementation of the government's IDP policies, particularly in regard to education, health services and access to justice. In response, the Constitutional Court ordered the government to implement IDP policies within a clear time frame and to harmonise indicators to measure implementation of relevant policies.

At the regional level, in Africa a number of local NGOs, such as Africa IDP Voice and the Refugee Consortium of Kenya, participated in consultations with governments on the development of a regional IDP protocol, which was included in the December 2006 Pact on Security, Stability and Development in the Great Lakes Region. In Europe, local NGOs have assisted IDPs in taking cases to the European Court of Human Rights, on issues relating to property and other concerns. In



A local IDP leadership committee in western Kenya.
(Photo: Jesse Bernstein, IDMC)

April 2006, two displaced women from North Ossetia-Alania, in the Russian Federation, provided testimony to the refugee subcommittee of the Parliamentary Assembly of the Council of Europe. In response, some members of the Council issued a Declaration on Rights and Resources for Ingush Families.⁸⁸ While the statement is not binding, it has raised awareness of Ingush IDPs and their needs.

Internationally, many IDP-focused NGOs utilised treaty body mechanisms to promote IDP rights. In the case of Bosnia and Herzegovina, Praxis, a local NGO, submitted a shadow report to the Human Rights Committee, which monitors implementation of the International Covenant on Civil and Political Rights. Several NGOs in Russia regularly send submissions to treaty bodies with a focus on the situation in Chechnya.

Shared challenges

Raising awareness of IDPs can be politically sensitive, and consequently in a number of countries civil society organisations were constrained and harassed by governments. In Algeria, the government has cracked down on opposition activity, and civil society is tightly controlled. Local NGOs working on IDP issues in the CAR, Sri Lanka and the Russian Federation all experienced threats by their governments, making any work related to IDPs extremely difficult and dangerous.

In Turkey, some NGOs working with IDPs have stated that they face government restrictions or harassment

because of suspected links with Kurdish political movements. In both Russia and Uganda in 2006, stringent NGO regulatory laws were passed, allowing for intensified scrutiny of all NGOs operating in the country. On occasion, IDPs and their representatives engaged in direct protests against governments, mainly related to a lack of assistance to IDPs.

In Russia, however, the interaction between governmental authorities and civil society organisations improved considerably due to the establishment of a new Human Rights Commissioner post and the Children and Women's Protection Department within the Ombudsman's office. The dialogue was also strengthened by the establishment of new consultative mechanisms, such as the Protection Working Group in Chechnya.

Virtually all IDP-related groups are limited in their activities due to lack of funds, which results in a lack of capacity, especially in countries with continuing conflicts, such as Somalia and Iraq. Despite these difficulties, civil society groups play an important role in advancing the rights of the displaced. This is often not sufficiently recognised by the international community, resulting in limited opportunities for IDP groups to develop professionally or to increase opportunities for engagement. Moreover, mechanisms to ensure the sustainability of local NGOs in politically hostile environments require further deliberation and additional resources.

POLITICAL PARTICIPATION

During 2006, elections were held in several countries affected by internal displacement, including Colombia, Uganda, and the DRC. On the whole, the participation of conflict-displaced people in elections was extremely limited. The inability to exercise their right to vote severely restricted opportunities for IDPs to participate in public life as active citizens during displacement.

Challenges and difficulties

A key obstacle to IDPs' participation in electoral processes is lack of access to identity-certifying documents (see Documentation chapter). Lack of documentation or difficulties with obtaining new documents often prevents IDPs from registering as voters and thus contributes to their disenfranchisement. Legal, procedural and practical difficulties during the registration and voting process were encountered in a number of countries during 2006.

In the DRC, in an IDP camp in Katanga province, displaced people could not vote because they did not have electoral cards. There were also cases of IDPs having their electoral cards stolen by the military, which they later had to buy back in order not to lose the right to vote. There were also situations in the DRC when the returnees were not able to cast their ballots, having been registered only in the area of displacement. Some IDPs were denied the right to register to

vote as a result of misinterpretation of the relevant law and were told to return to their place of origin to register. In Uganda, displaced people were intimidated during the pre-election period by the national army and the Lord's Resistance Army, both trying to influence the outcome of the election.

Security and access to polling stations were a major issue of concern for IDPs in relation to voting, especially in countries in conflict or with post-conflict situations. According to Human Rights Watch, voting in parts of northern Uganda was dangerous if not impossible, with access to polling stations hindered due to security concerns. Access was made even more difficult by the government's "decongestion" and resettlement programs, which aimed at reducing the number of IDPs in camps, but which resulted in greater distances to polling stations. It is hard to assess how many people were affected in this way.

Similarly in the DRC, IDPs had to both confront insecurity and walk long distances, especially in the south of the Ituri district and parts of South Kivu Province. Electoral officials were warned about the lack of public transport for voters, but nothing was done to resolve the problem.

IDPs often do not participate in public life and in elections – even when, in theory, they could. A 2006 report by the UN Development Fund for Women showed that displaced women need support and encouragement to run for and hold public office and that they are less likely to vote after displacement. This decline in political participation was attributed to their mistrust of the electoral process and doubts about the value of elections.



Voter education took place before the 2006 elections in Uganda. (Photo: Greg Starosky)

Positive developments

In addition to the above-mentioned barriers, 2006 also saw examples of initiatives and practices promoting and facilitating IDPs' voter participation. In Bosnia and Herzegovina special measures were taken to ensure that voters who had lost their IDP status just before the closure of the voters' register would still benefit from provisions allowing IDPs to vote either in their place of origin or place of displacement.

Nepal's National Policy on Internal Displacement of March 2006 confirmed IDPs' right to participate in elections and provided for the casting of absentee ballots in the current place of residence. This provision, however, turned out to conflict with Nepal's 1990 constitution and while the IDP policy was tabled, pending approval by the newly formed government at the end of the year, the Voter Registration Act adopted in December excluded the displaced since it did not provide for IDPs' voting rights in their areas of temporary residence.

International observation of elections remains an essential tool for raising concerns on the participation of displaced people. IDP voting was observed

by the Organization for Security and Co-operation in Europe's Office for Democratic Institutions and Human Rights during elections held in Macedonia in July and in Georgia in October. Election observation missions do not always pay sufficient attention to the voting rights of displaced people and the obstacles they encounter during the electoral process. For example, reporting by European Union election observation missions in Mexico made no reference to IDPs, while those in Uganda, the DRC and Aceh contained only scant references to IDPs, limited to the fact of their presence in the country or to their problems with registration. It is therefore clear that the European Union needs to incorporate observation of IDPs' participation in elections into its standard observation methodology and practice.

International and national organizations can help IDPs realise their right to vote. In the DRC, for example, the Norwegian Refugee Council assisted IDPs with overcoming obstacles in the registration process by intervening with electoral commissions. In northern Uganda during the run-up to the 2006 elections, the National Democratic Institute for International Affairs facilitated a voter education campaign directed at the region's IDPs as well as the general population.

"Why I Didn't Vote"

"I have been displaced since April and am living here in Dele [3 km south of Bunia]. I am beginning to regret that I did not vote, simply because I lost my voter card in April during fighting between the army and militiamen in Songolo [50 km south of Bunia]. Government soldiers entered our home and looted everything, including where I kept my voter card. Being displaced here in Bunia, the authorities asked us to request duplicate voter cards from the Independent Electoral Commission but my friends and I went to the commission several times without receiving our cards.

Each time they told us, 'Come tomorrow'. Eventually, we had an appointment to meet them on voting day. There was nobody in the commission office that morning except police officers who chased us out like dogs. We could not do anything. I was registered to vote in Songolo."

– Mainaro Doute

Source: DRC: Hear our voices - "Why we didn't vote"- displaced persons, IRIN, 3 August 2006.

Moving forward

The year featured a number of initiatives oriented toward the future of IDPs' electoral rights, such as the Political Rights and Enfranchisement System Strengthening (PRESS) project organised by the International Organisation for Migration (IOM). PRESS works to improve the participation of conflict-induced migrants, among them IDPs, in political processes. In June IOM convened in Geneva a Colloquium on the Political Rights of Persons Displaced by Conflict, gathering experts from the democracy, migration, humanitarian and human rights communities.

The year 2007 will again feature electoral processes in a number of countries affected by internal displacement, including Kenya and Nigeria, where it is feared that political tensions will cause further displacement, and Colombia, where the participation of IDP voters in municipal elections, or its lack, can have a significant impact on their outcome.

It is the responsibility of national authorities to guarantee the voting rights of displaced people, so that IDPs can fully enjoy their rights as citizens and become active members of society.

Elections in IDP Countries

The following countries with large populations of displaced people have parliamentary and/or presidential elections scheduled for 2007

Algeria
 Angola
 Armenia
 Bangladesh
 Chad
 Congo–Brazzaville
 Côte d'Ivoire
 Croatia
 DRC
 East Timor
 Ethiopia
 Georgia
 Guatemala
 Guinea
 India
 Kenya
 Kosovo
 Montenegro
 Nepal
 Nigeria
 Pakistan
 Philippines
 Russia
 Senegal
 Serbia
 Syria
 Togo
 Turkey
 Turkmenistan
 Uzbekistan



Voter education projects promote the participation of IDP in elections. (Photo: Greg Starosky)

Annex: IDP Country Figures

Countries	Number of IDPs (rounded)	Govt. figures	UN figures	Other figures	Comments
Afghanistan	132,000		132,246 (UNHCR, Sep. 2006)		
Algeria	Undetermined			1,000,000 (EU, 2002)	No recent figure available
Angola	61,700		61,700 (UNTCU, Dec. 2005)		
Armenia	8,400			8,400 (NRC, 2005)	
Azerbaijan	579,000 - 687,000	686,586 (Nov. 2006)	578,545 (UNHCR, June 2006)		These figures include only those displaced from Nagorno Karabakh and the 7 occupied territories; they do not include an estimated 30,000 ethnic Armenians displaced to Nagorno Karabakh.
Bangladesh	500,000	500,000 (2000)			
Bosnia and Herzegovina	180,000	180,251 (Aug. 2006)	180,251 (Aug. 2006)		
Burundi	100,000		100,000 (OCHA, Nov. 2006)		
Central African Republic	150,000		150,000 (OCHA, Nov. 2006)		
Chad	113,000		112,686 (OCHA, Dec. 2006)		
Colombia	1,853,000 - 3,833,000	1,852,530 (Aug. 2006)		3,832,527 (CODHES, June 2006)	CODHES figure is cumulative since 1985. The government figure is cumulative since 1994 and does not include intra-urban displacement and people displaced by crop fumigations. IDPs have the right to register one year after their displacement, which is one reason why government figures only reflect the official records up to August 2005.
Congo	7,800	7,800	7,800 (OCHA, Nov. 2004)		
Côte d'Ivoire	750,000		750,000 (UN CAP, July 2006)		UNFPA-funded study published in March 2006 puts total number of IDPs in 5 government-held zones at 700,000. Figure subsequently revised to 750,000 in the Mid-Year Review of the UN Consolidated Appeal.
Croatia	4,200 - 7,000	4,200 (Aug. 2006)	4,200 (UNHCR, Aug. 2006) 7,000 (RSG on Human Rights of IDPs, Dec. 2005)		
Cyprus	210,000		210,000 (UN FICYP, May 2003)		
Democratic Republic of the Congo	1,100,000		1,100,000 (OCHA, Nov. 2006)		

INTERNAL DISPLACEMENT

Countries	Number of IDPs (rounded)	Govt. figures	UN figures	Other figures	Comments
Eritrea	40,000 - 45,000	8,900 IDP households in Gash Barka and Debub (March 2006)	40,000 - 45,000 (OCHA, May 2006)		
Ethiopia	100,000 - 280,000		100,000 - 280,000 (OCHA Ethiopia, April 2006)		
Georgia	222,000 - 241,000	241,000 (Nov. 2004)	221,597 (UNHCR, 2006)		The 221,597 estimate is the result of a verification exercise carried out by the government and UNHCR, but has not been endorsed by the government.
Guatemala	242,000		242,000 (UNFPA, May 1997)		
Guinea	19,000	19,000 (Dec. 2005)			
India	at least 600,000			at least 600,000 (IDMC, May 2006)	Compiled from various figures available.
Indonesia	150,000 - 250,000			150,000 - 250,000 (IDMC, Dec. 2006)	Compiled from various sources.
Iraq	1,700'000		1,700,000 (UNHCR, Jan. 2007)		The figure is cumulative and based on a UN Habitat survey published in 2001. Of this figure, almost 700,000 were displaced by recent rise in inter-communal violence, according to the UN and government (as of February 2007).
Israel	150,000 - 420,000			150,000 (Cohen, July 2001) 420,000 (BADIL, May 2006)	The higher figure includes displaced Bedouin, and was calculated on the basis of an estimated average annual growth rate of 4.2% in 1950-2001, and 3% for the later years.
Kenya	431,000		431,153 (UNOCHA, May 2006)		This figure is derived from a 2002 UN IDP survey which has not been updated. However, due to a lack of security and protection, it is likely that those recorded as being displaced in 2002 remain unable or unwilling to return and thus remain displaced. This figure also takes into account recent displacement which has taken place throughout Kenya.
Lebanon	216,000 - 800,000	200,000 since July 2006; 16,750 prior to July 2006 (as of July 2006)	200,000 since July 2006 (UNHCR, Nov. 2006)	50,000 - 600,000 prior to July 2006 (USCR, 2004; USDOS, 2006)	As of December 2006, 200,000 people were still displaced by the July-August fighting. Prior to July 2006, it was estimated that some 68,000 to 600,000 people were displaced as a result of the 1975-1990 civil war and Israeli invasions.

Countries	Number of IDPs (rounded)	Govt. figures	UN figures	Other figures	Comments
Liberia	13,000 - 28,000		13,000 (ICF, July 2006)		While 28,000 people remain in former IDP camps, only 13,000 are recognised as IDPs by the UN and will still receive some return assistance
Macedonia	726	726 (May 2006)			
Mexico	10,000 - 12,000			10,000 (ICRC, June 2003); 12,000 (Center for Human Rights Fray Bartolomé de la Casas, June 2003)	
Myanmar (Burma)	500,000			500,000 (Thailand Burma Border Consortium, Oct. 2006)	Estimate relates to the eastern border areas only and does not include significant numbers of IDPs in the rest of the country.
Nepal	100,000 - 200,000			100,000 - 200,000 (IDMC, June 2005)	
Nigeria	Undetermined				No reliable IDP statistics exist. Govt. sources cite "500,000 to millions" but not based on any data. Last UN estimate was 200,000 in Nov. 2004, but also based on guesswork. During periodic outbreaks of violence most IDPs stay with host families; no camps currently exist.
Pakistan	Undetermined				Conflict-induced displacement has taken place in Balochistan and Waziristan, but no estimates are available due to lack of access.
Palestinian Territories	24,500 - 57,000		24,547 (OCHA, Oct. 2004)	57,000 (BADIL, May 2006)	Lower estimate only includes IDPs evicted by house demolitions in Gaza between September 2000 and October 2004; higher figure cumulative since 1967.
Peru	Undetermined				Government-led reregistration currently under way.
Philippines	120,000		120,000 (WFP, March 2006)		
Russian Federation	82,000 - 190,000	82,200 (Federal Govt., Feb. 2006)	190,000 (UN, 7 Dec. 2006)	25,268 (DRC, 31 Oct. 2006)	Government figure includes forced migrants registered in Ingushetia and Chechnya. UN figure includes IDPs in Ingushetia, Chechnya and Dagestan. DRC figure includes IDPs meeting DRC beneficiary criteria and living in Ingushetia or Dagestan.
Rwanda	Undetermined				No recent estimate available

INTERNAL DISPLACEMENT

Countries	Number of IDPs (rounded)	Govt. figures	UN figures	Other figures	Comments
Senegal	64,000			64,000 (IOM, June 2003)	New displacements and returns have taken place, but no recent estimate is available.
Serbia	228,000		228,000 (UNHCR, Aug. 2006)		Estimate does not include an unknown number of Roma not registered as IDPs
Somalia	400,000		400,000 (OCHA, Sep. 2006)		
Sri Lanka	500,000	312,700 (UNHCR/MNBD, May 2006) plus 200,000 newly displaced between April and Oct. (UNHCR/MNBD, Oct. 2006) and 450,000 tsunami IDPs (UNHCR/MNBD, Dec. 2005)	312,700 (UNHCR/MNBD, May 2006) plus 200,000 newly displaced between April and Oct. (UNHCR/MNBD, Oct. 2006) and 450,000 tsunami IDPs (UNHCR/MNBD, Dec. 2005)		The number of conflict-IDPs is a combination of long-term displaced (May 2006 figure) and newly displaced (October 2006 figure). The figure of 500,000 is a rough estimate: unregistered IDPs living in host communities may increase the figure, while an unknown overlap between the two groups of displaced may reduce it.
Sudan	5,355,000			5,355,000 (IDMC, April 2006)	Compiled from various figures
Syria	305,000	305,000 (Aug. 2005)			
Timor-Leste	100,000		100,000 (OCHA, Jan. 2007)		
Togo	1,500		1,500 (OCHA, Nov. 2006)		
Turkey	954,000 - 1,200,000	953,680 - 1,201,200 (Hacettepe University, Dec. 2006)		over 1 million (NGOs, Aug. 2005)	Hacettepe University survey commissioned by the government
Turkmenistan	Undetermined				No estimates available
Uganda	1,200,000 - 1,700,000		1,200,000 - 1,700,000 (UN CAP, 2007)		Figures included in the UN CAP 2007 are inconsistent and appear to cover only IDPs living in camps. The number of IDPs living outside camps remains unclear. The 2006 CAP estimated the total number of IDPs, including those outside camps, to be 2 million.
Uzbekistan	3,400			3,400 (IOM, May 2005)	
Zimbabwe	570,000		569,685 (UN, July 2005)		Not including people previously displaced by land acquisitions or political violence. Also not including people recently displaced due to losing their businesses or other forms livelihood.
Global Total	24,500,000			IDMC, Dec. 2006	Estimate based on the analysis of available country figures and additional information on displacement and return trends.

This table includes the most recent available figures on IDPs displaced by conflict. Most of the figures are estimates. Where a range is indicated, the first source/date refers to the lower figure and the second to the higher one, unless the range comes from a single source. More statistics and analyses of available figures can be found in the Internal Displacement Profiles included in the IDP database (www.internal-displacement.org).

Endnotes

- ¹ This estimate includes secondary displacements where they were recorded.
- ² This estimate is based on available country figures, as well as on additional information on new displacements and return where recent IDP surveys or estimates were not available. It should be noted that the majority of available country figures are estimates. Although the IDMC attempts to adjust available figures on the basis of information included in its IDP database, most IDP-related figures used in this report are estimates. While these figures should therefore be viewed with caution as to their accuracy, they serve to indicate trends and illustrate the scale of internal displacement situations and their effects on civilian populations.
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